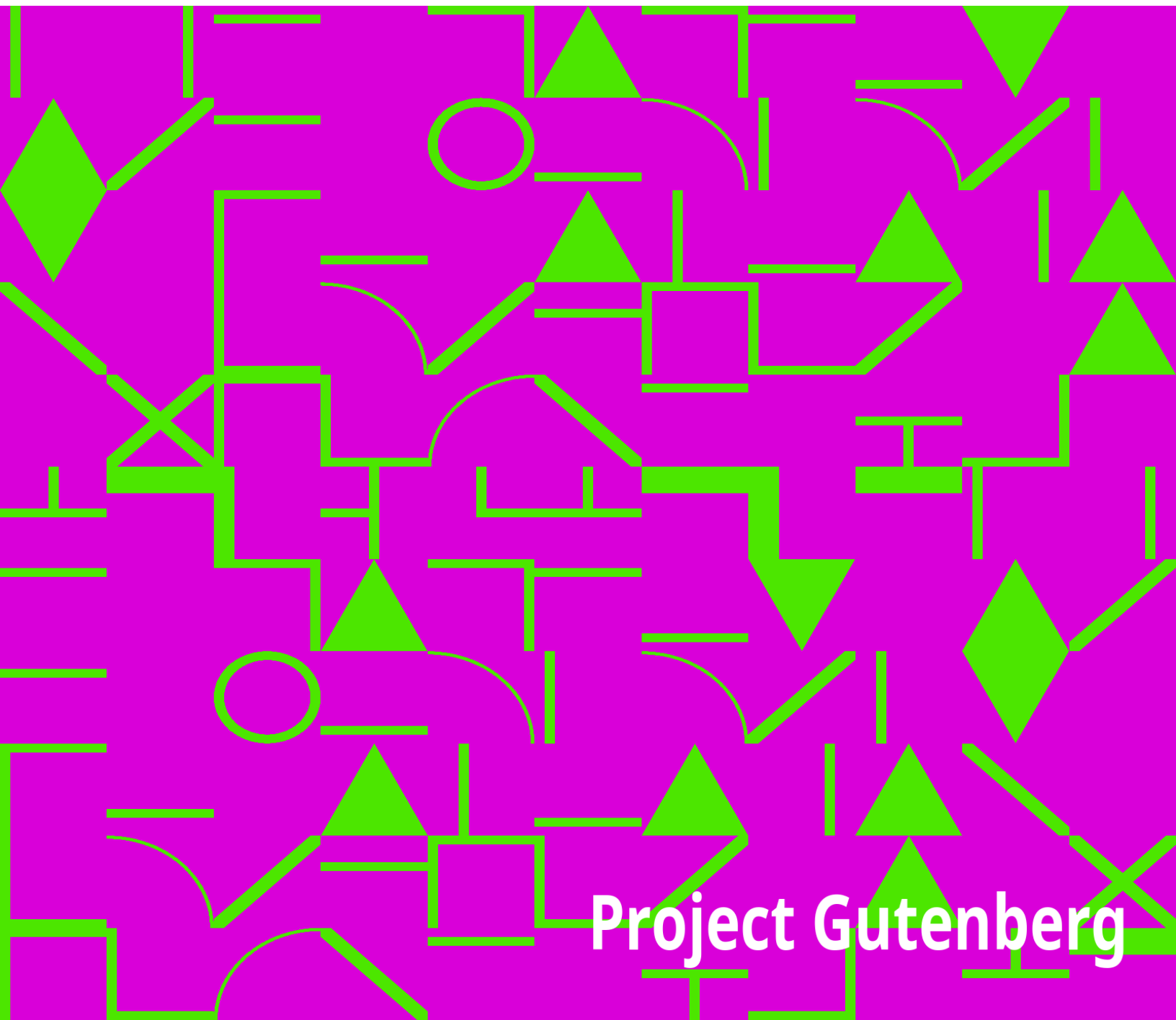


# The Papers and Writings of Abraham Lincoln — Volume 2: 1843-1858

Abraham Lincoln and Arthur Brooks



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# **The Papers and Writings of Abraham Lincoln — Volume 2: 1843-1858**

**Abraham Lincoln and Arthur Brooks**

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# **THE PAPERS AND WRITINGS OF ABRAHAM LINCOLN**

**VOLUME TWO**  
**CONSTITUTIONAL EDITION**

**Edited by Arthur Brooks Lapsley**

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## **VOLUME II., 1843-1858**

**1843**

## FIRST CHILD

TO JOSHUA F. SPEED. SPRINGFIELD, May 18, 1843.

DEAR SPEED:—Yours of the 9th instant is duly received, which I do not meet as a "bore," but as a most welcome visitor. I will answer the business part of it first.

In relation to our Congress matter here, you were right in supposing I would support the nominee. Neither Baker nor I, however, is the man, but Hardin, so far as I can judge from present appearances. We shall have no split or trouble about the matter; all will be harmony. In relation to the "coming events" about which Butler wrote you, I had not heard one word before I got your letter; but I have so much confidence in the judgment of Butler on such a subject that I incline to think there may be some reality in it. What day does Butler appoint? By the way, how do "events" of the same sort come on in your family? Are you possessing houses and lands, and oxen and asses, and men-servants and maid-servants, and begetting sons and daughters? We are not keeping house, but boarding at the Globe Tavern, which is very well kept now by a widow lady of the name of Beck. Our room (the same that Dr. Wallace occupied there) and boarding only costs us four dollars a week. Ann Todd was married something more than a year since to a fellow by the name of Campbell, and who, Mary says, is pretty much of a "dunce," though he has a little money and property. They live in Boonville, Missouri, and have not been heard from lately enough for me to say anything about her health. I reckon it will scarcely be in our power to visit Kentucky this year. Besides poverty and the necessity of attending to business, those "coming events," I suspect, would be somewhat in the way. I most heartily wish you and your Fanny would not fail to come. Just let us know the time, and we will have a room provided for you at our house, and all be merry together for a while. Be sure to give my respects to your mother and family; assure her that if ever I come near her, I will not fail to call and see her. Mary joins in sending love to your Fanny and you.

Yours as ever,

A. LINCOLN.



**1844**



**TO Gen. J. J. HARDIN.**

**SPRINGFIELD, May 21, 1844.**

DEAR HARDIN: Knowing that you have correspondents enough, I have forborne to trouble you heretofore; and I now only do so to get you to set a matter right which has got wrong with one of our best friends. It is old Uncle Thomas Campbell of Spring Creek—(Berlin P.O.). He has received several documents from you, and he says they are old newspapers and documents, having no sort of interest in them. He is, therefore, getting a strong impression that you treat him with disrespect. This, I know, is a mistaken impression; and you must correct it. The way, I leave to yourself. Rob't W. Canfield says he would like to have a document or two from you.

The Locos (Democrats) here are in considerable trouble about Van Buren's letter on Texas, and the Virginia electors. They are growing sick of the Tariff question; and consequently are much confounded at V.B.'s cutting them off from the new Texas question. Nearly half the leaders swear they won't stand it. Of those are Ford, T. Campbell, Ewing, Calhoun and others. They don't exactly say they won't vote for V.B., but they say he will not be the candidate, and that they are for Texas anyhow.

As ever yours,

A. LINCOLN.

**1845**

# SELECTION OF CONGRESSIONAL CANDIDATES

**TO Gen. J. J. HARDIN, SPRINGFIELD, Jany. 19, 1845.**

DEAR GENERAL:

I do not wish to join in your proposal of a new plan for the selection of a Whig candidate for Congress because:

1st. I am entirely satisfied with the old system under which you and Baker were successively nominated and elected to Congress; and because the Whigs of the district are well acquainted with the system, and, so far as I know or believe, are well satisfied with it. If the old system be thought to be vague, as to all the delegates of the county voting the same way, or as to instructions to them as to whom they are to vote for, or as to filling vacancies, I am willing to join in a provision to make these matters certain.

2d. As to your proposals that a poll shall be opened in every precinct, and that the whole shall take place on the same day, I do not personally object. They seem to me to be not unfair; and I forbear to join in proposing them only because I choose to leave the decision in each county to the Whigs of the county, to be made as their own judgment and convenience may dictate.

3d. As to your proposed stipulation that all the candidates shall remain in their own counties, and restrain their friends in the same it seems to me that on reflection you will see the fact of your having been in Congress has, in various ways, so spread your name in the district as to give you a decided advantage in such a stipulation. I appreciate your desire to keep down excitement; and I promise you to "keep cool" under all circumstances.

4th. I have already said I am satisfied with the old system under which such good men have triumphed and that I desire no departure from its principles. But if there must be a departure from it, I shall insist upon a more accurate and just apportionment of delegates, or representative votes, to the constituent body, than exists by the old, and which you propose to retain in your new plan. If we take the entire population of the counties as

shown by the late census, we shall see by the old plan, and by your proposed new plan,

*Morgan County, with a population 16,541, has but ..... 8 votes  
While Sangamon with 18,697-2156 greater has but ..... 8 "  
So Scott with 6553 has ..... 4 "  
While Tazewell with 7615 1062 greater has but ..... 4 "  
So Mason with 3135 has ..... 1 vote  
While Logan with 3907, 772 greater, has but ..... 1 "*

And so on in a less degree the matter runs through all the counties, being not only wrong in principle, but the advantage of it being all manifestly in your favor with one slight exception, in the comparison of two counties not here mentioned.

Again, if we take the Whig votes of the counties as shown by the late Presidential election as a basis, the thing is still worse.

It seems to me most obvious that the old system needs adjustment in nothing so much as in this; and still, by your proposal, no notice is taken of it. I have always been in the habit of acceding to almost any proposal that a friend would make and I am truly sorry that I cannot in this. I perhaps ought to mention that some friends at different places are endeavoring to secure the honor of the sitting of the convention at their towns respectively, and I fear that they would not feel much complimented if we shall make a bargain that it should sit nowhere.

Yours as ever,  
A. LINCOLN.

**TO ——— WILLIAMS,**

**SPRINGFIELD, March 1, 1845.**

FRIEND WILLIAMS:

The Supreme Court adjourned this morning for the term. Your cases of Reinhardt vs. Schuyler, Bunce vs. Schuyler, Dickhut vs. Dunell, and Sullivan vs. Andrews are continued. Hinman vs. Pope I wrote you concerning some time ago. McNutt et al. vs. Bean and Thompson is reversed and remanded.

Fitzpatrick vs. Brady et al. is reversed and remanded with leave to complainant to amend his bill so as to show the real consideration given for the land.

Bunce against Graves the court confirmed, wherefore, in accordance with your directions, I moved to have the case remanded to enable you to take a new trial in the court below. The court allowed the motion; of which I am glad, and I guess you are.

This, I believe, is all as to court business. The canal men have got their measure through the Legislature pretty much or quite in the shape they desired. Nothing else now.

Yours as ever,

A. LINCOLN.

# ABOLITION MOVEMENT

## TO WILLIAMSON DURLEY.

SPRINGFIELD, October 3, 1845

When I saw you at home, it was agreed that I should write to you and your brother Madison. Until I then saw you I was not aware of your being what is generally called an abolitionist, or, as you call yourself, a Liberty man, though I well knew there were many such in your country.

I was glad to hear that you intended to attempt to bring about, at the next election in Putnam, a Union of the Whigs proper and such of the Liberty men as are Whigs in principle on all questions save only that of slavery. So far as I can perceive, by such union neither party need yield anything on the point in difference between them. If the Whig abolitionists of New York had voted with us last fall, Mr. Clay would now be President, Whig principles in the ascendant, and Texas not annexed; whereas, by the division, all that either had at stake in the contest was lost. And, indeed, it was extremely probable, beforehand, that such would be the result. As I always understood, the Liberty men deprecated the annexation of Texas extremely; and this being so, why they should refuse to cast their votes [so] as to prevent it, even to me seemed wonderful. What was their process of reasoning, I can only judge from what a single one of them told me. It was this: "We are not to do evil that good may come." This general proposition is doubtless correct; but did it apply? If by your votes you could have prevented the extension, etc., of slavery would it not have been good, and not evil, so to have used your votes, even though it involved the casting of them for a slaveholder? By the fruit the tree is to be known. An evil tree cannot bring forth good fruit. If the fruit of electing Mr. Clay would have been to prevent the extension of slavery, could the act of electing have been evil?

But I will not argue further. I perhaps ought to say that individually I never was much interested in the Texas question. I never could see much good to come of annexation, inasmuch as they were already a free republican people on our own model. On the other hand, I never could very

clearly see how the annexation would augment the evil of slavery. It always seemed to me that slaves would be taken there in about equal numbers, with or without annexation. And if more were taken because of annexation, still there would be just so many the fewer left where they were taken from. It is possibly true, to some extent, that, with annexation, some slaves may be sent to Texas and continued in slavery that otherwise might have been liberated. To whatever extent this may be true, I think annexation an evil. I hold it to be a paramount duty of us in the free States, due to the Union of the States, and perhaps to liberty itself (paradox though it may seem), to let the slavery of the other States alone; while, on the other hand, I hold it to be equally clear that we should never knowingly lend ourselves, directly or indirectly, to prevent that slavery from dying a natural death—to find new places for it to live in when it can no longer exist in the old. Of course I am not now considering what would be our duty in cases of insurrection among the slaves. To recur to the Texas question, I understand the Liberty men to have viewed annexation as a much greater evil than ever I did; and I would like to convince you, if I could, that they could have prevented it, if they had chosen. I intend this letter for you and Madison together; and if you and he or either shall think fit to drop me a line, I shall be pleased.

Yours with respect,

A. LINCOLN.

**1846**



# REQUEST FOR POLITICAL SUPPORT

**TO Dr. ROBERT BOAL. SPRINGFIELD, January 7, 1846.**

Dr. ROBERT BOAL, Lacon, Ill.

DEAR DOCTOR:—Since I saw you last fall, I have often thought of writing to you, as it was then understood I would, but, on reflection, I have always found that I had nothing new to tell you. All has happened as I then told you I expected it would—Baker's declining, Hardin's taking the track, and so on.

If Hardin and I stood precisely equal, if neither of us had been to Congress, or if we both had, it would only accord with what I have always done, for the sake of peace, to give way to him; and I expect I should do it. That I can voluntarily postpone my pretensions, when they are no more than equal to those to which they are postponed, you have yourself seen. But to yield to Hardin under present circumstances seems to me as nothing else than yielding to one who would gladly sacrifice me altogether. This I would rather not submit to. That Hardin is talented, energetic, usually generous and magnanimous, I have before this affirmed to you and do not deny. You know that my only argument is that "turn about is fair play." This he, practically at least, denies.

If it would not be taxing you too much, I wish you would write me, telling the aspect of things in your country, or rather your district; and also, send the names of some of your Whig neighbors, to whom I might, with propriety, write. Unless I can get some one to do this, Hardin, with his old franking list, will have the advantage of me. My reliance for a fair shake (and I want nothing more) in your country is chiefly on you, because of your position and standing, and because I am acquainted with so few others. Let me hear from you soon.

Yours truly,

A. LINCOLN.



## **TO JOHN BENNETT.**

**SPRINGFIELD, Jan. 15, 1846.**

JOHN BENNETT. FRIEND JOHN:

Nathan Dresser is here, and speaks as though the contest between Hardin and me is to be doubtful in Menard County. I know he is candid and this alarms me some. I asked him to tell me the names of the men that were going strong for Hardin, he said Morris was about as strong as any—now tell me, is Morris going it openly? You remember you wrote me that he would be neutral. Nathan also said that some man, whom he could not remember, had said lately that Menard County was going to decide the contest and that made the contest very doubtful. Do you know who that was? Don't fail to write me instantly on receiving this, telling me all—particularly the names of those who are going strong against me.

Yours as ever,

A. LINCOLN.

**TO N. J. ROCKWELL.**

**SPRINGFIELD, January 21, 1846.**

DEAR SIR:—You perhaps know that General Hardin and I have a contest for the Whig nomination for Congress for this district.

He has had a turn and my argument is "turn about is fair play."

I shall be pleased if this strikes you as a sufficient argument.

Yours truly,

A. LINCOLN.

**TO JAMES BERDAN.**

**SPRINGFIELD, April 26, 1846.**

DEAR SIR:—I thank you for the promptness with which you answered my letter from Bloomington. I also thank you for the frankness with which you comment upon a certain part of my letter; because that comment affords me an opportunity of trying to express myself better than I did before, seeing, as I do, that in that part of my letter, you have not understood me as I intended to be understood.

In speaking of the "dissatisfaction" of men who yet mean to do no wrong, etc., I mean no special application of what I said to the Whigs of Morgan, or of Morgan & Scott. I only had in my mind the fact that previous to General Hardin's withdrawal some of his friends and some of mine had become a little warm; and I felt, and meant to say, that for them now to meet face to face and converse together was the best way to efface any remnant of unpleasant feeling, if any such existed.

I did not suppose that General Hardin's friends were in any greater need of having their feelings corrected than mine were. Since I saw you at Jacksonville, I have had no more suspicion of the Whigs of Morgan than of those of any other part of the district. I write this only to try to remove any impression that I distrust you and the other Whigs of your country.

Yours truly,

A. LINCOLN.

**TO JAMES BERDAN.**

**SPRINGFIELD, May 7, 1866.**

DEAR SIR:—It is a matter of high moral obligation, if not of necessity, for me to attend the Coles and Edwards courts. I have some cases in both of them, in which the parties have my promise, and are depending upon me. The court commences in Coles on the second Monday, and in Edgar on the third. Your court in Morgan commences on the fourth Monday; and it is my purpose to be with you then, and make a speech. I mention the Coles and Edgar courts in order that if I should not reach Jacksonville at the time named you may understand the reason why. I do not, however, think there is much danger of my being detained; as I shall go with a purpose not to be, and consequently shall engage in no new cases that might delay me.

Yours truly,

A. LINCOLN.

# VERSES WRITTEN BY LINCOLN AFTER A VISIT TO HIS OLD HOME IN INDIANA

## (A FRAGMENT).

[In December, 1847, when Lincoln was stumping for Clay, he crossed into Indiana and revisited his old home. He writes: "That part of the country is within itself as unpoetical as any spot on earth; but still seeing it and its objects and inhabitants aroused feelings in me which were certainly poetry; though whether my expression of these feelings is poetry, is quite another question."]

*Near twenty years have passed away  
Since here I bid farewell  
To woods and fields, and scenes of play,  
And playmates loved so well.*

*Where many were, but few remain  
Of old familiar things;  
But seeing them to mind again  
The lost and absent brings.*

*The friends I left that parting day,  
How changed, as time has sped!  
Young childhood grown, strong manhood gray,  
And half of all are dead.*

*I hear the loved survivors tell  
How naught from death could save,  
Till every sound appears a knell,  
And every spot a grave.*

*I range the fields with pensive tread,  
And pace the hollow rooms,  
And feel (companion of the dead)  
I 'm living in the tombs.*

VERSES WRITTEN BY LINCOLN CONCERNING A SCHOOL-FELLOW  
WHO BECAME INSANE—(A FRAGMENT).

*And when at length the drear and long  
Time soothed thy fiercer woes,  
How plaintively thy mournful song  
Upon the still night rose*

*I've heard it oft as if I dreamed,  
Far distant, sweet and lone;  
The funeral dirge it ever seemed*

*Of reason dead and gone.*

*Air held her breath; trees with the spell  
Seemed sorrowing angels round,  
Whose swelling tears in dewdrops fell  
Upon the listening ground.*

*But this is past, and naught remains  
That raised thee o'er the brute;  
Thy piercing shrieks and soothing strains  
Are like, forever mute.*

*Now fare thee well! More thou the cause  
Than subject now of woe.  
All mental pangs by time's kind laws  
Hast lost the power to know.*

*O Death! thou awe-inspiring prince  
That keepst the world in fear,  
Why dost thou tear more blest ones hence,  
And leave him lingering here?*



## SECOND CHILD

TO JOSHUA P. SPEED

SPRINGFIELD, October 22, 1846.

DEAR SPEED:—You, no doubt, assign the suspension of our correspondence to the true philosophic cause; though it must be confessed by both of us that this is rather a cold reason for allowing a friendship such as ours to die out by degrees. I propose now that, upon receipt of this, you shall be considered in my debt, and under obligations to pay soon, and that neither shall remain long in arrears hereafter. Are you agreed?

Being elected to Congress, though I am very grateful to our friends for having done it, has not pleased me as much as I expected.

We have another boy, born the 10th of March. He is very much such a child as Bob was at his age, rather of a longer order. Bob is "short and low," and I expect always will be. He talks very plainly,—almost as plainly as anybody. He is quite smart enough. I sometimes fear that he is one of the little rare-ripe sort that are smarter at about five than ever after. He has a great deal of that sort of mischief that is the offspring of such animal spirits. Since I began this letter, a messenger came to tell me Bob was lost; but by the time I reached the house his mother had found him and had him whipped, and by now, very likely, he is run away again. Mary has read your letter, and wishes to be remembered to Mrs. Speed and you, in which I most sincerely join her.

As ever yours,

A. LINCOLN.

## **TO MORRIS AND BROWN**

**SPRINGFIELD, October 21, 1847.**

MESSRS. MORRIS AND BROWN.

GENTLEMEN:—Your second letter on the matter of Thornton and others, came to hand this morning. I went at once to see Logan, and found that he is not engaged against you, and that he has so sent you word by Mr. Butterfield, as he says. He says that some time ago, a young man (who he knows not) came to him, with a copy of the affidavit, to engage him to aid in getting the Governor to grant the warrant; and that he, Logan, told the man, that in his opinion, the affidavit was clearly insufficient, upon which the young man left, without making any engagement with him. If the Governor shall arrive before I leave, Logan and I will both attend to the matter, and he will attend to it, if he does not come till after I leave; all upon the condition that the Governor shall not have acted upon the matter, before his arrival here. I mention this condition because, I learned this morning from the Secretary of State, that he is forwarding to the Governor, at Palestine, all papers he receives in the case, as fast as he receives them. Among the papers forwarded will be your letter to the Governor or Secretary of, I believe, the same date and about the same contents of your last letter to me; so that the Governor will, at all events have your points and authorities. The case is a clear one on our side; but whether the Governor will view it so is another thing.

Yours as ever,

A. LINCOLN.

## TO WILLIAM H. HERNDON

WASHINGTON, December 5, 1847.

DEAR WILLIAM:—You may remember that about a year ago a man by the name of Wilson (James Wilson, I think) paid us twenty dollars as an advance fee to attend to a case in the Supreme Court for him, against a Mr. Campbell, the record of which case was in the hands of Mr. Dixon of St. Louis, who never furnished it to us. When I was at Bloomington last fall I met a friend of Wilson, who mentioned the subject to me, and induced me to write to Wilson, telling him I would leave the ten dollars with you which had been left with me to pay for making abstracts in the case, so that the case may go on this winter; but I came away, and forgot to do it. What I want now is to send you the money, to be used accordingly, if any one comes on to start the case, or to be retained by you if no one does.

There is nothing of consequence new here. Congress is to organize tomorrow. Last night we held a Whig caucus for the House, and nominated Winthrop of Massachusetts for speaker, Sargent of Pennsylvania for sergeant-at-arms, Homer of New Jersey door-keeper, and McCormick of District of Columbia postmaster. The Whig majority in the House is so small that, together with some little dissatisfaction, [it] leaves it doubtful whether we will elect them all.

This paper is too thick to fold, which is the reason I send only a half-sheet.

Yours as ever, A. LINCOLN.

## **TO WILLIAM H. HERNDON.**

**WASHINGTON, December 13, 1847**

DEAR WILLIAM:—Your letter, advising me of the receipt of our fee in the bank case, is just received, and I don't expect to hear another as good a piece of news from Springfield while I am away. I am under no obligations to the bank; and I therefore wish you to buy bank certificates, and pay my debt there, so as to pay it with the least money possible. I would as soon you should buy them of Mr. Ridgely, or any other person at the bank, as of any one else, provided you can get them as cheaply. I suppose, after the bank debt shall be paid, there will be some money left, out of which I would like to have you pay Lively and Stout twenty dollars, and Priest and somebody (oil-makers) ten dollars, for materials got for house-painting. If there shall still be any left, keep it till you see or hear from me.

I shall begin sending documents so soon as I can get them. I wrote you yesterday about a "Congressional Globe." As you are all so anxious for me to distinguish myself, I have concluded to do so before long.

Yours truly,

A. LINCOLN.

# **RESOLUTIONS IN THE UNITED STATES HOUSE OF REPRESENTATIVES,**

**DECEMBER 22, 1847**

Whereas, The President of the United States, in his message of May 11, 1846, has declared that "the Mexican Government not only refused to receive him [the envoy of the United States], or to listen to his propositions, but, after a long-continued series of menaces, has at last invaded our territory and shed the blood of our fellow-citizens on our own soil";

And again, in his message of December 8, 1846, that "we had ample cause of war against Mexico long before the breaking out of hostilities; but even then we forbore to take redress into our own hands until Mexico herself became the aggressor, by invading our soil in hostile array, and shedding the blood of our citizens";

And yet again, in his message of December 7, 1847, that "the Mexican Government refused even to hear the terms of adjustment which he [our minister of peace] was authorized to propose, and finally, under wholly unjustifiable pretexts, involved the two countries in war, by invading the territory of the State of Texas, striking the first blow, and shedding the blood of our citizens on our own soil";

And whereas, This House is desirous to obtain a full knowledge of all the facts which go to establish whether the particular spot on which the blood of our citizens was so shed was or was not at that time our own soil: therefore,

Resolved, By the House of Representatives, that the President of the United States be respectfully requested to inform this House:

First. Whether the spot on which the blood of our citizens was shed, as in his message declared, was or was not within the territory of Spain, at least after the treaty of 1819, until the Mexican revolution.

Second. Whether that spot is or is not within the territory which was wrested from Spain by the revolutionary government of Mexico.

Third. Whether that spot is or is not within a settlement of people, which settlement has existed ever since long before the Texas revolution, and until its inhabitants fled before the approach of the United States army.

Fourth. Whether that settlement is or is not isolated from any and all other settlements by the Gulf and the Rio Grande on the south and west, and by wide uninhabited regions on the north and east.

Fifth. Whether the people of that settlement, or a majority of them, or any of them, have ever submitted themselves to the government or laws of Texas or of the United States, by consent or by compulsion, either by accepting office, or voting at elections, or paying tax, or serving on juries, or having process served upon them, or in any other way.

Sixth. Whether the people of that settlement did or did not flee from the approach of the United States army, leaving unprotected their homes and their growing crops, before the blood was shed, as in the message stated; and whether the first blood, so shed, was or was not shed within the inclosure of one of the people who had thus fled from it.

Seventh. Whether our citizens, whose blood was shed, as in his message declared, were or were not, at that time, armed officers and soldiers, sent into that settlement by the military order of the President, through the Secretary of War.

Eighth. Whether the military force of the United States was or was not so sent into that settlement after General Taylor had more than once intimated to the War Department that, in his opinion, no such movement was necessary to the defence or protection of Texas.

# REMARKS IN THE UNITED STATES HOUSE OF REPRESENTATIVES,

JANUARY 5, 1848.

Mr. Lincoln said he had made an effort, some few days since, to obtain the floor in relation to this measure [resolution to direct Postmaster-General to make arrangements with railroad for carrying the mails—in Committee of the Whole], but had failed. One of the objects he had then had in view was now in a great measure superseded by what had fallen from the gentleman from Virginia who had just taken his seat. He begged to assure his friends on the other side of the House that no assault whatever was meant upon the Postmaster-General, and he was glad that what the gentleman had now said modified to a great extent the impression which might have been created by the language he had used on a previous occasion. He wanted to state to gentlemen who might have entertained such impressions, that the Committee on the Post-office was composed of five Whigs and four Democrats, and their report was understood as sustaining, not impugning, the position taken by the Postmaster-General. That report had met with the approbation of all the Whigs, and of all the Democrats also, with the exception of one, and he wanted to go even further than this. [Intimation was informally given Mr. Lincoln that it was not in order to mention on the floor what had taken place in committee.] He then observed that if he had been out of order in what he had said he took it all back so far as he could. He had no desire, he could assure gentlemen, ever to be out of order—though he never could keep long in order.

Mr. Lincoln went on to observe that he differed in opinion, in the present case, from his honorable friend from Richmond [Mr. Botts]. That gentleman, had begun his remarks by saying that if all prepossessions in this matter could be removed out of the way, but little difficulty would be experienced in coming to an agreement. Now, he could assure that gentleman that he had himself begun the examination of the subject with prepossessions all in his favor. He had long and often heard of him, and,

from what he had heard, was prepossessed in his favor. Of the Postmaster-General he had also heard, but had no prepossessions in his favor, though certainly none of an opposite kind. He differed, however, with that gentleman in politics, while in this respect he agreed with the gentleman from Virginia [Mr. Botts], whom he wished to oblige whenever it was in his power. That gentleman had referred to the report made to the House by the Postmaster-General, and had intimated an apprehension that gentlemen would be disposed to rely, on that report alone, and derive their views of the case from that document alone. Now it so happened that a pamphlet had been slipped into his [Mr. Lincoln's] hand before he read the report of the Postmaster-General; so that, even in this, he had begun with prepossessions in favor of the gentleman from Virginia.

As to the report, he had but one remark to make: he had carefully examined it, and he did not understand that there was any dispute as to the facts therein stated the dispute, if he understood it, was confined altogether to the inferences to be drawn from those facts. It was a difference not about facts, but about conclusions. The facts were not disputed. If he was right in this, he supposed the House might assume the facts to be as they were stated, and thence proceed to draw their own conclusions.

The gentleman had said that the Postmaster-General had got into a personal squabble with the railroad company. Of this Mr. Lincoln knew nothing, nor did he need or desire to know anything, because it had nothing whatever to do with a just conclusion from the premises. But the gentleman had gone on to ask whether so great a grievance as the present detention of the Southern mail ought not to be remedied. Mr. Lincoln would assure the gentleman that if there was a proper way of doing it, no man was more anxious than he that it should be done. The report made by the committee had been intended to yield much for the sake of removing that grievance. That the grievance was very great there was no dispute in any quarter. He supposed that the statements made by the gentleman from Virginia to show this were all entirely correct in point of fact. He did suppose that the interruptions of regular intercourse, and all the other inconveniences growing out of it, were all as that gentleman had stated them to be; and certainly, if redress could be rendered, it was proper it should be rendered as soon as possible. The gentleman said that in order to effect this no new legislative action was needed; all that was necessary was that the



Postmaster-General should be required to do what the law, as it stood, authorized and required him to do.

We come then, said Mr. Lincoln, to the law. Now the Postmaster-General says he cannot give to this company more than two hundred and thirty-seven dollars and fifty cents per railroad mile of transportation, and twelve and a half per cent. less for transportation by steamboats. He considers himself as restricted by law to this amount; and he says, further, that he would not give more if he could, because in his apprehension it would not be fair and just.

**1848**

# **DESIRE FOR SECOND TERM IN CONGRESS**

**TO WILLIAM H. HERNDON.**

WASHINGTON, January 8, 1848.

DEAR WILLIAM:—Your letter of December 27 was received a day or two ago. I am much obliged to you for the trouble you have taken, and promise to take in my little business there. As to speech making, by way of getting the hang of the House I made a little speech two or three days ago on a post-office question of no general interest. I find speaking here and elsewhere about the same thing. I was about as badly scared, and no worse as I am when I speak in court. I expect to make one within a week or two, in which I hope to succeed well enough to wish you to see it.

It is very pleasant to learn from you that there are some who desire that I should be reelected. I most heartily thank them for their kind partiality; and I can say, as Mr. Clay said of the annexation of Texas, that "personally I would not object" to a reelection, although I thought at the time, and still think, it would be quite as well for me to return to the law at the end of a single term. I made the declaration that I would not be a candidate again, more from a wish to deal fairly with others, to keep peace among our friends, and to keep the district from going to the enemy, than for any cause personal to myself; so that if it should so happen that nobody else wishes to be elected, I could not refuse the people the right of sending me again. But to enter myself as a competitor of others, or to authorize any one so to enter me is what my word and honor forbid.

I got some letters intimating a probability of so much difficulty amongst our friends as to lose us the district; but I remember such letters were written to Baker when my own case was under consideration, and I trust there is no more ground for such apprehension now than there was then. Remember I am always glad to receive a letter from you.

Most truly your friend,

A. LINCOLN.



# **SPEECH ON DECLARATION OF WAR ON MEXICO**

## **SPEECH IN THE UNITED STATES HOUSE OF REPRESENTATIVES,**

JANUARY 12, 1848.

MR CHAIRMAN:—Some if not all the gentlemen on the other side of the House who have addressed the committee within the last two days have spoken rather complainingly, if I have rightly understood them, of the vote given a week or ten days ago declaring that the war with Mexico was unnecessarily and unconstitutionally commenced by the President. I admit that such a vote should not be given in mere party wantonness, and that the one given is justly censurable if it have no other or better foundation. I am one of those who joined in that vote; and I did so under my best impression of the truth of the case. How I got this impression, and how it may possibly be remedied, I will now try to show. When the war began, it was my opinion that all those who because of knowing too little, or because of knowing too much, could not conscientiously approve the conduct of the President in the beginning of it should nevertheless, as good citizens and patriots, remain silent on that point, at least till the war should be ended. Some leading Democrats, including ex-President Van Buren, have taken this same view, as I understand them; and I adhered to it and acted upon it, until since I took my seat here; and I think I should still adhere to it were it not that the President and his friends will not allow it to be so. Besides the continual effort of the President to argue every silent vote given for supplies into an indorsement of the justice and wisdom of his conduct; besides that singularly candid paragraph in his late message in which he tells us that Congress with great unanimity had declared that "by the act of the Republic of Mexico, a state of war exists between that government and the United States," when the same journals that informed him of this also informed him that when that declaration stood disconnected from the question of supplies sixty-seven in the House, and not fourteen merely, voted against it;

besides this open attempt to prove by telling the truth what he could not prove by telling the whole truth—demanding of all who will not submit to be misrepresented, in justice to themselves, to speak out, besides all this, one of my colleagues [Mr. Richardson] at a very early day in the session brought in a set of resolutions expressly indorsing the original justice of the war on the part of the President. Upon these resolutions when they shall be put on their passage I shall be compelled to vote; so that I cannot be silent if I would. Seeing this, I went about preparing myself to give the vote understandingly when it should come. I carefully examined the President's message, to ascertain what he himself had said and proved upon the point. The result of this examination was to make the impression that, taking for true all the President states as facts, he falls far short of proving his justification; and that the President would have gone further with his proof if it had not been for the small matter that the truth would not permit him. Under the impression thus made I gave the vote before mentioned. I propose now to give concisely the process of the examination I made, and how I reached the conclusion I did. The President, in his first war message of May, 1846, declares that the soil was ours on which hostilities were commenced by Mexico, and he repeats that declaration almost in the same language in each successive annual message, thus showing that he deems that point a highly essential one. In the importance of that point I entirely agree with the President. To my judgment it is the very point upon which he should be justified, or condemned. In his message of December, 1846, it seems to have occurred to him, as is certainly true, that title-ownership-to soil or anything else is not a simple fact, but is a conclusion following on one or more simple facts; and that it was incumbent upon him to present the facts from which he concluded the soil was ours on which the first blood of the war was shed.

Accordingly, a little below the middle of page twelve in the message last referred to, he enters upon that task; forming an issue and introducing testimony, extending the whole to a little below the middle of page fourteen. Now, I propose to try to show that the whole of this—issue and evidence—is from beginning to end the sheerest deception. The issue, as he presents it, is in these words: "But there are those who, conceding all this to be true, assume the ground that the true western boundary of Texas is the Nueces, instead of the Rio Grande; and that, therefore, in marching our army to the east bank of the latter river, we passed the Texas line and

invaded the territory of Mexico." Now this issue is made up of two affirmatives and no negative. The main deception of it is that it assumes as true that one river or the other is necessarily the boundary; and cheats the superficial thinker entirely out of the idea that possibly the boundary is somewhere between the two, and not actually at either. A further deception is that it will let in evidence which a true issue would exclude. A true issue made by the President would be about as follows: "I say the soil was ours, on which the first blood was shed; there are those who say it was not."

I now proceed to examine the President's evidence as applicable to such an issue. When that evidence is analyzed, it is all included in the following propositions:

(1) That the Rio Grande was the western boundary of Louisiana as we purchased it of France in 1803.

(2) That the Republic of Texas always claimed the Rio Grande as her eastern boundary.

(3) That by various acts she had claimed it on paper.

(4) That Santa Anna in his treaty with Texas recognized the Rio Grande as her boundary.

(5) That Texas before, and the United States after, annexation had exercised jurisdiction beyond the Nueces—between the two rivers.

(6) That our Congress understood the boundary of Texas to extend beyond the Nueces.

Now for each of these in its turn. His first item is that the Rio Grande was the western boundary of Louisiana, as we purchased it of France in 1803; and seeming to expect this to be disputed, he argues over the amount of nearly a page to prove it true, at the end of which he lets us know that by the treaty of 1803 we sold to Spain the whole country from the Rio Grande eastward to the Sabine. Now, admitting for the present that the Rio Grande was the boundary of Louisiana, what under heaven had that to do with the present boundary between us and Mexico? How, Mr. Chairman, the line that once divided your land from mine can still be the boundary between us after I have sold my land to you is to me beyond all comprehension. And how any man, with an honest purpose only of proving the truth, could ever have thought of introducing such a fact to prove such an issue is equally incomprehensible. His next piece of evidence is that "the Republic of Texas

always claimed this river [Rio Grande] as her western boundary." That is not true, in fact. Texas has claimed it, but she has not always claimed it. There is at least one distinguished exception. Her State constitution the republic's most solemn and well-considered act, that which may, without impropriety, be called her last will and testament, revoking all others—makes no such claim. But suppose she had always claimed it. Has not Mexico always claimed the contrary? So that there is but claim against claim, leaving nothing proved until we get back of the claims and find which has the better foundation. Though not in the order in which the President presents his evidence, I now consider that class of his statements which are in substance nothing more than that Texas has, by various acts of her Convention and Congress, claimed the Rio Grande as her boundary, on paper. I mean here what he says about the fixing of the Rio Grande as her boundary in her old constitution (not her State constitution), about forming Congressional districts, counties, etc. Now all of this is but naked claim; and what I have already said about claims is strictly applicable to this. If I should claim your land by word of mouth, that certainly would not make it mine; and if I were to claim it by a deed which I had made myself, and with which you had had nothing to do, the claim would be quite the same in substance—or rather, in utter nothingness. I next consider the President's statement that Santa Anna in his treaty with Texas recognized the Rio Grande as the western boundary of Texas. Besides the position so often taken, that Santa Anna while a prisoner of war, a captive, could not bind Mexico by a treaty, which I deem conclusive—besides this, I wish to say something in relation to this treaty, so called by the President, with Santa Anna. If any man would like to be amused by a sight of that little thing which the President calls by that big name, he can have it by turning to Niles's Register, vol. 1, p. 336. And if any one should suppose that Niles's Register is a curious repository of so mighty a document as a solemn treaty between nations, I can only say that I learned to a tolerable degree of certainty, by inquiry at the State Department, that the President himself never saw it anywhere else. By the way, I believe I should not err if I were to declare that during the first ten years of the existence of that document it was never by anybody called a treaty—that it was never so called till the President, in his extremity, attempted by so calling it to wring something from it in justification of himself in connection with the Mexican War. It has none of the distinguishing features of a treaty. It does not call itself a



treaty. Santa Anna does not therein assume to bind Mexico; he assumes only to act as the President—Commander-in-Chief of the Mexican army and navy; stipulates that the then present hostilities should cease, and that he would not himself take up arms, nor influence the Mexican people to take up arms, against Texas during the existence of the war of independence. He did not recognize the independence of Texas; he did not assume to put an end to the war, but clearly indicated his expectation of its continuance; he did not say one word about boundary, and, most probably, never thought of it. It is stipulated therein that the Mexican forces should evacuate the territory of Texas, passing to the other side of the Rio Grande; and in another article it is stipulated that, to prevent collisions between the armies, the Texas army should not approach nearer than within five leagues—of what is not said, but clearly, from the object stated, it is of the Rio Grande. Now, if this is a treaty recognizing the Rio Grande as the boundary of Texas, it contains the singular feature of stipulating that Texas shall not go within five leagues of her own boundary.

Next comes the evidence of Texas before annexation, and the United States afterwards, exercising jurisdiction beyond the Nueces and between the two rivers. This actual exercise of jurisdiction is the very class or quality of evidence we want. It is excellent so far as it goes; but does it go far enough? He tells us it went beyond the Nueces, but he does not tell us it went to the Rio Grande. He tells us jurisdiction was exercised between the two rivers, but he does not tell us it was exercised over all the territory between them. Some simple-minded people think it is possible to cross one river and go beyond it without going all the way to the next, that jurisdiction may be exercised between two rivers without covering all the country between them. I know a man, not very unlike myself, who exercises jurisdiction over a piece of land between the Wabash and the Mississippi; and yet so far is this from being all there is between those rivers that it is just one hundred and fifty-two feet long by fifty feet wide, and no part of it much within a hundred miles of either. He has a neighbor between him and the Mississippi—that is, just across the street, in that direction—whom I am sure he could neither persuade nor force to give up his habitation; but which nevertheless he could certainly annex, if it were to be done by merely standing on his own side of the street and claiming it, or even sitting down and writing a deed for it.

But next the President tells us the Congress of the United States understood the State of Texas they admitted into the Union to extend beyond the Nueces. Well, I suppose they did. I certainly so understood it. But how far beyond? That Congress did not understand it to extend clear to the Rio Grande is quite certain, by the fact of their joint resolutions for admission expressly leaving all questions of boundary to future adjustment. And it may be added that Texas herself is proven to have had the same understanding of it that our Congress had, by the fact of the exact conformity of her new constitution to those resolutions.

I am now through the whole of the President's evidence; and it is a singular fact that if any one should declare the President sent the army into the midst of a settlement of Mexican people who had never submitted, by consent or by force, to the authority of Texas or of the United States, and that there and thereby the first blood of the war was shed, there is not one word in all the which would either admit or deny the declaration. This strange omission it does seem to me could not have occurred but by design. My way of living leads me to be about the courts of justice; and there I have sometimes seen a good lawyer, struggling for his client's neck in a desperate case, employing every artifice to work round, befog, and cover up with many words some point arising in the case which he dared not admit and yet could not deny. Party bias may help to make it appear so, but with all the allowance I can make for such bias, it still does appear to me that just such, and from just such necessity, is the President's struggle in this case.

Sometime after my colleague [Mr. Richardson] introduced the resolutions I have mentioned, I introduced a preamble, resolution, and interrogations, intended to draw the President out, if possible, on this hitherto untrodden ground. To show their relevancy, I propose to state my understanding of the true rule for ascertaining the boundary between Texas and Mexico. It is that wherever Texas was exercising jurisdiction was hers; and wherever Mexico was exercising jurisdiction was hers; and that whatever separated the actual exercise of jurisdiction of the one from that of the other was the true boundary between them. If, as is probably true, Texas was exercising jurisdiction along the western bank of the Nueces, and Mexico was exercising it along the eastern bank of the Rio Grande, then neither river was the boundary: but the uninhabited country between the two was. The extent of our territory in that region depended not on any treaty-fixed boundary (for no treaty had attempted it), but on revolution. Any people

anywhere being inclined and having the power have the right to rise up and shake off the existing government, and form a new one that suits them better. This is a most valuable, a most sacred right—a right which we hope and believe is to liberate the world. Nor is this right confined to cases in which the whole people of an existing government may choose to exercise it. Any portion of such people that can may revolutionize and make their own of so much of the territory as they inhabit. More than this, a majority of any portion of such people may revolutionize, putting down a minority, intermingled with or near about them, who may oppose this movement. Such minority was precisely the case of the Tories of our own revolution. It is a quality of revolutions not to go by old lines or old laws, but to break up both, and make new ones.

As to the country now in question, we bought it of France in 1803, and sold it to Spain in 1819, according to the President's statements. After this, all Mexico, including Texas, revolutionized against Spain; and still later Texas revolutionized against Mexico. In my view, just so far as she carried her resolution by obtaining the actual, willing or unwilling, submission of the people, so far the country was hers, and no farther. Now, sir, for the purpose of obtaining the very best evidence as to whether Texas had actually carried her revolution to the place where the hostilities of the present war commenced, let the President answer the interrogatories I proposed, as before mentioned, or some other similar ones. Let him answer fully, fairly, and candidly. Let him answer with facts and not with arguments. Let him remember he sits where Washington sat, and so remembering, let him answer as Washington would answer. As a nation should not, and the Almighty will not, be evaded, so let him attempt no evasion—no equivocation. And if, so answering, he can show that the soil was ours where the first blood of the war was shed,—that it was not within an inhabited country, or, if within such, that the inhabitants had submitted themselves to the civil authority of Texas or of the United States, and that the same is true of the site of Fort Brown, then I am with him for his justification. In that case I shall be most happy to reverse the vote I gave the other day. I have a selfish motive for desiring that the President may do this—I expect to gain some votes, in connection with the war, which, without his so doing, will be of doubtful propriety in my own judgment, but which will be free from the doubt if he does so. But if he can not or will not do this,—if on any pretence or no pretence he shall refuse or omit it then I

shall be fully convinced of what I more than suspect already that he is deeply conscious of being in the wrong; that he feels the blood of this war, like the blood of Abel, is crying to heaven against him; that originally having some strong motive—what, I will not stop now to give my opinion concerning to involve the two countries in a war, and trusting to escape scrutiny by fixing the public gaze upon the exceeding brightness of military glory,—that attractive rainbow that rises in showers of blood, that serpent's eye that charms to destroy,—he plunged into it, and was swept on and on till, disappointed in his calculation of the ease with which Mexico might be subdued, he now finds himself he knows not where. How like the half insane mumbling of a fever dream is the whole war part of his late message! At one time telling us that Mexico has nothing whatever that we can get—but territory; at another showing us how we can support the war by levying contributions on Mexico. At one time urging the national honor, the security of the future, the prevention of foreign interference, and even the good of Mexico herself as among the objects of the war; at another telling us that "to reject indemnity, by refusing to accept a cession of territory, would be to abandon all our just demands, and to wage the war, bearing all its expenses, without a purpose or definite object." So then this national honor, security of the future, and everything but territorial indemnity may be considered the no-purposes and indefinite objects of the war! But, having it now settled that territorial indemnity is the only object, we are urged to seize, by legislation here, all that he was content to take a few months ago, and the whole province of Lower California to boot, and to still carry on the war to take all we are fighting for, and still fight on. Again, the President is resolved under all circumstances to have full territorial indemnity for the expenses of the war; but he forgets to tell us how we are to get the excess after those expenses shall have surpassed the value of the whole of the Mexican territory. So again, he insists that the separate national existence of Mexico shall be maintained; but he does not tell us how this can be done, after we shall have taken all her territory. Lest the questions I have suggested be considered speculative merely, let me be indulged a moment in trying to show they are not. The war has gone on some twenty months; for the expenses of which, together with an inconsiderable old score, the President now claims about one half of the Mexican territory, and that by far the better half, so far as concerns our ability to make anything out of it. It is comparatively uninhabited; so that

we could establish land-offices in it, and raise some money in that way. But the other half is already inhabited, as I understand it, tolerably densely for the nature of the country, and all its lands, or all that are valuable, already appropriated as private property. How then are we to make anything out of these lands with this encumbrance on them? or how remove the encumbrance? I suppose no one would say we should kill the people, or drive them out, or make slaves of them, or confiscate their property. How, then, can we make much out of this part of the territory? If the prosecution of the war has in expenses already equalled the better half of the country, how long its future prosecution will be in equalling the less valuable half is not a speculative, but a practical, question, pressing closely upon us. And yet it is a question which the President seems never to have thought of. As to the mode of terminating the war and securing peace, the President is equally wandering and indefinite. First, it is to be done by a more vigorous prosecution of the war in the vital parts of the enemy's country; and after apparently talking himself tired on this point, the President drops down into a half-despairing tone, and tells us that "with a people distracted and divided by contending factions, and a government subject to constant changes by successive revolutions, the continued success of our arms may fail to secure a satisfactory peace." Then he suggests the propriety of wheedling the Mexican people to desert the counsels of their own leaders, and, trusting in our protestations, to set up a government from which we can secure a satisfactory peace; telling us that "this may become the only mode of obtaining such a peace." But soon he falls into doubt of this too; and then drops back on to the already half-abandoned ground of "more vigorous prosecution." All this shows that the President is in nowise satisfied with his own positions. First he takes up one, and in attempting to argue us into it he argues himself out of it, then seizes another and goes through the same process, and then, confused at being able to think of nothing new, he snatches up the old one again, which he has some time before cast off. His mind, taxed beyond its power, is running hither and thither, like some tortured creature on a burning surface, finding no position on which it can settle down and be at ease.

Again, it is a singular omission in this message that it nowhere intimates when the President expects the war to terminate. At its beginning, General Scott was by this same President driven into disfavor if not disgrace, for intimating that peace could not be conquered in less than three or four

months. But now, at the end of about twenty months, during which time our arms have given us the most splendid successes, every department and every part, land and water, officers and privates, regulars and volunteers, doing all that men could do, and hundreds of things which it had ever before been thought men could not do—after all this, this same President gives a long message, without showing us that as to the end he himself has even an imaginary conception. As I have before said, he knows not where he is. He is a bewildered, confounded, and miserably perplexed man. God grant he may be able to show there is not something about his conscience more painful than his mental perplexity.

The following is a copy of the so-called "treaty" referred to in the speech:

*"Articles of Agreement entered into between his Excellency David G. Burnet, President of the Republic of Texas, of the one part, and his Excellency General Santa Anna, President-General-in-Chief of the Mexican army, of the other part:*

*"Article I. General Antonio Lopez de Santa Anna agrees that he will not take up arms, nor will he exercise his influence to cause them to be taken up, against the people of Texas during the present war of independence.*

*"Article II. All hostilities between the Mexican and Texan troops will cease immediately, both by land and water.*

*"Article III. The Mexican troops will evacuate the territory of Texas, passing to the other side of the Rio Grande Del Norte.*

*"Article IV. The Mexican army, in its retreat, shall not take the property of any person without his consent and just indemnification, using only such articles as may be necessary for its subsistence, in cases when the owner may not be present, and remitting to the commander of the army of Texas, or to the commissioners to be appointed for the adjustment of such matters, an account of the value of the property consumed, the place where taken, and the name of the owner, if it can be ascertained.*

*"Article V. That all private property, including cattle, horses, negro slaves, or indentured persons, of whatever denomination, that may have been captured by any portion of the Mexican army, or may have taken refuge in the said army, since the commencement of the late invasion, shall be restored to the commander of the Texan army, or to such other persons as may be appointed by the Government of Texas to receive them.*

*"Article VI. The troops of both armies will refrain from coming in contact with each other; and to this end the commander of the army of Texas will be careful not to approach within a shorter distance than five leagues.*

*"Article VII. The Mexican army shall not make any other delay on its march than that which is necessary to take up their hospitals, baggage, etc., and to cross the rivers; any delay not necessary*

to these purposes to be considered an infraction of this agreement.

"Article VIII. By an express, to be immediately despatched, this agreement shall be sent to General Vincente Filisola and to General T. J. Rusk, commander of the Texan army, in order that they may be apprised of its stipulations; and to this end they will exchange engagements to comply with the same.

"Article IX. That all Texan prisoners now in the possession of the Mexican army, or its authorities, be forthwith released, and furnished with free passports to return to their homes; in consideration of which a corresponding number of Mexican prisoners, rank and file, now in possession of the Government of Texas shall be immediately released; the remainder of the Mexican prisoners that continue in the possession of the Government of Texas to be treated with due humanity,—any extraordinary comforts that may be furnished them to be at the charge of the Government of Mexico.

"Article X. General Antonio Lopez de Santa Anna will be sent to Vera Cruz as soon as it shall be deemed proper.

"The contracting parties sign this instrument for the abovementioned purposes, in duplicate, at the port of Velasco, this fourteenth day of May, 1836.

"DAVID G. BURNET, President,  
"JAS. COLLINGSWORTH, Secretary of State,  
"ANTONIO LOPEZ DE SANTA ANNA,  
"B. HARDIMAN, Secretary of the Treasury,  
"P. W. GRAYSON, Attorney-General."

## **REPORT IN THE HOUSE OF REPRESENTATIVES, JANUARY 19, 1848.**

Mr. Lincoln, from the Committee on the Post-office and Post Roads, made the following report:

The Committee on the Post-office and Post Roads, to whom was referred the petition of Messrs. Saltmarsh and Fuller, report: That, as proved to their satisfaction, the mail routes from Milledgeville to Athens, and from Warrenton to Decatur, in the State of Georgia (numbered 2366 and 2380), were let to Reeside and Avery at \$1300 per annum for the former and \$1500 for the latter, for the term of four years, to commence on the first day of January, 1835; that, previous to the time for commencing the service, Reeside sold his interest therein to Avery; that on the 5th of May, 1835, Avery sold the whole to these petitioners, Saltmarsh and Fuller, to take effect from the beginning, January a 1835; that at this time, the Assistant Postmaster-General, being called on for that purpose, consented to the transfer of the contracts from Reeside and Avery to these petitioners, and promised to have proper entries of the transfer made on the books of the department, which, however, was neglected to be done; that the petitioners, supposing all was right, in good faith commenced the transportation of the mail on these routes, and after difficulty arose, still trusting that all would be made right, continued the service till December a 1837; that they performed the service to the entire satisfaction of the department, and have never been paid anything for it except \$——; that the difficulty occurred as follows:

Mr. Barry was Postmaster-General at the times of making the contracts and the attempted transfer of them; Mr. Kendall succeeded Mr. Barry, and finding Reeside apparently in debt to the department, and these contracts still standing in the names of Reeside and Avery, refused to pay for the services under them, otherwise than by credits to Reeside; afterward, however, he divided the compensation, still crediting one half to Reeside, and directing the other to be paid to the order of Avery, who disclaimed all right to it. After discontinuing the service, these petitioners, supposing they



might have legal redress against Avery, brought suit against him in New Orleans; in which suit they failed, on the ground that Avery had complied with his contract, having done so much toward the transfer as they had accepted and been satisfied with. Still later the department sued Reeside on his supposed indebtedness, and by a verdict of the jury it was determined that the department was indebted to him in a sum much beyond all the credits given him on the account above stated. Under these circumstances, the committee consider the petitioners clearly entitled to relief, and they report a bill accordingly; lest, however, there should be some mistake as to the amount which they have already received, we so frame it as that, by adjustment at the department, they may be paid so much as remains unpaid for services actually performed by them not charging them with the credits given to Reeside. The committee think it not improbable that the petitioners purchased the right of Avery to be paid for the service from the 1st of January, till their purchase on May 11, 1835; but, the evidence on this point being very vague, they forbear to report in favor of allowing it.

## **TO WILLIAM H. HERNDON—LEGAL WORK**

**WASHINGTON, January 19, 1848.**

DEAR WILLIAM:—Inclosed you find a letter of Louis W. Chandler. What is wanted is that you shall ascertain whether the claim upon the note described has received any dividend in the Probate Court of Christian County, where the estate of Mr. Overbon Williams has been administered on. If nothing is paid on it, withdraw the note and send it to me, so that Chandler can see the indorser of it. At all events write me all about it, till I can somehow get it off my hands. I have already been bored more than enough about it; not the least of which annoyance is his cursed, unreadable, and ungodly handwriting.

I have made a speech, a copy of which I will send you by next mail.

Yours as ever,

A. LINCOLN.

# REGARDING SPEECH ON MEXICAN WAR

TO WILLIAM H. HERNDON.

WASHINGTON, February 1, 1848.

DEAR WILLIAM:—Your letter of the 19th ultimo was received last night, and for which I am much obliged. The only thing in it that I wish to talk to you at once about is that because of my vote for Ashmun's amendment you fear that you and I disagree about the war. I regret this, not because of any fear we shall remain disagreed after you have read this letter, but because if you misunderstand I fear other good friends may also. That vote affirms that the war was unnecessarily and unconstitutionally commenced by the President; and I will stake my life that if you had been in my place you would have voted just as I did. Would you have voted what you felt and knew to be a lie? I know you would not. Would you have gone out of the House—skulked the vote? I expect not. If you had skulked one vote, you would have had to skulk many more before the end of the session. Richardson's resolutions, introduced before I made any move or gave any vote upon the subject, make the direct question of the justice of the war; so that no man can be silent if he would. You are compelled to speak; and your only alternative is to tell the truth or a lie. I cannot doubt which you would do.

This vote has nothing to do in determining my votes on the questions of supplies. I have always intended, and still intend, to vote supplies; perhaps not in the precise form recommended by the President, but in a better form for all purposes, except Locofoco party purposes. It is in this particular you seem mistaken. The Locos are untiring in their efforts to make the impression that all who vote supplies or take part in the war do of necessity approve the President's conduct in the beginning of it; but the Whigs have from the beginning made and kept the distinction between the two. In the very first act nearly all the Whigs voted against the preamble declaring that war existed by the act of Mexico; and yet nearly all of them voted for the supplies. As to the Whig men who have participated in the war, so far as they have spoken in my hearing they do not hesitate to denounce as unjust

the President's conduct in the beginning of the war. They do not suppose that such denunciation is directed by undying hatred to him, as The Register would have it believed. There are two such Whigs on this floor (Colonel Haskell and Major James) The former fought as a colonel by the side of Colonel Baker at Cerro Gordo, and stands side by side with me in the vote that you seem dissatisfied with. The latter, the history of whose capture with Cassius Clay you well know, had not arrived here when that vote was given; but, as I understand, he stands ready to give just such a vote whenever an occasion shall present. Baker, too, who is now here, says the truth is undoubtedly that way; and whenever he shall speak out, he will say so. Colonel Doniphan, too, the favorite Whig of Missouri, and who overran all Northern Mexico, on his return home in a public speech at St. Louis condemned the administration in relation to the war. If I remember, G. T. M. Davis, who has been through almost the whole war, declares in favor of Mr. Clay; from which I infer that he adopts the sentiments of Mr. Clay, generally at least. On the other hand, I have heard of but one Whig who has been to the war attempting to justify the President's conduct. That one was Captain Bishop, editor of the Charleston Courier, and a very clever fellow. I do not mean this letter for the public, but for you. Before it reaches you, you will have seen and read my pamphlet speech, and perhaps been scared anew by it. After you get over your scare, read it over again, sentence by sentence, and tell me honestly what you think of it. I condensed all I could for fear of being cut off by the hour rule, and when I got through I had spoken but forty-five minutes.

Yours forever,

A. LINCOLN.

**TO WILLIAM H. HERNDON.**

**WASHINGTON, February 2, 1848**

DEAR WILLIAM:—I just take my pen to say that Mr. Stephens, of Georgia, a little, slim, pale-faced, consumptive man, with a voice like Logan's, has just concluded the very best speech of an hour's length I ever heard. My old withered dry eyes are full of tears yet.

If he writes it out anything like he delivered it, our people shall see a good many copies of it.

Yours truly,

A. LINCOLN.

# ON THE MEXICAN WAR

TO WILLIAM H. HERNDON.

WASHINGTON, February 15, 1848.

DEAR WILLIAM:—Your letter of the 29th January was received last night. Being exclusively a constitutional argument, I wish to submit some reflections upon it in the same spirit of kindness that I know actuates you. Let me first state what I understand to be your position. It is that if it shall become necessary to repel invasion, the President may, without violation of the Constitution, cross the line and invade the territory of another country, and that whether such necessity exists in any given case the President is the sole judge.

Before going further consider well whether this is or is not your position. If it is, it is a position that neither the President himself, nor any friend of his, so far as I know, has ever taken. Their only positions are—first, that the soil was ours when the hostilities commenced; and second, that whether it was rightfully ours or not, Congress had annexed it, and the President for that reason was bound to defend it; both of which are as clearly proved to be false in fact as you can prove that your house is mine. The soil was not ours, and Congress did not annex or attempt to annex it. But to return to your position. Allow the President to invade a neighboring nation whenever he shall deem it necessary to repel an invasion, and you allow him to do so whenever he may choose to say he deems it necessary for such purpose, and you allow him to make war at pleasure. Study to see if you can fix any limit to his power in this respect, after having given him so much as you propose. If to-day he should choose to say he thinks it necessary to invade Canada to prevent the British from invading us, how could you stop him? You may say to him,—"I see no probability of the British invading us"; but he will say to you, "Be silent: I see it, if you don't."

The provision of the Constitution giving the war making power to Congress was dictated, as I understand it, by the following reasons: kings had always been involving and impoverishing their people in wars, pretending generally, if not always, that the good of the people was the

object. This our convention understood to be the most oppressive of all kingly oppressions, and they resolved to so frame the Constitution that no one man should hold the power of bringing this oppression upon us. But your view destroys the whole matter, and places our President where kings have always stood. Write soon again.

Yours truly,

A. LINCOLN.

# **REPORT IN THE HOUSE OF REPRESENTATIVES,**

**MARCH 9, 1848.**

Mr. Lincoln, from the Committee on the Postoffice and Post Roads, made the following report:

The Committee on the Post-office and Post Roads, to whom was referred the resolution of the House of Representatives entitled "An Act authorizing postmasters at county seats of justice to receive subscriptions for newspapers and periodicals, to be paid through the agency of the Post-office Department, and for other purposes," beg leave to submit the following report:

The committee have reason to believe that a general wish pervades the community at large that some such facility as the proposed measure should be granted by express law, for subscribing, through the agency of the Post-office Department, to newspapers and periodicals which diffuse daily, weekly, or monthly intelligence of passing events. Compliance with this general wish is deemed to be in accordance with our republican institutions, which can be best sustained by the diffusion of knowledge and the due encouragement of a universal, national spirit of inquiry and discussion of public events through the medium of the public press. The committee, however, has not been insensible to its duty of guarding the Post-office Department against injurious sacrifices for the accomplishment of this object, whereby its ordinary efficacy might be impaired or embarrassed. It has therefore been a subject of much consideration; but it is now confidently hoped that the bill herewith submitted effectually obviates all objections which might exist with regard to a less matured proposition.

The committee learned, upon inquiry, that the Post-office Department, in view of meeting the general wish on this subject, made the experiment through one of its own internal regulations, when the new postage system went into operation on the first of July, 1845, and that it was continued until the thirtieth of September, 1847. But this experiment, for reasons hereafter



stated, proved unsatisfactory, and it was discontinued by order of the Postmaster-General. As far as the committee can at present ascertain, the following seem to have been the principal grounds of dissatisfaction in this experiment:

(1) The legal responsibility of postmasters receiving newspaper subscriptions, or of their sureties, was not defined.

(2) The authority was open to all postmasters instead of being limited to those of specific offices.

(3) The consequence of this extension of authority was that, in innumerable instances, the money, without the previous knowledge or control of the officers of the department who are responsible for the good management of its finances, was deposited in offices where it was improper such funds should be placed; and the repayment was ordered, not by the financial officers, but by the postmasters, at points where it was inconvenient to the department so to disburse its funds.

(4) The inconvenience of accumulating uncertain and fluctuating sums at small offices was felt seriously in consequent overpayments to contractors on their quarterly collecting orders; and, in case of private mail routes, in litigation concerning the misapplication of such funds to the special service of supplying mails.

(5) The accumulation of such funds on draft offices could not be known to the financial clerks of the department in time to control it, and too often this rendered uncertain all their calculations of funds in hand.

(6) The orders of payment were for the most part issued upon the principal offices, such as New York, Philadelphia, Boston, Baltimore, etc., where the large offices of publishers are located, causing an illimitable and uncontrollable drain of the department funds from those points where it was essential to husband them for its own regular disbursements. In Philadelphia alone this drain averaged \$5000 per quarter; and in other cities of the seaboard it was proportionate.

(7) The embarrassment of the department was increased by the illimitable, uncontrollable, and irresponsible scattering of its funds from concentrated points suitable for its distributions, to remote, unsafe, and inconvenient offices, where they could not be again made available till collected by special agents, or were transferred at considerable expense into the principal disbursing offices again.

(8) There was a vast increase of duties thrown upon the limited force before necessary to conduct the business of the department; and from the delay of obtaining vouchers impediments arose to the speedy settlement of accounts with present or retired post-masters, causing postponements which endangered the liability of sureties under the act of limitations, and causing much danger of an increase of such cases.

(9) The most responsible postmasters (at the large offices) were ordered by the least responsible (at small offices) to make payments upon their vouchers, without having the means of ascertaining whether these vouchers were genuine or forged, or if genuine, whether the signers were in or out of office, or solvent or defaulters.

(10) The transaction of this business for subscribers and publishers at the public expense, and the embarrassment, inconvenience, and delay of the department's own business occasioned by it, were not justified by any sufficient remuneration of revenue to sustain the department, as required in every other respect with regard to its agency.

The committee, in view of these objections, has been solicitous to frame a bill which would not be obnoxious to them in principle or in practical effect.

It is confidently believed that by limiting the offices for receiving subscriptions to less than one tenth of the number authorized by the experiment already tried, and designating the county seat in each county for the purpose, the control of the department will be rendered satisfactory; particularly as it will be in the power of the Auditor, who is the officer required by law to check the accounts, to approve or disapprove of the deposits, and to sanction not only the payments, but to point out the place of payment. If these payments should cause a drain on the principal offices of the seaboard, it will be compensated by the accumulation of funds at county seats, where the contractors on those routes can be paid to that extent by the department's drafts, with more local convenience to themselves than by drafts on the seaboard offices.

The legal responsibility for these deposits is defined, and the accumulation of funds at the point of deposit, and the repayment at points drawn upon, being known to and controlled by the Auditor, will not occasion any such embarrassments as were before felt; the record kept by the Auditor on the passing of the certificates through his hands will enable

him to settle accounts without the delay occasioned by vouchers being withheld; all doubt or uncertainty as to the genuineness of certificates, or the propriety of their issue, will be removed by the Auditor's examination and approval; and there can be no risk of loss of funds by transmission, as the certificate will not be payable till sanctioned by the Auditor, and after his sanction the payor need not pay it unless it is presented by the publisher or his known clerk or agent.

The main principle of equivalent for the agency of the department is secured by the postage required to be paid upon the transmission of the certificates, augmenting adequately the post-office revenue.

The committee, conceiving that in this report all the difficulties of the subject have been fully and fairly stated, and that these difficulties have been obviated by the plan proposed in the accompanying bill, and believing that the measure will satisfactorily meet the wants and wishes of a very large portion of the community, beg leave to recommend its adoption.

# **REPORT IN THE HOUSE OF REPRESENTATIVES,**

**MARCH 9, 1848.**

Mr. Lincoln, from the Committee on the Postoffice and Post Roads, made the following report:

The Committee on the Post-office and Post Roads, to whom was referred the petition of H. M. Barney, postmaster at Brimfield, Peoria County, Illinois, report: That they have been satisfied by evidence, that on the 15th of December, 1847, said petitioner had his store, with some fifteen hundred dollars' worth of goods, together with all the papers of the post-office, entirely destroyed by fire; and that the specie funds of the office were melted down, partially lost and partially destroyed; that this large individual loss entirely precludes the idea of embezzlement; that the balances due the department of former quarters had been only about twenty-five dollars; and that owing to the destruction of papers, the exact amount due for the quarter ending December 31, 1847, cannot be ascertained. They therefore report a joint resolution, releasing said petitioner from paying anything for the quarter last mentioned.

## REMARKS IN THE UNITED STATES HOUSE OF REPRESENTATIVES, MARCH 29, 1848.

The bill for raising additional military force for limited time, etc., was reported from Committee on judiciary; similar bills had been reported from Committee on, Public Lands and Military Committee.

Mr. Lincoln said if there was a general desire on the part of the House to pass the bill now he should be glad to have it done—concurring, as he did generally, with the gentleman from Arkansas [Mr. Johnson] that the postponement might jeopard the safety of the proposition. If, however, a reference was to be made, he wished to make a very few remarks in relation to the several subjects desired by the gentlemen to be embraced in amendments to the ninth section of the act of the last session of Congress. The first amendment desired by members of this House had for its only object to give bounty lands to such persons as had served for a time as privates, but had never been discharged as such, because promoted to office. That subject, and no other, was embraced in this bill. There were some others who desired, while they were legislating on this subject, that they should also give bounty lands to the volunteers of the War of 1812. His friend from Maryland said there were no such men. He [Mr. L.] did not say there were many, but he was very confident there were some. His friend from Kentucky near him, [Mr. Gaines] told him he himself was one.

There was still another proposition touching this matter; that was, that persons entitled to bounty lands should by law be entitled to locate these lands in parcels, and not be required to locate them in one body, as was provided by the existing law.

Now he had carefully drawn up a bill embracing these three separate propositions, which he intended to propose as a substitute for all these bills in the House, or in Committee of the Whole on the State of the Union, at some suitable time. If there was a disposition on the part of the House to act at once on this separate proposition, he repeated that, with the gentlemen from Arkansas, he should prefer it lest they should lose all. But if there was to be a reference, he desired to introduce his bill embracing the three

propositions, thus enabling the committee and the House to act at the same time, whether favorably or unfavorably, upon all. He inquired whether an amendment was now in order.

The Speaker replied in the negative.

## **TO ARCHIBALD WILLIAMS.**

**WASHINGTON, April 30, 1848.**

DEAR WILLIAMS:—I have not seen in the papers any evidence of a movement to send a delegate from your circuit to the June convention. I wish to say that I think it all-important that a delegate should be sent. Mr. Clay's chance for an election is just no chance at all. He might get New York, and that would have elected in 1844, but it will not now, because he must now, at the least, lose Tennessee, which he had then, and in addition the fifteen new votes of Florida, Texas, Iowa, and Wisconsin. I know our good friend Browning is a great admirer of Mr. Clay, and I therefore fear he is favoring his nomination. If he is, ask him to discard feeling, and try if he can possibly, as a matter of judgment, count the votes necessary to elect him.

In my judgment we can elect nobody but General Taylor; and we cannot elect him without a nomination. Therefore don't fail to send a delegate.

Your friend as ever,

A. LINCOLN.

# REMARKS IN THE HOUSE OF REPRESENTATIVES,

MAY 11, 1848.

A bill for the admission of Wisconsin into the Union had been passed.

Mr. Lincoln moved to reconsider the vote by which the bill was passed. He stated to the House that he had made this motion for the purpose of obtaining an opportunity to say a few words in relation to a point raised in the course of the debate on this bill, which he would now proceed to make if in order. The point in the case to which he referred arose on the amendment that was submitted by the gentleman from Vermont [Mr. Collamer] in Committee of the Whole on the State of the Union, and which was afterward renewed in the House, in relation to the question whether the reserved sections, which, by some bills heretofore passed, by which an appropriation of land had been made to Wisconsin, had been enhanced in value, should be reduced to the minimum price of the public lands. The question of the reduction in value of those sections was to him at this time a matter very nearly of indifference. He was inclined to desire that Wisconsin should be obliged by having it reduced. But the gentleman from Indiana [Mr. C. B. Smith], the chairman of the Committee on Territories, yesterday associated that question with the general question, which is now to some extent agitated in Congress, of making appropriations of alternate sections of land to aid the States in making internal improvements, and enhancing the price of the sections reserved, and the gentleman from Indiana took ground against that policy. He did not make any special argument in favor of Wisconsin, but he took ground generally against the policy of giving alternate sections of land, and enhancing the price of the reserved sections. Now he [Mr. Lincoln] did not at this time take the floor for the purpose of attempting to make an argument on the general subject. He rose simply to protest against the doctrine which the gentleman from Indiana had avowed in the course of what he [Mr. Lincoln] could not but consider an unsound argument.



It might, however, be true, for anything he knew, that the gentleman from Indiana might convince him that his argument was sound; but he [Mr. Lincoln] feared that gentleman would not be able to convince a majority in Congress that it was sound. It was true the question appeared in a different aspect to persons in consequence of a difference in the point from which they looked at it. It did not look to persons residing east of the mountains as it did to those who lived among the public lands. But, for his part, he would state that if Congress would make a donation of alternate sections of public land for the purpose of internal improvements in his State, and forbid the reserved sections being sold at \$1.25, he should be glad to see the appropriation made; though he should prefer it if the reserved sections were not enhanced in price. He repeated, he should be glad to have such appropriations made, even though the reserved sections should be enhanced in price. He did not wish to be understood as concurring in any intimation that they would refuse to receive such an appropriation of alternate sections of land because a condition enhancing the price of the reserved sections should be attached thereto. He believed his position would now be understood: if not, he feared he should not be able to make himself understood.

But, before he took his seat, he would remark that the Senate during the present session had passed a bill making appropriations of land on that principle for the benefit of the State in which he resided the State of Illinois. The alternate sections were to be given for the purpose of constructing roads, and the reserved sections were to be enhanced in value in consequence. When that bill came here for the action of this House—it had been received, and was now before the Committee on Public Lands—he desired much to see it passed as it was, if it could be put in no more favorable form for the State of Illinois. When it should be before this House, if any member from a section of the Union in which these lands did not lie, whose interest might be less than that which he felt, should propose a reduction of the price of the reserved sections to \$1.25, he should be much obliged; but he did not think it would be well for those who came from the section of the Union in which the lands lay to do so.—He wished it, then, to be understood that he did not join in the warfare against the principle which had engaged the minds of some members of Congress who were favorable to the improvements in the western country. There was a good deal of force, he admitted, in what fell from the chairman of the Committee on Territories.

It might be that there was no precise justice in raising the price of the reserved sections to \$2.50 per acre. It might be proper that the price should be enhanced to some extent, though not to double the usual price; but he should be glad to have such an appropriation with the reserved sections at \$2.50; he should be better pleased to have the price of those sections at something less; and he should be still better pleased to have them without any enhancement at all.

There was one portion of the argument of the gentleman from Indiana, the chairman of the Committee on Territories [Mr. Smith], which he wished to take occasion to say that he did not view as unsound. He alluded to the statement that the General Government was interested in these internal improvements being made, inasmuch as they increased the value of the lands that were unsold, and they enabled the government to sell the lands which could not be sold without them. Thus, then, the government gained by internal improvements as well as by the general good which the people derived from them, and it might be, therefore, that the lands should not be sold for more than \$1.50 instead of the price being doubled. He, however, merely mentioned this in passing, for he only rose to state, as the principle of giving these lands for the purposes which he had mentioned had been laid hold of and considered favorably, and as there were some gentlemen who had constitutional scruples about giving money for these purchases who would not hesitate to give land, that he was not willing to have it understood that he was one of those who made war against that principle. This was all he desired to say, and having accomplished the object with which he rose, he withdrew his motion to reconsider.

# ON TAYLOR'S NOMINATION

TO E. B. WASHBURNE.

WASHINGTON, April 30, 1848.

DEAR WASHBURNE:

I have this moment received your very short note asking me if old Taylor is to be used up, and who will be the nominee. My hope of Taylor's nomination is as high—a little higher than it was when you left. Still, the case is by no means out of doubt. Mr. Clay's letter has not advanced his interests any here. Several who were against Taylor, but not for anybody particularly, before, are since taking ground, some for Scott and some for McLean. Who will be nominated neither I nor any one else can tell. Now, let me pray to you in turn. My prayer is that you let nothing discourage or baffle you, but that, in spite of every difficulty, you send us a good Taylor delegate from your circuit. Make Baker, who is now with you, I suppose, help about it. He is a good hand to raise a breeze.

General Ashley, in the Senate from Arkansas, died yesterday. Nothing else new beyond what you see in the papers.

Yours truly,

A. LINCOLN

# DEFENSE OF MEXICAN WAR POSITION

TO REV. J. M. PECK

WASHINGTON, May 21, 1848. DEAR SIR:

....Not in view of all the facts. There are facts which you have kept out of view. It is a fact that the United States army in marching to the Rio Grande marched into a peaceful Mexican settlement, and frightened the inhabitants away from their homes and their growing crops. It is a fact that Fort Brown, opposite Matamoras, was built by that army within a Mexican cotton-field, on which at the time the army reached it a young cotton crop was growing, and which crop was wholly destroyed and the field itself greatly and permanently injured by ditches, embankments, and the like. It is a fact that when the Mexicans captured Captain Thornton and his command, they found and captured them within another Mexican field.

Now I wish to bring these facts to your notice, and to ascertain what is the result of your reflections upon them. If you deny that they are facts, I think I can furnish proofs which shall convince you that you are mistaken. If you admit that they are facts, then I shall be obliged for a reference to any law of language, law of States, law of nations, law of morals, law of religions, any law, human or divine, in which an authority can be found for saying those facts constitute "no aggression."

Possibly you consider those acts too small for notice. Would you venture to so consider them had they been committed by any nation on earth against the humblest of our people? I know you would not. Then I ask, is the precept "Whatsoever ye would that men should do to you, do ye even so to them" obsolete? of no force? of no application?

Yours truly,

A. LINCOLN.

# ON ZACHARY TAYLOR NOMINATION

## TO ARCHIBALD WILLIAMS.

WASHINGTON, June 12, 1848.

DEAR WILLIAMS:—On my return from Philadelphia, where I had been attending the nomination of "Old Rough," (Zachary Taylor) I found your letter in a mass of others which had accumulated in my absence. By many, and often, it had been said they would not abide the nomination of Taylor; but since the deed has been done, they are fast falling in, and in my opinion we shall have a most overwhelming, glorious triumph. One unmistakable sign is that all the odds and ends are with us—Barnburners, Native Americans, Tyler men, disappointed office-seeking Locofocos, and the Lord knows what. This is important, if in nothing else, in showing which way the wind blows. Some of the sanguine men have set down all the States as certain for Taylor but Illinois, and it as doubtful. Cannot something be done even in Illinois? Taylor's nomination takes the Locos on the blind side. It turns the war thunder against them. The war is now to them the gallows of Haman, which they built for us, and on which they are doomed to be hanged themselves.

Excuse this short letter. I have so many to write that I cannot devote much time to any one.

Yours as ever,  
A. LINCOLN.

# **SPEECH IN THE HOUSE OF REPRESENTATIVES,**

**JUNE 20, 1848.**

In Committee of the Whole on the State of the Union, on the Civil and Diplomatic Appropriation Bill:

Mr. CHAIRMAN:—I wish at all times in no way to practise any fraud upon the House or the committee, and I also desire to do nothing which may be very disagreeable to any of the members. I therefore state in advance that my object in taking the floor is to make a speech on the general subject of internal improvements; and if I am out of order in doing so, I give the chair an opportunity of so deciding, and I will take my seat.

The Chair: I will not undertake to anticipate what the gentleman may say on the subject of internal improvements. He will, therefore, proceed in his remarks, and if any question of order shall be made, the chair will then decide it.

Mr. Lincoln: At an early day of this session the President sent us what may properly be called an internal improvement veto message. The late Democratic convention, which sat at Baltimore, and which nominated General Cass for the Presidency, adopted a set of resolutions, now called the Democratic platform, among which is one in these words:

"That the Constitution does not confer upon the General Government the power to commence and carry on a general system of internal improvements."

General Cass, in his letter accepting the nomination, holds this language:

"I have carefully read the resolutions of the Democratic national convention, laying down the platform of our political faith, and I adhere to them as firmly as I approve them cordially."

These things, taken together, show that the question of internal improvements is now more distinctly made—has become more intense—than at any former period. The veto message and the Baltimore resolution I

understand to be, in substance, the same thing; the latter being the more general statement, of which the former is the amplification the bill of particulars. While I know there are many Democrats, on this floor and elsewhere, who disapprove that message, I understand that all who voted for General Cass will thereafter be counted as having approved it, as having indorsed all its doctrines.

I suppose all, or nearly all, the Democrats will vote for him. Many of them will do so not because they like his position on this question, but because they prefer him, being wrong on this, to another whom they consider farther wrong on other questions. In this way the internal improvement Democrats are to be, by a sort of forced consent, carried over and arrayed against themselves on this measure of policy. General Cass, once elected, will not trouble himself to make a constitutional argument, or perhaps any argument at all, when he shall veto a river or harbor bill; he will consider it a sufficient answer to all Democratic murmurs to point to Mr. Polk's message, and to the Democratic platform. This being the case, the question of improvements is verging to a final crisis; and the friends of this policy must now battle, and battle manfully, or surrender all. In this view, humble as I am, I wish to review, and contest as well as I may, the general positions of this veto message. When I say general positions, I mean to exclude from consideration so much as relates to the present embarrassed state of the treasury in consequence of the Mexican War.

Those general positions are: that internal improvements ought not to be made by the General Government—First. Because they would overwhelm the treasury Second. Because, while their burdens would be general, their benefits would be local and partial, involving an obnoxious inequality; and Third. Because they would be unconstitutional. Fourth. Because the States may do enough by the levy and collection of tonnage duties; or if not—Fifth. That the Constitution may be amended. "Do nothing at all, lest you do something wrong," is the sum of these positions is the sum of this message. And this, with the exception of what is said about constitutionality, applying as forcibly to what is said about making improvements by State authority as by the national authority; so that we must abandon the improvements of the country altogether, by any and every authority, or we must resist and repudiate the doctrines of this message. Let us attempt the latter.

The first position is, that a system of internal improvements would overwhelm the treasury. That in such a system there is a tendency to undue expansion, is not to be denied. Such tendency is founded in the nature of the subject. A member of Congress will prefer voting for a bill which contains an appropriation for his district, to voting for one which does not; and when a bill shall be expanded till every district shall be provided for, that it will be too greatly expanded is obvious. But is this any more true in Congress than in a State Legislature? If a member of Congress must have an appropriation for his district, so a member of a Legislature must have one for his county. And if one will overwhelm the national treasury, so the other will overwhelm the State treasury. Go where we will, the difficulty is the same. Allow it to drive us from the halls of Congress, and it will, just as easily, drive us from the State Legislatures. Let us, then, grapple with it, and test its strength. Let us, judging of the future by the past, ascertain whether there may not be, in the discretion of Congress, a sufficient power to limit and restrain this expansive tendency within reasonable and proper bounds. The President himself values the evidence of the past. He tells us that at a certain point of our history more than two hundred millions of dollars had been applied for to make improvements; and this he does to prove that the treasury would be overwhelmed by such a system. Why did he not tell us how much was granted? Would not that have been better evidence? Let us turn to it, and see what it proves. In the message the President tells us that "during the four succeeding years embraced by the administration of President Adams, the power not only to appropriate money, but to apply it, under the direction and authority of the General Government, as well to the construction of roads as to the improvement of harbors and rivers, was fully asserted and exercised." This, then, was the period of greatest enormity. These, if any, must have been the days of the two hundred millions. And how much do you suppose was really expended for improvements during that four years? Two hundred millions? One hundred? Fifty? Ten? Five? No, sir; less than two millions. As shown by authentic documents, the expenditures on improvements during 1825, 1826, 1827, and 1828 amounted to one million eight hundred and seventy-nine thousand six hundred and twenty-seven dollars and one cent. These four years were the period of Mr. Adams's administration, nearly and substantially. This fact shows that when the power to make improvements "was fully asserted and



exercised," the Congress did keep within reasonable limits; and what has been done, it seems to me, can be done again.

Now for the second portion of the message—namely, that the burdens of improvements would be general, while their benefits would be local and partial, involving an obnoxious inequality. That there is some degree of truth in this position, I shall not deny. No commercial object of government patronage can be so exclusively general as to not be of some peculiar local advantage. The navy, as I understand it, was established, and is maintained at a great annual expense, partly to be ready for war when war shall come, and partly also, and perhaps chiefly, for the protection of our commerce on the high seas. This latter object is, for all I can see, in principle the same as internal improvements. The driving a pirate from the track of commerce on the broad ocean, and the removing of a snag from its more narrow path in the Mississippi River, cannot, I think, be distinguished in principle. Each is done to save life and property, and for nothing else.

The navy, then, is the most general in its benefits of all this class of objects; and yet even the navy is of some peculiar advantage to Charleston, Baltimore, Philadelphia, New York, and Boston, beyond what it is to the interior towns of Illinois. The next most general object I can think of would be improvements on the Mississippi River and its tributaries. They touch thirteen of our States—Pennsylvania, Virginia, Kentucky, Tennessee, Mississippi, Louisiana, Arkansas, Missouri, Illinois, Indiana, Ohio, Wisconsin, and Iowa. Now I suppose it will not be denied that these thirteen States are a little more interested in improvements on that great river than are the remaining seventeen. These instances of the navy and the Mississippi River show clearly that there is something of local advantage in the most general objects. But the converse is also true. Nothing is so local as to not be of some general benefit. Take, for instance, the Illinois and Michigan Canal. Considered apart from its effects, it is perfectly local. Every inch of it is within the State of Illinois. That canal was first opened for business last April. In a very few days we were all gratified to learn, among other things, that sugar had been carried from New Orleans through this canal to Buffalo in New York. This sugar took this route, doubtless, because it was cheaper than the old route. Supposing benefit of the reduction in the cost of carriage to be shared between seller and the buyer, result is that the New Orleans merchant sold his sugar a little dearer, and the people of Buffalo sweetened their coffee a little cheaper, than before,—a

benefit resulting from the canal, not to Illinois, where the canal is, but to Louisiana and New York, where it is not. In other transactions Illinois will, of course, have her share, and perhaps the larger share too, of the benefits of the canal; but this instance of the sugar clearly shows that the benefits of an improvement are by no means confined to the particular locality of the improvement itself. The just conclusion from all this is that if the nation refuse to make improvements of the more general kind because their benefits may be somewhat local, a State may for the same reason refuse to make an improvement of a local kind because its benefits may be somewhat general. A State may well say to the nation, "If you will do nothing for me, I will do nothing for you." Thus it is seen that if this argument of "inequality" is sufficient anywhere, it is sufficient everywhere, and puts an end to improvements altogether. I hope and believe that if both the nation and the States would, in good faith, in their respective spheres do what they could in the way of improvements, what of inequality might be produced in one place might be compensated in another, and the sum of the whole might not be very unequal.

But suppose, after all, there should be some degree of inequality. Inequality is certainly never to be embraced for its own sake; but is every good thing to be discarded which may be inseparably connected with some degree of it? If so, we must discard all government. This Capitol is built at the public expense, for the public benefit; but does any one doubt that it is of some peculiar local advantage to the property-holders and business people of Washington? Shall we remove it for this reason? And if so, where shall we set it down, and be free from the difficulty? To make sure of our object, shall we locate it nowhere, and have Congress hereafter to hold its sessions, as the loafer lodged, "in spots about"? I make no allusion to the present President when I say there are few stronger cases in this world of "burden to the many and benefit to the few," of "inequality," than the Presidency itself is by some thought to be. An honest laborer digs coal at about seventy cents a day, while the President digs abstractions at about seventy dollars a day. The coal is clearly worth more than the abstractions, and yet what a monstrous inequality in the prices! Does the President, for this reason, propose to abolish the Presidency? He does not, and he ought not. The true rule, in determining to embrace or reject anything, is not whether it have any evil in it, but whether it have more of evil than of good. There are few things wholly evil or wholly good. Almost everything,

especially of government policy, is an inseparable compound of the two; so that our best judgment of the preponderance between them is continually demanded. On this principle the President, his friends, and the world generally act on most subjects. Why not apply it, then, upon this question? Why, as to improvements, magnify the evil, and stoutly refuse to see any good in them?

Mr. Chairman, on the third position of the message the constitutional question—I have not much to say. Being the man I am, and speaking, where I do, I feel that in any attempt at an original constitutional argument I should not be and ought not to be listened to patiently. The ablest and the best of men have gone over the whole ground long ago. I shall attempt but little more than a brief notice of what some of them have said. In relation to Mr. Jefferson's views, I read from Mr. Polk's veto message:

"President Jefferson, in his message to Congress in 1806, recommended an amendment of the Constitution, with a view to apply an anticipated surplus in the treasury 'to the great purposes of the public education, roads, rivers, canals, and such other objects of public improvement as it may be thought proper to add to the constitutional enumeration of the federal powers'; and he adds: 'I suppose an amendment to the Constitution, by consent of the States, necessary, because the objects now recommended are not among those enumerated in the Constitution, and to which it permits the public moneys to be applied.' In 1825, he repeated in his published letters the opinion that no such power has been conferred upon Congress."

I introduce this not to controvert just now the constitutional opinion, but to show that, on the question of expediency, Mr. Jefferson's opinion was against the present President; that this opinion of Mr. Jefferson, in one branch at least, is in the hands of Mr. Polk like McFingal's gun—"bears wide and kicks the owner over."

But to the constitutional question. In 1826 Chancellor Kent first published his Commentaries on American law. He devoted a portion of one of the lectures to the question of the authority of Congress to appropriate public moneys for internal improvements. He mentions that the subject had never been brought under judicial consideration, and proceeds to give a brief summary of the discussion it had undergone between the legislative and executive branches of the government. He shows that the legislative branch had usually been for, and the executive against, the power, till the

period of Mr. J.Q. Adams's administration, at which point he considers the executive influence as withdrawn from opposition, and added to the support of the power. In 1844 the chancellor published a new edition of his Commentaries, in which he adds some notes of what had transpired on the question since 1826. I have not time to read the original text on the notes; but the whole may be found on page 267, and the two or three following pages, of the first volume of the edition of 1844. As to what Chancellor Kent seems to consider the sum of the whole, I read from one of the notes:

"Mr. Justice Story, in his Commentaries on the Constitution of the United States, Vol. II., pp. 429-440, and again pp. 519-538, has stated at large the arguments for and against the proposition that Congress have a constitutional authority to lay taxes and to apply the power to regulate commerce as a means directly to encourage and protect domestic manufactures; and without giving any opinion of his own on the contested doctrine, he has left the reader to draw his own conclusions. I should think, however, from the arguments as stated, that every mind which has taken no part in the discussion, and felt no prejudice or territorial bias on either side of the question, would deem the arguments in favor of the Congressional power vastly superior."

It will be seen that in this extract the power to make improvements is not directly mentioned; but by examining the context, both of Kent and Story, it will be seen that the power mentioned in the extract and the power to make improvements are regarded as identical. It is not to be denied that many great and good men have been against the power; but it is insisted that quite as many, as great and as good, have been for it; and it is shown that, on a full survey of the whole, Chancellor Kent was of opinion that the arguments of the latter were vastly superior. This is but the opinion of a man; but who was that man? He was one of the ablest and most learned lawyers of his age, or of any age. It is no disparagement to Mr. Polk, nor indeed to any one who devotes much time to politics, to be placed far behind Chancellor Kent as a lawyer. His attitude was most favorable to correct conclusions. He wrote coolly, and in retirement. He was struggling to rear a durable monument of fame; and he well knew that truth and thoroughly sound reasoning were the only sure foundations. Can the party opinion of a party President on a law question, as this purely is, be at all compared or set in opposition to that of such a man, in such an attitude, as Chancellor Kent? This constitutional question will probably never be better settled than it is,

until it shall pass under judicial consideration; but I do think no man who is clear on the questions of expediency need feel his conscience much pricked upon this.

Mr. Chairman, the President seems to think that enough may be done, in the way of improvements, by means of tonnage duties under State authority, with the consent of the General Government. Now I suppose this matter of tonnage duties is well enough in its own sphere. I suppose it may be efficient, and perhaps sufficient, to make slight improvements and repairs in harbors already in use and not much out of repair. But if I have any correct general idea of it, it must be wholly inefficient for any general beneficent purposes of improvement. I know very little, or rather nothing at all, of the practical matter of levying and collecting tonnage duties; but I suppose one of its principles must be to lay a duty for the improvement of any particular harbor upon the tonnage coming into that harbor; to do otherwise—to collect money in one harbor, to be expended on improvements in another—would be an extremely aggravated form of that inequality which the President so much deprecates. If I be right in this, how could we make any entirely new improvement by means of tonnage duties? How make a road, a canal, or clear a greatly obstructed river? The idea that we could involves the same absurdity as the Irish bull about the new boots. "I shall niver git 'em on," says Patrick, "till I wear 'em a day or two, and stretch 'em a little." We shall never make a canal by tonnage duties until it shall already have been made awhile, so the tonnage can get into it.

After all, the President concludes that possibly there may be some great objects of improvement which cannot be effected by tonnage duties, and which it therefore may be expedient for the General Government to take in hand. Accordingly he suggests, in case any such be discovered, the propriety of amending the Constitution. Amend it for what? If, like Mr. Jefferson, the President thought improvements expedient, but not constitutional, it would be natural enough for him to recommend such an amendment. But hear what he says in this very message:

"In view of these portentous consequences, I cannot but think that this course of legislation should be arrested, even were there nothing to forbid it in the fundamental laws of our Union."

For what, then, would he have the Constitution amended? With him it is a proposition to remove one impediment merely to be met by others which, in

his opinion, cannot be removed, to enable Congress to do what, in his opinion, they ought not to do if they could.

Here Mr. Meade of Virginia inquired if Mr. Lincoln understood the President to be opposed, on grounds of expediency, to any and every improvement.

Mr. Lincoln answered: In the very part of his message of which I am speaking, I understand him as giving some vague expression in favor of some possible objects of improvement; but in doing so I understand him to be directly on the teeth of his own arguments in other parts of it. Neither the President nor any one can possibly specify an improvement which shall not be clearly liable to one or another of the objections he has urged on the score of expediency. I have shown, and might show again, that no work—no object—can be so general as to dispense its benefits with precise equality; and this inequality is chief among the "portentous consequences" for which he declares that improvements should be arrested. No, sir. When the President intimates that something in the way of improvements may properly be done by the General Government, he is shrinking from the conclusions to which his own arguments would force him. He feels that the improvements of this broad and goodly land are a mighty interest; and he is unwilling to confess to the people, or perhaps to himself, that he has built an argument which, when pressed to its conclusions, entirely annihilates this interest.

I have already said that no one who is satisfied of the expediency of making improvements needs be much uneasy in his conscience about its constitutionality. I wish now to submit a few remarks on the general proposition of amending the Constitution. As a general rule, I think we would much better let it alone. No slight occasion should tempt us to touch it. Better not take the first step, which may lead to a habit of altering it. Better, rather, habituate ourselves to think of it as unalterable. It can scarcely be made better than it is. New provisions would introduce new difficulties, and thus create and increase appetite for further change. No, sir; let it stand as it is. New hands have never touched it. The men who made it have done their work, and have passed away. Who shall improve on what they did?

Mr. Chairman, for the purpose of reviewing this message in the least possible time, as well as for the sake of distinctness, I have analyzed its

arguments as well as I could, and reduced them to the propositions I have stated. I have now examined them in detail. I wish to detain the committee only a little while longer with some general remarks upon the subject of improvements. That the subject is a difficult one, cannot be denied. Still it is no more difficult in Congress than in the State Legislatures, in the counties, or in the smallest municipal districts which anywhere exist. All can recur to instances of this difficulty in the case of county roads, bridges, and the like. One man is offended because a road passes over his land, and another is offended because it does not pass over his; one is dissatisfied because the bridge for which he is taxed crosses the river on a different road from that which leads from his house to town; another cannot bear that the county should be got in debt for these same roads and bridges; while not a few struggle hard to have roads located over their lands, and then stoutly refuse to let them be opened until they are first paid the damages. Even between the different wards and streets of towns and cities we find this same wrangling and difficulty. Now these are no other than the very difficulties against which, and out of which, the President constructs his objections of "inequality," "speculation," and "crushing the treasury." There is but a single alternative about them: they are sufficient, or they are not. If sufficient, they are sufficient out of Congress as well as in it, and there is the end. We must reject them as insufficient, or lie down and do nothing by any authority. Then, difficulty though there be, let us meet and encounter it. "Attempt the end, and never stand to doubt; nothing so hard, but search will find it out." Determine that the thing can and shall be done, and then we shall find the way. The tendency to undue expansion is unquestionably the chief difficulty.

How to do something, and still not do too much, is the desideratum. Let each contribute his mite in the way of suggestion. The late Silas Wright, in a letter to the Chicago convention, contributed his, which was worth something; and I now contribute mine, which may be worth nothing. At all events, it will mislead nobody, and therefore will do no harm. I would not borrow money. I am against an overwhelming, crushing system. Suppose that, at each session, Congress shall first determine how much money can, for that year, be spared for improvements; then apportion that sum to the most important objects. So far all is easy; but how shall we determine which are the most important? On this question comes the collision of interests. I shall be slow to acknowledge that your harbor or your river is

more important than mine, and vice versa. To clear this difficulty, let us have that same statistical information which the gentleman from Ohio [Mr. Vinton] suggested at the beginning of this session. In that information we shall have a stern, unbending basis of facts—a basis in no wise subject to whim, caprice, or local interest. The prelimited amount of means will save us from doing too much, and the statistics will save us from doing what we do in wrong places. Adopt and adhere to this course, and, it seems to me, the difficulty is cleared.

One of the gentlemen from South Carolina [Mr. Rhett] very much deprecates these statistics. He particularly objects, as I understand him, to counting all the pigs and chickens in the land. I do not perceive much force in the objection. It is true that if everything be enumerated, a portion of such statistics may not be very useful to this object. Such products of the country as are to be consumed where they are produced need no roads or rivers, no means of transportation, and have no very proper connection with this subject. The surplus—that which is produced in one place to be consumed in another; the capacity of each locality for producing a greater surplus; the natural means of transportation, and their susceptibility of improvement; the hindrances, delays, and losses of life and property during transportation, and the causes of each, would be among the most valuable statistics in this connection. From these it would readily appear where a given amount of expenditure would do the most good. These statistics might be equally accessible, as they would be equally useful, to both the nation and the States. In this way, and by these means, let the nation take hold of the larger works, and the States the smaller ones; and thus, working in a meeting direction, discreetly, but steadily and firmly, what is made unequal in one place may be equalized in another, extravagance avoided, and the whole country put on that career of prosperity which shall correspond with its extent of territory, its natural resources, and the intelligence and enterprise of its people.





# OPPORTUNITIES FOR YOUNG POLITICIANS

TO WILLIAM H. HERNDON.

WASHINGTON, June 22, 1848.

DEAR WILLIAM:—Last night I was attending a sort of caucus of the Whig members, held in relation to the coming Presidential election. The whole field of the nation was scanned, and all is high hope and confidence. Illinois is expected to better her condition in this race. Under these circumstances, judge how heartrending it was to come to my room and find and read your discouraging letter of the 15th. We have made no gains, but have lost "H. R. Robinson, Turner, Campbell, and four or five more." Tell Arney to reconsider, if he would be saved. Baker and I used to do something, but I think you attach more importance to our absence than is just. There is another cause. In 1840, for instance, we had two senators and five representatives in Sangamon; now we have part of one senator and two representatives. With quite one third more people than we had then, we have only half the sort of offices which are sought by men of the speaking sort of talent. This, I think, is the chief cause. Now, as to the young men. You must not wait to be brought forward by the older men. For instance, do you suppose that I should ever have got into notice if I had waited to be hunted up and pushed forward by older men? You young men get together and form a "Rough and Ready Club," and have regular meetings and speeches. Take in everybody you can get. Harrison Grimsley, L. A. Enos, Lee Kimball, and C. W. Matheny will do to begin the thing; but as you go along gather up all the shrewd, wild boys about town, whether just of age, or a little under age, Chris. Logan, Reddick Ridgely, Lewis Zwizler, and hundreds such. Let every one play the part he can play best,—some speak, some sing, and all "holler." Your meetings will be of evenings; the older men, and the women, will go to hear you; so that it will not only contribute to the election of "Old Zach," but will be an interesting pastime, and improving to the intellectual faculties of all engaged. Don't fail to do this.

You ask me to send you all the speeches made about "Old Zach," the war, etc. Now this makes me a little impatient. I have regularly sent you the

Congressional Globe and Appendix, and you cannot have examined them, or you would have discovered that they contain every speech made by every man in both houses of Congress, on every subject, during the session. Can I send any more? Can I send speeches that nobody has made? Thinking it would be most natural that the newspapers would feel interested to give at least some of the speeches to their readers, I at the beginning of the session made arrangements to have one copy of the Globe and Appendix regularly sent to each Whig paper of the district. And yet, with the exception of my own little speech, which was published in two only of the then five, now four, Whig papers, I do not remember having seen a single speech, or even extract from one, in any single one of those papers. With equal and full means on both sides, I will venture that the State Register has thrown before its readers more of Locofoco speeches in a month than all the Whig papers of the district have done of Whig speeches during the session.

If you wish a full understanding of the war, I repeat what I believe I said to you in a letter once before, that the whole, or nearly so, is to be found in the speech of Dixon of Connecticut. This I sent you in pamphlet as well as in the Globe. Examine and study every sentence of that speech thoroughly, and you will understand the whole subject. You ask how Congress came to declare that war had existed by the act of Mexico. Is it possible you don't understand that yet? You have at least twenty speeches in your possession that fully explain it. I will, however, try it once more. The news reached Washington of the commencement of hostilities on the Rio Grande, and of the great peril of General Taylor's army. Everybody, Whigs and Democrats, was for sending them aid, in men and money. It was necessary to pass a bill for this. The Locos had a majority in both houses, and they brought in a bill with a preamble saying: Whereas, War exists by the act of Mexico, therefore we send General Taylor money. The Whigs moved to strike out the preamble, so that they could vote to send the men and money, without saying anything about how the war commenced; but being in the minority, they were voted down, and the preamble was retained. Then, on the passage of the bill, the question came upon them, Shall we vote for preamble and bill together, or against both together? They did not want to vote against sending help to General Taylor, and therefore they voted for both together. Is there any difficulty in understanding this? Even my little speech shows how this was; and if you will go to the library, you may get the Journal of 1845-46, in which you will find the whole for yourself.

We have nothing published yet with special reference to the Taylor race; but we soon will have, and then I will send them to everybody. I made an internal-improvement speech day before yesterday, which I shall send home as soon as I can get it written out and printed,—and which I suppose nobody will read.

Your friend as ever,

A. LINCOLN.

# **SALARY OF JUDGE IN WESTERN VIRGINIA**

## **REMARKS IN THE HOUSE OF REPRESENTATIVES, JUNE 28, 1848.**

Discussion as to salary of judge of western Virginia:—Wishing to increase it from \$1800 to \$2500.

Mr. Lincoln said he felt unwilling to be either unjust or ungenerous, and he wanted to understand the real case of this judicial officer. The gentleman from Virginia had stated that he had to hold eleven courts. Now everybody knew that it was not the habit of the district judges of the United States in other States to hold anything like that number of courts; and he therefore took it for granted that this must happen under a peculiar law which required that large number of courts to be holden every year; and these laws, he further supposed, were passed at the request of the people of that judicial district. It came, then, to this: that the people in the western district of Virginia had got eleven courts to be held among them in one year, for their own accommodation; and being thus better accommodated than neighbors elsewhere, they wanted their judge to be a little better paid. In Illinois there had been until the present season but one district court held in the year. There were now to be two. Could it be that the western district of Virginia furnished more business for a judge than the whole State of Illinois?

# **NATIONAL BANK**

**JULY, 1848,**

[FRAGMENT]

The question of a national bank is at rest. Were I President, I should not urge its reagitiation upon Congress; but should Congress see fit to pass an act to establish such an institution, I should not arrest it by the veto, unless I should consider it subject to some constitutional objection from which I believe the two former banks to have been free.

# **YOUNG v.s. OLD—POLITICAL JEALOUSY**

**TO W. H. HERNDON.**

WASHINGTON, July 10, 1848.

DEAR WILLIAM:

Your letter covering the newspaper slips was received last night. The subject of that letter is exceedingly painful to me, and I cannot but think there is some mistake in your impression of the motives of the old men. I suppose I am now one of the old men; and I declare on my veracity, which I think is good with you, that nothing could afford me more satisfaction than to learn that you and others of my young friends at home were doing battle in the contest and endearing themselves to the people and taking a stand far above any I have ever been able to reach in their admiration. I cannot conceive that other men feel differently. Of course I cannot demonstrate what I say; but I was young once, and I am sure I was never ungenerously thrust back. I hardly know what to say. The way for a young man to rise is to improve himself every way he can, never suspecting that anybody wishes to hinder him. Allow me to assure you that suspicion and jealousy never did help any man in any situation. There may sometimes be ungenerous attempts to keep a young man down; and they will succeed, too, if he allows his mind to be diverted from its true channel to brood over the attempted injury. Cast about and see if this feeling has not injured every person you have ever known to fall into it.

Now, in what I have said I am sure you will suspect nothing but sincere friendship. I would save you from a fatal error. You have been a studious young man. You are far better informed on almost all subjects than I ever have been. You cannot fail in any laudable object unless you allow your mind to be improperly directed. I have some the advantage of you in the world's experience, merely by being older; and it is this that induces me to advise. You still seem to be a little mistaken about the Congressional Globe and Appendix. They contain all of the speeches that are published in any way. My speech and Dayton's speech which you say you got in pamphlet form are both word for word in the Appendix. I repeat again, all are there.

Your friend, as ever,  
A. LINCOLN.



# **GENERAL TAYLOR AND THE VETO**

**SPEECH IN THE HOUSE OF REPRESENTATIVES, JULY  
27, 1848.**

Mr. SPEAKER, our Democratic friends seem to be in a great distress because they think our candidate for the Presidency don't suit us. Most of them cannot find out that General Taylor has any principles at all; some, however, have discovered that he has one, but that one is entirely wrong. This one principle is his position on the veto power. The gentleman from Tennessee [Mr. Stanton] who has just taken his seat, indeed, has said there is very little, if any, difference on this question between General Taylor and all the Presidents; and he seems to think it sufficient detraction from General Taylor's position on it that it has nothing new in it. But all others whom I have heard speak assail it furiously. A new member from Kentucky [Mr. Clark], of very considerable ability, was in particular concerned about it. He thought it altogether novel and unprecedented for a President or a Presidential candidate to think of approving bills whose constitutionality may not be entirely clear to his own mind. He thinks the ark of our safety is gone unless Presidents shall always veto such bills as in their judgment may be of doubtful constitutionality. However clear Congress may be on their authority to pass any particular act, the gentleman from Kentucky thinks the President must veto it if he has doubts about it. Now I have neither time nor inclination to argue with the gentleman on the veto power as an original question; but I wish to show that General Taylor, and not he, agrees with the earlier statesmen on this question. When the bill chartering the first Bank of the United States passed Congress, its constitutionality was questioned. Mr. Madison, then in the House of Representatives, as well as others, had opposed it on that ground. General Washington, as President, was called on to approve or reject it. He sought and obtained on the constitutionality question the separate written opinions of Jefferson, Hamilton, and Edmund Randolph,—they then being respectively Secretary of State, Secretary of the Treasury, and Attorney general. Hamilton's opinion was for the power; while Randolph's and Jefferson's were both against it. Mr. Jefferson, after

giving his opinion deciding only against the constitutionality of the bill, closes his letter with the paragraph which I now read:

"It must be admitted, however, that unless the President's mind, on a view of everything which is urged for and against this bill, is tolerably clear that it is unauthorized by the Constitution,—if the pro and con hang so even as to balance his judgment, a just respect for the wisdom of the legislature would naturally decide the balance in favor of their opinion. It is chiefly for cases where they are clearly misled by error, ambition, or interest, that the Constitution has placed a check in the negative of the President.

"THOMAS JEFFERSON.

"February 15, 1791."

General Taylor's opinion, as expressed in his Allison letter, is as I now read:

"The power given by the veto is a high conservative power; but, in my opinion, should never be exercised except in cases of clear violation of the Constitution, or manifest haste and want of consideration by Congress."

It is here seen that, in Mr. Jefferson's opinion, if on the constitutionality of any given bill the President doubts, he is not to veto it, as the gentleman from Kentucky would have him do, but is to defer to Congress and approve it. And if we compare the opinion of Jefferson and Taylor, as expressed in these paragraphs, we shall find them more exactly alike than we can often find any two expressions having any literal difference. None but interested faultfinders, I think, can discover any substantial variation.

But gentlemen on the other side are unanimously agreed that General Taylor has no other principles. They are in utter darkness as to his opinions on any of the questions of policy which occupy the public attention. But is there any doubt as to what he will do on the prominent questions if elected? Not the least. It is not possible to know what he will or would do in every imaginable case, because many questions have passed away, and others doubtless will arise which none of us have yet thought of; but on the prominent questions of currency, tariff, internal improvements, and Wilmot Proviso, General Taylor's course is at least as well defined as is General Cass's. Why, in their eagerness to get at General Taylor, several Democratic members here have desired to know whether, in case of his election, a bankrupt law is to be established. Can they tell us General Cass's opinion on this question?

[Some member answered, "He is against it."]

Aye, how do you know he is? There is nothing about it in the platform, nor elsewhere, that I have seen. If the gentleman knows of anything which I do not know he can show it. But to return. General Taylor, in his Allison letter, says:

"Upon the subject of the tariff, the currency, the improvement of our great highways, rivers, lakes, and harbors, the will of the people, as expressed through their representatives in Congress, ought to be respected and carried out by the executive."

Now this is the whole matter. In substance, it is this: The people say to General Taylor, "If you are elected, shall we have a national bank?" He answers, "Your will, gentlemen, not mine." "What about the tariff?" "Say yourselves." "Shall our rivers and harbors be improved?" "Just as you please. If you desire a bank, an alteration of the tariff, internal improvements, any or all, I will not hinder you. If you do not desire them, I will not attempt to force them on you. Send up your members of Congress from the various districts, with opinions according to your own, and if they are for these measures, or any of them, I shall have nothing to oppose; if they are not for them, I shall not, by any appliances whatever, attempt to dragoon them into their adoption."

Now can there be any difficulty in understanding this? To you Democrats it may not seem like principle; but surely you cannot fail to perceive the position plainly enough. The distinction between it and the position of your candidate is broad and obvious, and I admit you have a clear right to show it is wrong if you can; but you have no right to pretend you cannot see it at all. We see it, and to us it appears like principle, and the best sort of principle at that—the principle of allowing the people to do as they please with their own business. My friend from Indiana (C. B. Smith) has aptly asked, "Are you willing to trust the people?" Some of you answered substantially, "We are willing to trust the people; but the President is as much the representative of the people as Congress." In a certain sense, and to a certain extent, he is the representative of the people. He is elected by them, as well as Congress is; but can he, in the nature of things know the wants of the people as well as three hundred other men, coming from all the various localities of the nation? If so, where is the propriety of having a Congress? That the Constitution gives the President a negative on

legislation, all know; but that this negative should be so combined with platforms and other appliances as to enable him, and in fact almost compel him, to take the whole of legislation into his own hands, is what we object to, is what General Taylor objects to, and is what constitutes the broad distinction between you and us. To thus transfer legislation is clearly to take it from those who understand with minuteness the interests of the people, and give it to one who does not and cannot so well understand it. I understand your idea that if a Presidential candidate avow his opinion upon a given question, or rather upon all questions, and the people, with full knowledge of this, elect him, they thereby distinctly approve all those opinions. By means of it, measures are adopted or rejected contrary to the wishes of the whole of one party, and often nearly half of the other. Three, four, or half a dozen questions are prominent at a given time; the party selects its candidate, and he takes his position on each of these questions. On all but one his positions have already been indorsed at former elections, and his party fully committed to them; but that one is new, and a large portion of them are against it. But what are they to do? The whole was strung together; and they must take all, or reject all. They cannot take what they like, and leave the rest. What they are already committed to being the majority, they shut their eyes, and gulp the whole. Next election, still another is introduced in the same way. If we run our eyes along the line of the past, we shall see that almost if not quite all the articles of the present Democratic creed have been at first forced upon the party in this very way. And just now, and just so, opposition to internal improvements is to be established if General Cass shall be elected. Almost half the Democrats here are for improvements; but they will vote for Cass, and if he succeeds, their vote will have aided in closing the doors against improvements. Now this is a process which we think is wrong. We prefer a candidate who, like General Taylor, will allow the people to have their own way, regardless of his private opinions; and I should think the internal-improvement Democrats, at least, ought to prefer such a candidate. He would force nothing on them which they don't want, and he would allow them to have improvements which their own candidate, if elected, will not.

Mr. Speaker, I have said General Taylor's position is as well defined as is that of General Cass. In saying this, I admit I do not certainly know what he would do on the Wilmot Proviso. I am a Northern man or rather a Western Free-State man, with a constituency I believe to be, and with personal

feelings I know to be, against the extension of slavery. As such, and with what information I have, I hope and believe General Taylor, if elected, would not veto the proviso. But I do not know it. Yet if I knew he would, I still would vote for him. I should do so because, in my judgment, his election alone can defeat General Cass; and because, should slavery thereby go to the territory we now have, just so much will certainly happen by the election of Cass, and in addition a course of policy leading to new wars, new acquisitions of territory and still further extensions of slavery. One of the two is to be President. Which is preferable?

But there is as much doubt of Cass on improvements as there is of Taylor on the proviso. I have no doubt myself of General Cass on this question; but I know the Democrats differ among themselves as to his position. My internal-improvement colleague [Mr. Wentworth] stated on this floor the other day that he was satisfied Cass was for improvements, because he had voted for all the bills that he [Mr. Wentworth] had. So far so good. But Mr. Polk vetoed some of these very bills. The Baltimore convention passed a set of resolutions, among other things, approving these vetoes, and General Cass declares, in his letter accepting the nomination, that he has carefully read these resolutions, and that he adheres to them as firmly as he approves them cordially. In other words, General Cass voted for the bills, and thinks the President did right to veto them; and his friends here are amiable enough to consider him as being on one side or the other, just as one or the other may correspond with their own respective inclinations. My colleague admits that the platform declares against the constitutionality of a general system of improvements, and that General Cass indorses the platform; but he still thinks General Cass is in favor of some sort of improvements. Well, what are they? As he is against general objects, those he is for must be particular and local. Now this is taking the subject precisely by the wrong end. Particularity expending the money of the whole people for an object which will benefit only a portion of them—is the greatest real objection to improvements, and has been so held by General Jackson, Mr. Polk, and all others, I believe, till now. But now, behold, the objects most general—nearest free from this objection—are to be rejected, while those most liable to it are to be embraced. To return: I cannot help believing that General Cass, when he wrote his letter of acceptance, well understood he was to be claimed by the advocates of both sides of this question, and that he then closed the door against all further expressions of opinion purposely to retain

the benefits of that double position. His subsequent equivocation at Cleveland, to my mind, proves such to have been the case.

One word more, and I shall have done with this branch of the subject. You Democrats, and your candidate, in the main are in favor of laying down in advance a platform—a set of party positions—as a unit, and then of forcing the people, by every sort of appliance, to ratify them, however unpalatable some of them may be. We and our candidate are in favor of making Presidential elections and the legislation of the country distinct matters; so that the people can elect whom they please, and afterward legislate just as they please, without any hindrance, save only so much as may guard against infractions of the Constitution, undue haste, and want of consideration. The difference between us is clear as noonday. That we are right we cannot doubt. We hold the true Republican position. In leaving the people's business in their hands, we cannot be wrong. We are willing, and even anxious, to go to the people on this issue.

But I suppose I cannot reasonably hope to convince you that we have any principles. The most I can expect is to assure you that we think we have and are quite contented with them. The other day one of the gentlemen from Georgia [Mr. Iverson], an eloquent man, and a man of learning, so far as I can judge, not being learned myself, came down upon us astonishingly. He spoke in what the 'Baltimore American' calls the "scathing and withering style." At the end of his second severe flash I was struck blind, and found myself feeling with my fingers for an assurance of my continued existence. A little of the bone was left, and I gradually revived. He eulogized Mr. Clay in high and beautiful terms, and then declared that we had deserted all our principles, and had turned Henry Clay out, like an old horse, to root. This is terribly severe. It cannot be answered by argument—at least I cannot so answer it. I merely wish to ask the gentleman if the Whigs are the only party he can think of who sometimes turn old horses out to root. Is not a certain Martin Van Buren an old horse which your own party have turned out to root? and is he not rooting a little to your discomfort about now? But in not nominating Mr. Clay we deserted our principles, you say. Ah! In what? Tell us, ye men of principle, what principle we violated. We say you did violate principle in discarding Van Buren, and we can tell you how. You violated the primary, the cardinal, the one great living principle of all democratic representative government—the principle that the representative is bound to carry out the known will of his constituents. A large majority of

the Baltimore convention of 1844 were, by their constituents, instructed to procure Van Buren 's nomination if they could. In violation—in utter glaring contempt of this, you rejected him; rejected him, as the gentleman from New York [Mr. Birdsall] the other day expressly admitted, for availability—that same "general availability" which you charge upon us, and daily chew over here, as something exceedingly odious and unprincipled. But the gentleman from Georgia [Mr. Iverson] gave us a second speech yesterday, all well considered and put down in writing, in which Van Buren was scathed and withered a "few" for his present position and movements. I cannot remember the gentleman's precise language; but I do remember he put Van Buren down, down, till he got him where he was finally to "stink" and "rot."

Mr. Speaker, it is no business or inclination of mine to defend Martin Van Buren in the war of extermination now waging between him and his old admirers. I say, "Devil take the hindmost"—and the foremost. But there is no mistaking the origin of the breach; and if the curse of "stinking" and "rotting" is to fall on the first and greatest violators of principle in the matter, I disinterestedly suggest that the gentleman from Georgia and his present co-workers are bound to take it upon themselves. But the gentleman from Georgia further says we have deserted all our principles, and taken shelter under General Taylor's military coat-tail, and he seems to think this is exceedingly degrading. Well, as his faith is, so be it unto him. But can he remember no other military coat-tail under which a certain other party have been sheltering for near a quarter of a century? Has he no acquaintance with the ample military coat tail of General Jackson? Does he not know that his own party have run the five last Presidential races under that coat-tail, and that they are now running the sixth under the same cover? Yes, sir, that coat-tail was used not only for General Jackson himself, but has been clung to, with the grip of death, by every Democratic candidate since. You have never ventured, and dare not now venture, from under it. Your campaign papers have constantly been "Old Hickories," with rude likenesses of the old general upon them; hickory poles and hickory brooms your never-ending emblems; Mr. Polk himself was "Young Hickory," or something so; and even now your campaign paper here is proclaiming that Cass and Butler are of the true "Hickory stripe." Now, sir, you dare not give it up. Like a horde of hungry ticks you have stuck to the tail of the Hermitage Lion to the end of his life; and you are still sticking to it, and drawing a

loathsome sustenance from it, after he is dead. A fellow once advertised that he had made a discovery by which he could make a new man out of an old one, and have enough of the stuff left to make a little yellow dog. Just such a discovery has General Jackson's popularity been to you. You not only twice made President of him out of it, but you have had enough of the stuff left to make Presidents of several comparatively small men since; and it is your chief reliance now to make still another.

Mr. Speaker, old horses and military coat-tails, or tails of any sort, are not figures of speech such as I would be the first to introduce into discussions here; but as the gentleman from Georgia has thought fit to introduce them, he and you are welcome to all you have made, or can make by them. If you have any more old horses, trot them out; any more tails, just cock them and come at us. I repeat, I would not introduce this mode of discussion here; but I wish gentlemen on the other side to understand that the use of degrading figures is a game at which they may not find themselves able to take all the winnings.

["We give it up!"]

Aye, you give it up, and well you may; but for a very different reason from that which you would have us understand. The point—the power to hurt—of all figures consists in the truthfulness of their application; and, understanding this, you may well give it up. They are weapons which hit you, but miss us.

But in my hurry I was very near closing this subject of military tails before I was done with it. There is one entire article of the sort I have not discussed yet,—I mean the military tail you Democrats are now engaged in dovetailing into the great Michigander [Cass]. Yes, sir; all his biographies (and they are legion) have him in hand, tying him to a military tail, like so many mischievous boys tying a dog to a bladder of beans. True, the material they have is very limited, but they drive at it might and main. He invaded Canada without resistance, and he outvaded it without pursuit. As he did both under orders, I suppose there was to him neither credit nor discredit in them; but they constitute a large part of the tail. He was not at Hull's surrender, but he was close by; he was volunteer aid to General Harrison on the day of the battle of the Thames; and as you said in 1840 Harrison was picking huckleberries two miles off while the battle was fought, I suppose it is a just conclusion with you to say Cass was aiding Harrison to pick



huckleberries. This is about all, except the mooted question of the broken sword. Some authors say he broke it, some say he threw it away, and some others, who ought to know, say nothing about it. Perhaps it would be a fair historical compromise to say, if he did not break it, he did not do anything else with it.

By the way, Mr. Speaker, did you know I am a military hero? Yes, sir; in the days of the Black Hawk war I fought, bled, and came away. Speaking of General Cass's career reminds me of my own. I was not at Stiliman's defeat, but I was about as near it as Cass was to Hull's surrender; and, like him, I saw the place very soon afterward. It is quite certain I did not break my sword, for I had none to break; but I bent a musket pretty badly on one occasion. If Cass broke his sword, the idea is he broke it in desperation; I bent the musket by accident. If General Cass went in advance of me in picking huckleberries, I guess I surpassed him in charges upon the wild onions. If he saw any live, fighting Indians, it was more than I did; but I had a good many bloody struggles with the mosquitoes, and although I never fainted from the loss of blood, I can truly say I was often very hungry. Mr. Speaker, if I should ever conclude to doff whatever our Democratic friends may suppose there is of black-cockade federalism about me, and therefore they shall take me up as their candidate for the Presidency, I protest they shall not make fun of me, as they have of General Cass, by attempting to write me into a military hero.

While I have General Cass in hand, I wish to say a word about his political principles. As a specimen, I take the record of his progress in the Wilmot Proviso. In the Washington Union of March 2, 1847, there is a report of a speech of General Cass, made the day before in the Senate, on the Wilmot Proviso, during the delivery of which Mr. Miller of New Jersey is reported to have interrupted him as follows, to wit:

"Mr. Miller expressed his great surprise at the change in the sentiments of the Senator from Michigan, who had been regarded as the great champion of freedom in the Northwest, of which he was a distinguished ornament. Last year the Senator from Michigan was understood to be decidedly in favor of the Wilmot Proviso; and as no reason had been stated for the change, he [Mr. Miller] could not refrain from the expression of his extreme surprise."

To this General Cass is reported to have replied as follows, to wit:

"Mr. Cass said that the course of the Senator from New Jersey was most extraordinary. Last year he [Mr. Cass] should have voted for the proposition, had it come up. But circumstances had altogether changed. The honorable Senator then read several passages from the remarks, as given above, which he had committed to writing, in order to refute such a charge as that of the Senator from New Jersey."

In the "remarks above reduced to writing" is one numbered four, as follows, to wit:

"Fourth. Legislation now would be wholly inoperative, because no territory hereafter to be acquired can be governed without an act of Congress providing for its government; and such an act, on its passage, would open the whole subject, and leave the Congress called on to pass it free to exercise its own discretion, entirely uncontrolled by any declaration found on the statute-book."

In Niles's Register, vol. lxxiii., p. 293, there is a letter of General Cass to ——— Nicholson, of Nashville, Tennessee, dated December 24, 1847, from which the following are correct extracts:

"The Wilmot Proviso has been before the country some time. It has been repeatedly discussed in Congress and by the public press. I am strongly impressed with the opinion that a great change has been going on in the public mind upon this subject,—in my own as well as others',—and that doubts are resolving themselves into convictions that the principle it involves should be kept out of the national legislature, and left to the people of the confederacy in their respective local governments.... Briefly, then, I am opposed to the exercise of any jurisdiction by Congress over this matter; and I am in favor of leaving the people of any territory which may be hereafter acquired the right to regulate it themselves, under the general principles of the Constitution. Because—'First. I do not see in the Constitution any grant of the requisite power to Congress; and I am not disposed to extend a doubtful precedent beyond its necessity,—the establishment of territorial governments when needed,—leaving to the inhabitants all the right compatible with the relations they bear to the confederation."

These extracts show that in 1846 General Cass was for the proviso at once; that in March, 1847, he was still for it, but not just then; and that in December, 1847, he was against it altogether. This is a true index to the

whole man. When the question was raised in 1846, he was in a blustering hurry to take ground for it. He sought to be in advance, and to avoid the uninteresting position of a mere follower; but soon he began to see glimpses of the great Democratic ox-goad waving in his face, and to hear indistinctly a voice saying, "Back! Back, sir! Back a little!" He shakes his head, and bats his eyes, and blunders back to his position of March, 1847; but still the goad waves, and the voice grows more distinct and sharper still, "Back, sir! Back, I say! Further back!"—and back he goes to the position of December, 1847, at which the goad is still, and the voice soothingly says, "So! Stand at that!"

Have no fears, gentlemen, of your candidate. He exactly suits you, and we congratulate you upon it. However much you may be distressed about our candidate, you have all cause to be contented and happy with your own. If elected, he may not maintain all or even any of his positions previously taken; but he will be sure to do whatever the party exigency for the time being may require; and that is precisely what you want. He and Van Buren are the same "manner of men"; and, like Van Buren, he will never desert you till you first desert him.

Mr. Speaker, I adopt the suggestion of a friend, that General Cass is a general of splendidly successful charges—charges, to be sure, not upon the public enemy, but upon the public treasury. He was Governor of Michigan territory, and ex-officio Superintendent of Indian Affairs, from the 9th of October, 1813, till the 31st of July, 1831—a period of seventeen years, nine months, and twenty-two days. During this period he received from the United States treasury, for personal services and personal expenses, the aggregate sum of ninety-six thousand and twenty eight dollars, being an average of fourteen dollars and seventy-nine cents per day for every day of the time. This large sum was reached by assuming that he was doing service at several different places, and in several different capacities in the same place, all at the same time. By a correct analysis of his accounts during that period, the following propositions may be deduced:

First. He was paid in three different capacities during the whole of the time: that is to say—(1) As governor a salary at the rate per year of \$2000. (2) As estimated for office rent, clerk hire, fuel, etc., in superintendence of Indian affairs in Michigan, at the rate per year of \$1500. (3) As

compensation and expenses for various miscellaneous items of Indian service out of Michigan, an average per year of \$625.

Second. During part of the time—that is, from the 9th of October, 1813, to the 29th of May, 1822 he was paid in four different capacities; that is to say, the three as above, and, in addition thereto, the commutation of ten rations per day, amounting per year to \$730.

Third. During another part of the time—that is, from the beginning of 1822 to the 31st of July, '83 he was also paid in four different capacities; that is to say, the first three, as above (the rations being dropped after the 29th of May, 1822), and, in addition thereto, for superintending Indian Agencies at Piqua, Ohio; Fort Wayne, Indiana; and Chicago, Illinois, at the rate per year of \$1500. It should be observed here that the last item, commencing at the beginning of 1822, and the item of rations, ending on the 29th of May, 1822, lap on each other during so much of the time as lies between those two dates.

Fourth. Still another part of the time—that is, from the 31st of October, 1821, to the 29th of May, 1822—he was paid in six different capacities; that is to say, the three first, as above; the item of rations, as above; and, in addition thereto, another item of ten rations per day while at Washington settling his accounts, being at the rate per year of \$730; and also an allowance for expenses traveling to and from Washington, and while there, of \$1022, being at the rate per year of \$1793.

Fifth. And yet during the little portion of the time which lies between the 1st of January, 1822, and the 29th of May, 1822, he was paid in seven different capacities; that is to say, the six last mentioned, and also, at the rate of \$1500 per year, for the Piqua, Fort Wayne, and Chicago service, as mentioned above.

These accounts have already been discussed some here; but when we are amongst them, as when we are in the Patent Office, we must peep about a good deal before we can see all the curiosities. I shall not be tedious with them. As to the large item of \$1500 per year—amounting in the aggregate to \$26,715 for office rent, clerk hire, fuel, etc., I barely wish to remark that, so far as I can discover in the public documents, there is no evidence, by word or inference, either from any disinterested witness or of General Cass himself, that he ever rented or kept a separate office, ever hired or kept a clerk, or even used any extra amount of fuel, etc., in consequence of his

Indian services. Indeed, General Cass's entire silence in regard to these items, in his two long letters urging his claims upon the government, is, to my mind, almost conclusive that no such claims had any real existence.

But I have introduced General Cass's accounts here chiefly to show the wonderful physical capacities of the man. They show that he not only did the labor of several men at the same time, but that he often did it at several places, many hundreds of miles apart, at the same time. And at eating, too, his capacities are shown to be quite as wonderful. From October, 1821, to May, 1822, he eat ten rations a day in Michigan, ten rations a day here in Washington, and near five dollars' worth a day on the road between the two places! And then there is an important discovery in his example—the art of being paid for what one eats, instead of having to pay for it. Hereafter if any nice young man should owe a bill which he cannot pay in any other way, he can just board it out. Mr. Speaker, we have all heard of the animal standing in doubt between two stacks of hay and starving to death. The like of that would never happen to General Cass. Place the stacks a thousand miles apart, he would stand stock-still midway between them, and eat them both at once, and the green grass along the line would be apt to suffer some, too, at the same time. By all means make him President, gentlemen. He will feed you bounteously—if—if there is any left after he shall have helped himself.

But, as General Taylor is, par excellence, the hero of the Mexican War, and as you Democrats say we Whigs have always opposed the war, you think it must be very awkward and embarrassing for us to go for General Taylor. The declaration that we have always opposed the war is true or false, according as one may understand the term "oppose the war." If to say "the war was unnecessarily and unconstitutionally commenced by the President" by opposing the war, then the Whigs have very generally opposed it. Whenever they have spoken at all, they have said this; and they have said it on what has appeared good reason to them. The marching an army into the midst of a peaceful Mexican settlement, frightening the inhabitants away, leaving their growing crops and other property to destruction, to you may appear a perfectly amiable, peaceful, unprovoking procedure; but it does not appear so to us. So to call such an act, to us appears no other than a naked, impudent absurdity, and we speak of it accordingly. But if, when the war had begun, and had become the cause of the country, the giving of our money and our blood, in common with yours,

was support of the war, then it is not true that we have always opposed the war. With few individual exceptions, you have constantly had our votes here for all the necessary supplies. And, more than this, you have had the services, the blood, and the lives of our political brethren in every trial and on every field. The beardless boy and the mature man, the humble and the distinguished—you have had them. Through suffering and death, by disease and in battle they have endured and fought and fell with you. Clay and Webster each gave a son, never to be returned. From the State of my own residence, besides other worthy but less known Whig names, we sent Marshall, Morrison, Baker, and Hardin; they all fought, and one fell, and in the fall of that one we lost our best Whig man. Nor were the Whigs few in number, or laggard in the day of danger. In that fearful, bloody, breathless struggle at Buena Vista, where each man's hard task was to beat back five foes or die himself, of the five high officers who perished, four were Whigs.

In speaking of this, I mean no odious comparison between the lion-hearted Whigs and the Democrats who fought there. On other occasions, and among the lower officers and privates on that occasion, I doubt not the proportion was different. I wish to do justice to all. I think of all those brave men as Americans, in whose proud fame, as an American, I too have a share. Many of them, Whigs and Democrats are my constituents and personal friends; and I thank them,—more than thank them,—one and all, for the high imperishable honor they have conferred on our common State.

But the distinction between the cause of the President in beginning the war, and the cause of the country after it was begun, is a distinction which you cannot perceive. To you the President and the country seem to be all one. You are interested to see no distinction between them; and I venture to suggest that probably your interest blinds you a little. We see the distinction, as we think, clearly enough; and our friends who have fought in the war have no difficulty in seeing it also. What those who have fallen would say, were they alive and here, of course we can never know; but with those who have returned there is no difficulty. Colonel Haskell and Major Gaines, members here, both fought in the war, and both of them underwent extraordinary perils and hardships; still they, like all other Whigs here, vote, on the record, that the war was unnecessarily and unconstitutionally commenced by the President. And even General Taylor himself, the noblest Roman of them all, has declared that as a citizen, and particularly as a soldier, it is sufficient for him to know that his country is at war with a

foreign nation, to do all in his power to bring it to a speedy and honorable termination by the most vigorous and energetic operations, without inquiry about its justice, or anything else connected with it.

Mr. Speaker, let our Democratic friends be comforted with the assurance that we are content with our position, content with our company, and content with our candidate; and that although they, in their generous sympathy, think we ought to be miserable, we really are not, and that they may dismiss the great anxiety they have on our account.

Mr. Speaker, I see I have but three minutes left, and this forces me to throw out one whole branch of my subject. A single word on still another. The Democrats are keen enough to frequently remind us that we have some dissensions in our ranks. Our good friend from Baltimore immediately before me [Mr. McLane] expressed some doubt the other day as to which branch of our party General Taylor would ultimately fall into the hands of. That was a new idea to me. I knew we had dissenters, but I did not know they were trying to get our candidate away from us. I would like to say a word to our dissenters, but I have not the time. Some such we certainly have; have you none, gentlemen Democrats? Is it all union and harmony in your ranks? no bickerings? no divisions? If there be doubt as to which of our divisions will get our candidate, is there no doubt as to which of your candidates will get your party? I have heard some things from New York; and if they are true, one might well say of your party there, as a drunken fellow once said when he heard the reading of an indictment for hog-stealing. The clerk read on till he got to and through the words, "did steal, take, and carry away ten boars, ten sows, ten shoats, and ten pigs," at which he exclaimed, "Well, by golly, that is the most equally divided gang of hogs I ever did hear of!" If there is any other gang of hogs more equally divided than the Democrats of New York are about this time, I have not heard of it.

## **SPEECH DELIVERED AT WORCESTER, MASS., ON SEPT. 12, 1848.**

**(From the Boston Advertiser.)**

Mr. Kellogg then introduced to the meeting the Hon. Abram Lincoln, Whig member of Congress from Illinois, a representative of free soil.

Mr. Lincoln has a very tall and thin figure, with an intellectual face, showing a searching mind, and a cool judgment. He spoke in a clear and cool and very eloquent manner, for an hour and a half, carrying the audience with him in his able arguments and brilliant illustrations—only interrupted by warm and frequent applause. He began by expressing a real feeling of modesty in addressing an audience "this side of the mountains," a part of the country where, in the opinion of the people of his section, everybody was supposed to be instructed and wise. But he had devoted his attention to the question of the coming Presidential election, and was not unwilling to exchange with all whom he might the ideas to which he had arrived. He then began to show the fallacy of some of the arguments against Gen. Taylor, making his chief theme the fashionable statement of all those who oppose him ("the old Locofocos as well as the new") that he has no principles, and that the Whig party have abandoned their principles by adopting him as their candidate. He maintained that Gen. Taylor occupied a high and unexceptionable Whig ground, and took for his first instance and proof of this the statement in the Allison letter—with regard to the bank, tariff, rivers and harbors, etc.—that the will of the people should produce its own results, without executive influence. The principle that the people should do what—under the Constitution—as they please, is a Whig principle. All that Gen. Taylor is not only to consent to, but appeal to the people to judge and act for themselves. And this was no new doctrine for Whigs. It was the "platform" on which they had fought all their battles, the resistance of executive influence, and the principle of enabling the people to frame the government according to their will. Gen. Taylor consents to be the candidate, and to assist the people to do what they think to be their duty,



and think to be best in their national affairs, but because he don't want to tell what we ought to do, he is accused of having no principles. The Whigs here maintained for years that neither the influence, the duress, or the prohibition of the executive should control the legitimately expressed will of the people; and now that, on that very ground, Gen. Taylor says that he should use the power given him by the people to do, to the best of his judgment, the will of the people, he is accused of want of principle, and of inconsistency in position.

Mr. Lincoln proceeded to examine the absurdity of an attempt to make a platform or creed for a national party, to all parts of which all must consent and agree, when it was clearly the intention and the true philosophy of our government, that in Congress all opinions and principles should be represented, and that when the wisdom of all had been compared and united, the will of the majority should be carried out. On this ground he conceived (and the audience seemed to go with him) that Gen. Taylor held correct, sound republican principles.

Mr. Lincoln then passed to the subject of slavery in the States, saying that the people of Illinois agreed entirely with the people of Massachusetts on this subject, except perhaps that they did not keep so constantly thinking about it. All agreed that slavery was an evil, but that we were not responsible for it and cannot affect it in States of this Union where we do not live. But the question of the extension of slavery to new territories of this country is a part of our responsibility and care, and is under our control. In opposition to this Mr. L. believed that the self-named "Free Soil" party was far behind the Whigs. Both parties opposed the extension. As he understood it the new party had no principle except this opposition. If their platform held any other, it was in such a general way that it was like the pair of pantaloons the Yankee pedlar offered for sale, "large enough for any man, small enough for any boy." They therefore had taken a position calculated to break down their single important declared object. They were working for the election of either Gen. Cass or Gen. Taylor. The speaker then went on to show, clearly and eloquently, the danger of extension of slavery, likely to result from the election of Gen. Cass. To unite with those who annexed the new territory to prevent the extension of slavery in that territory seemed to him to be in the highest degree absurd and ridiculous. Suppose these gentlemen succeed in electing Mr. Van Buren, they had no specific means to prevent the extension of slavery to New Mexico and

California, and Gen. Taylor, he confidently believed, would not encourage it, and would not prohibit its restriction. But if Gen. Cass was elected, he felt certain that the plans of farther extension of territory would be encouraged, and those of the extension of slavery would meet no check. The "Free Soil" mart in claiming that name indirectly attempts a deception, by implying that Whigs were not Free Soil men. Declaring that they would "do their duty and leave the consequences to God" merely gave an excuse for taking a course they were not able to maintain by a fair and full argument. To make this declaration did not show what their duty was. If it did we should have no use for judgment, we might as well be made without intellect; and when divine or human law does not clearly point out what is our duty, we have no means of finding out what it is but by using our most intelligent judgment of the consequences. If there were divine law or human law for voting for Martin Van Buren, or if a fair examination of the consequences and just reasoning would show that voting for him would bring about the ends they pretended to wish—then he would give up the argument. But since there was no fixed law on the subject, and since the whole probable result of their action would be an assistance in electing Gen. Cass, he must say that they were behind the Whigs in their advocacy of the freedom of the soil.

Mr. Lincoln proceeded to rally the Buffalo convention for forbearing to say anything—after all the previous declarations of those members who were formerly Whigs—on the subject of the Mexican War, because the Van Burens had been known to have supported it. He declared that of all the parties asking the confidence of the country, this new one had less of principle than any other.

He wondered whether it was still the opinion of these Free Soil gentlemen, as declared in the "whereas" at Buffalo, that the Whig and Democratic parties were both entirely dissolved and absorbed into their own body. Had the Vermont election given them any light? They had calculated on making as great an impression in that State as in any part of the Union, and there their attempts had been wholly ineffectual. Their failure was a greater success than they would find in any other part of the Union.

Mr. Lincoln went on to say that he honestly believed that all those who wished to keep up the character of the Union; who did not believe in

enlarging our field, but in keeping our fences where they are and cultivating our present possessions, making it a garden, improving the morals and education of the people, devoting the administrations to this purpose; all real Whigs, friends of good honest government—the race was ours. He had opportunities of hearing from almost every part of the Union from reliable sources and had not heard of a county in which we had not received accessions from other parties. If the true Whigs come forward and join these new friends, they need not have a doubt. We had a candidate whose personal character and principles he had already described, whom he could not eulogize if he would. Gen. Taylor had been constantly, perseveringly, quietly standing up, doing his duty and asking no praise or reward for it. He was and must be just the man to whom the interests, principles, and prosperity of the country might be safely intrusted. He had never failed in anything he had undertaken, although many of his duties had been considered almost impossible.

Mr. Lincoln then went into a terse though rapid review of the origin of the Mexican War and the connection of the administration and General Taylor with it, from which he deduced a strong appeal to the Whigs present to do their duty in the support of General Taylor, and closed with the warmest aspirations for and confidence in a deserved success.

At the close of his truly masterly and convincing speech, the audience gave three enthusiastic cheers for Illinois, and three more for the eloquent Whig member from the State.

# **HIS FATHER'S REQUEST FOR MONEY**

**TO THOMAS LINCOLN**

WASHINGTON, Dec. 24, 1848.

MY DEAR FATHER:—Your letter of the 7th was received night before last. I very cheerfully send you the twenty dollars, which sum you say is necessary to save your land from sale. It is singular that you should have forgotten a judgment against you; and it is more singular that the plaintiff should have let you forget it so long; particularly as I suppose you always had property enough to satisfy a judgment of that amount. Before you pay it, it would be well to be sure you have not paid, or at least, that you cannot prove you have paid it.

Give my love to mother and all the connections. Affectionately your son,  
A. LINCOLN.

1849

**BILL TO ABOLISH SLAVERY IN THE DISTRICT OF  
COLUMBIA**

Resolved, That the Committee on the District of Columbia be instructed to report a bill in substance as follows:

Sec. 1. Be it enacted by the Senate and House of Representatives of the United States, in Congress assembled, That no person not now within the District of Columbia, nor now owned by any person or persons now resident within it, nor hereafter born within it, shall ever be held in slavery within said District.

Sec. 2. That no person now within said District, or now owned by any person or persons now resident within the same, or hereafter born within it, shall ever be held in slavery without the limits of said District: Provided, That officers of the Government of the United States, being citizens of the slaveholding States, coming into said District on public business, and remaining only so long as may be reasonably necessary for that object, may be attended into and out of said District, and while there, by the necessary servants of themselves and their families, without their right to hold such servants in service being thereby impaired.

Sec. 3. That all children born of slave mothers within said District, on or after the first day of January, in the year of our Lord eighteen hundred and fifty, shall be free; but shall be reasonably supported and educated by the respective owners of their mothers, or by their heirs or representatives, and shall owe reasonable service as apprentices to such owners, heirs, or representatives, until they respectively arrive at the age of \_\_ years, when they shall be entirely free; and the municipal authorities of Washington and Georgetown, within their respective jurisdictional limits, are hereby empowered and required to make all suitable and necessary provision for enforcing obedience to this section, on the part of both masters and apprentices.

Sec. 4. That all persons now within this District, lawfully held as slaves, or now owned by any person or persons now resident within said District, shall remain such at the will of their respective owners, their heirs, and legal representatives: Provided, That such owner, or his legal representative, may at any time receive from the Treasury of the United States the full value of his or her slave, of the class in this section mentioned, upon which such slave shall be forthwith and forever free: And provided further, That the President of the United States, the Secretary of State, and the Secretary of the Treasury shall be a board for determining the value of such slaves as their owners may desire to emancipate under this section, and whose duty it shall be to hold a session for the purpose on the first Monday of each calendar month, to receive all applications, and, on satisfactory evidence in each case that the person presented for valuation is a slave, and of the class in this section mentioned, and is owned by the applicant, shall value such slave at his or her full cash value, and give to the applicant an order on the Treasury for the amount, and also to such slave a certificate of freedom.

Sec. 5. That the municipal authorities of Washington and Georgetown, within their respective jurisdictional limits, are hereby empowered and required to provide active and efficient means to arrest and deliver up to their owners all fugitive slaves escaping into said District.

Sec. 6. That the election officers within said District of Columbia are hereby empowered and required to open polls, at all the usual places of holding elections, on the first Monday of April next, and receive the vote of every free white male citizen above the age of twenty-one years, having resided within said District for the period of one year or more next preceding the time of such voting for or against this act, to proceed in taking said votes, in all respects not herein specified, as at elections under the municipal laws, and with as little delay as possible to transmit correct statements of the votes so cast to the President of the United States; and it shall be the duty of the President to canvass said votes immediately, and if a majority of them be found to be for this act, to forthwith issue his proclamation giving notice of the fact; and this act shall only be in full force and effect on and after the day of such proclamation.

Sec. 7. That involuntary servitude for the punishment of crime, whereof the party shall have been duly convicted, shall in no wise be prohibited by this act.

Sec. 8. That for all the purposes of this act, the jurisdictional limits of Washington are extended to all parts of the District of Columbia not now included within the present limits of Georgetown.

# **BILL GRANTING LANDS TO THE STATES TO MAKE RAILWAYS AND CANALS**

## **REMARKS IN THE HOUSE OF REPRESENTATIVES, FEBRUARY 13, 1849.**

Mr. Lincoln said he had not risen for the purpose of making a speech, but only for the purpose of meeting some of the objections to the bill. If he understood those objections, the first was that if the bill were to become a law, it would be used to lock large portions of the public lands from sale, without at last effecting the ostensible object of the bill—the construction of railroads in the new States; and secondly, that Congress would be forced to the abandonment of large portions of the public lands to the States for which they might be reserved, without their paying for them. This he understood to be the substance of the objections of the gentleman from Ohio to the passage of the bill.

If he could get the attention of the House for a few minutes, he would ask gentlemen to tell us what motive could induce any State Legislature, or individual, or company of individuals, of the new States, to expend money in surveying roads which they might know they could not make.

(A voice: They are not required to make the road.)

Mr. Lincoln continued: That was not the case he was making. What motive would tempt any set of men to go into an extensive survey of a railroad which they did not intend to make? What good would it do? Did men act without motive? Did business men commonly go into an expenditure of money which could be of no account to them? He generally found that men who have money were disposed to hold on to it, unless they could see something to be made by its investment. He could not see what motive of advantage to the new States could be subserved by merely keeping the public lands out of market, and preventing their settlement. As far as he could see, the new States were wholly without any motive to do such a thing. This, then, he took to be a good answer to the first objection.



In relation to the fact assumed, that after a while, the new States having got hold of the public lands to a certain extent, they would turn round and compel Congress to relinquish all claim to them, he had a word to say, by way of recurring to the history of the past. When was the time to come (he asked) when the States in which the public lands were situated would compose a majority of the representation in Congress, or anything like it? A majority of Representatives would very soon reside west of the mountains, he admitted; but would they all come from States in which the public lands were situated? They certainly would not; for, as these Western States grew strong in Congress, the public lands passed away from them, and they got on the other side of the question; and the gentleman from Ohio [Mr. Vinton] was an example attesting that fact.

Mr. Vinton interrupted here to say that he had stood on this question just where he was now, for five and twenty years.

Mr. Lincoln was not making an argument for the purpose of convicting the gentleman of any impropriety at all. He was speaking of a fact in history, of which his State was an example. He was referring to a plain principle in the nature of things. The State of Ohio had now grown to be a giant. She had a large delegation on that floor; but was she now in favor of granting lands to the new States, as she used to be? The New England States, New York, and the Old Thirteen were all rather quiet upon the subject; and it was seen just now that a member from one of the new States was the first man to rise up in opposition. And such would be with the history of this question for the future. There never would come a time when the people residing in the States embracing the public lands would have the entire control of this subject; and so it was a matter of certainty that Congress would never do more in this respect than what would be dictated by a just liberality. The apprehension, therefore, that the public lands were in danger of being wrested from the General Government by the strength of the delegation in Congress from the new States, was utterly futile. There never could be such a thing. If we take these lands (said he) it will not be without your consent. We can never outnumber you. The result is that all fear of the new States turning against the right of Congress to the public domain must be effectually quelled, as those who are opposed to that interest must always hold a vast majority here, and they will never surrender the whole or any part of the public lands unless they themselves choose to do so. That was all he desired to say.



# **ON FEDERAL POLITICAL APPOINTMENTS**

## **TO THE SECRETARY OF THE TREASURY.**

WASHINGTON, March 9, 1849.

HON. SECRETARY OF THE TREASURY.

DEAR SIR: Colonel R. D. Baker and myself are the only Whig members of Congress from Illinois of the Thirtieth, and he of the Thirty-first. We have reason to think the Whigs of that State hold us responsible, to some extent, for the appointments which may be made of our citizens. We do not know you personally, and our efforts to you have so far been unavailing. I therefore hope I am not obtrusive in saying in this way, for him and myself, that when a citizen of Illinois is to be appointed in your department, to an office either in or out of the State, we most respectfully ask to be heard.

Your obedient servant,

A. LINCOLN.

# **MORE POLITICAL PATRONAGE REQUESTS**

## **TO THE SECRETARY OF STATE.**

WASHINGTON, March 10, 1849.

HON. SECRETARY OF STATE.

SIR:—There are several applicants for the office of United States Marshal for the District of Illinois. Among the most prominent of them are Benjamin Bond, Esq., of Carlyle, and Thomas, Esq., of Galena. Mr. Bond I know to be personally every way worthy of the office; and he is very numerously and most respectably recommended. His papers I send to you; and I solicit for his claims a full and fair consideration.

Having said this much, I add that in my individual judgment the appointment of Mr. Thomas would be the better.

Your obedient servant,

A. LINCOLN.

(Indorsed on Mr. Bond's papers.)

In this and the accompanying envelope are the recommendations of about two hundred good citizens of all parts of Illinois, that Benjamin Bond be appointed marshal for that district. They include the names of nearly all our Whigs who now are, or have ever been, members of the State Legislature, besides forty-six of the Democratic members of the present Legislature, and many other good citizens. I add that from personal knowledge I consider Mr. Bond every way worthy of the office, and qualified to fill it. Holding the individual opinion that the appointment of a different gentleman would be better, I ask especial attention and consideration for his claims, and for the opinions expressed in his favor by those over whom I can claim no superiority.

A. LINCOLN.

# TO THE SECRETARY OF THE INTERIOR

SPRINGFIELD, ILLINOIS, April 7, 1849

HON. SECRETARY OF THE HOME DEPARTMENT.

DEAR SIR:—I recommend that Walter Davis be appointed receiver of the land-office at this place, whenever there shall be a vacancy. I cannot say that Mr. Herndon, the present incumbent, has failed in the proper discharge of any of the duties of the office. He is a very warm partisan, and openly and actively opposed to the election of General Taylor. I also understand that since General Taylor's election he has received a reappointment from Mr. Polk, his old commission not having expired. Whether this is true the records of the department will show. I may add that the Whigs here almost universally desire his removal.

I give no opinion of my own, but state the facts, and express the hope that the department will act in this as in all other cases on some proper general rule.

Your obedient servant,

A. LINCOLN.

P. S.—The land district to which this office belongs is very nearly if not entirely within my district; so that Colonel Baker, the other Whig representative, claims no voice in the appointment. A. L.

# TO THE SECRETARY OF THE INTERIOR.

**SPRINGFIELD, ILLINOIS, April 7, 1849.**

HON. SECRETARY OF THE HOME DEPARTMENT.

DEAR SIR:—I recommend that Turner R. King, now of Pekin, Illinois, be appointed register of the land-office at this place whenever there shall be a vacancy.

I do not know that Mr. Barret, the present incumbent, has failed in the proper discharge of any of his duties in the office. He is a decided partisan, and openly and actively opposed the election of General Taylor. I understand, too, that since the election of General Taylor, Mr. Barret has received a reappointment from Mr. Polk, his old commission not having expired. Whether this be true, the records of the department will show.

Whether he should be removed I give no opinion, but merely express the wish that the department may act upon some proper general rule, and that Mr. Barret's case may not be made an exception to it.

Your obedient servant,

A. LINCOLN.

P. S.—The land district to which this office belongs is very nearly if not entirely within my district; so that Colonel Baker, the other Whig representative, claims no voice in the appointment. A. L.

# **TO THE POSTMASTER-GENERAL.**

**SPRINGFIELD, ILLINOIS, April 7, 1849.**

HON. POSTMASTER-GENERAL.

DEAR Sir:—I recommend that Abner Y. Ellis be appointed postmaster at this place, whenever there shall be a vacancy. J. R. Diller, the present incumbent, I cannot say has failed in the proper discharge of any of the duties of the office. He, however, has been an active partisan in opposition to us.

Located at the seat of government of the State, he has been, for part if not the whole of the time he has held the office, a member of the Democratic State Central Committee, signing his name to their addresses and manifestoes; and has been, as I understand, reappointed by Mr. Polk since General Taylor's election. These are the facts of the case as I understand them, and I give no opinion of mine as to whether he should or should not be removed. My wish is that the department may adopt some proper general rule for such cases, and that Mr. Diller may not be made an exception to it, one way or the other.

Your obedient servant,

A. LINCOLN.

P. S.—This office, with its delivery, is entirely within my district; so that Colonel Baker, the other Whig representative, claims no voice in the appointment.L.

# **TO THE SECRETARY OF THE INTERIOR.**

**SPRINGFIELD, ILLINOIS, April 7, 1849.**

HON. SECRETARY OF THE HOME DEPARTMENT.

DEAR SIR:—I recommend that William Butler be appointed pension agent for the Illinois agency, when the place shall be vacant. Mr. Hurst, the present incumbent, I believe has performed the duties very well. He is a decided partisan, and I believe expects to be removed. Whether he shall, I submit to the department. This office is not confined to my district, but pertains to the whole State; so that Colonel Baker has an equal right with myself to be heard concerning it. However, the office is located here; and I think it is not probable that any one would desire to remove from a distance to take it.

Your obedient servant,

A. LINCOLN.



## **TO THOMPSON.**

**SPRINGFIELD, April 25, 1849.**

DEAR THOMPSON: A tirade is still kept up against me here for recommending T. R. King. This morning it is openly avowed that my supposed influence at Washington shall be broken down generally, and King's prospects defeated in particular. Now, what I have done in this matter I have done at the request of you and some other friends in Tazewell; and I therefore ask you to either admit it is wrong or come forward and sustain me. If the truth will permit, I propose that you sustain me in the following manner: copy the inclosed scrap in your own handwriting and get everybody (not three or four, but three or four hundred) to sign it, and then send it to me. Also, have six, eight or ten of our best known Whig friends there write to me individual letters, stating the truth in this matter as they understand it. Don't neglect or delay in the matter. I understand information of an indictment having been found against him about three years ago, for gaming or keeping a gaming house, has been sent to the department. I shall try to take care of it at the department till your action can be had and forwarded on.

Yours as ever,

A. LINCOLN.

# TO THE SECRETARY OF THE INTERIOR.

SPRINGFIELD ILLINOIS. May 10, 1849.

HON. SECRETARY OF THE INTERIOR.

DEAR SIR:—I regret troubling you so often in relation to the land-offices here, but I hope you will perceive the necessity of it, and excuse me. On the 7th of April I wrote you recommending Turner R. King for register, and Walter Davis for receiver. Subsequently I wrote you that, for a private reason, I had concluded to transpose them. That private reason was the request of an old personal friend who himself desired to be receiver, but whom I felt it my duty to refuse a recommendation. He said if I would transpose King and Davis he would be satisfied. I thought it a whim, but, anxious to oblige him, I consented. Immediately he commenced an assault upon King's character, intending, as I suppose, to defeat his appointment, and thereby secure another chance for himself. This double offence of bad faith to me and slander upon a good man is so totally outrageous that I now ask to have King and Davis placed as I originally recommended,—that is, King for register and Davis for receiver.

An effort is being made now to have Mr. Barret, the present register, retained. I have already said he has done the duties of the office well, and I now add he is a gentleman in the true sense. Still, he submits to be the instrument of his party to injure us. His high character enables him to do it more effectually. Last year he presided at the convention which nominated the Democratic candidate for Congress in this district, and afterward ran for the State Senate himself, not desiring the seat, but avowedly to aid and strengthen his party. He made speech after speech with a degree of fierceness and coarseness against General Taylor not quite consistent with his habitually gentlemanly deportment. At least one (and I think more) of those who are now trying to have him retained was himself an applicant for this very office, and, failing to get my recommendation, now takes this turn.

In writing you a third time in relation to these offices, I stated that I supposed charges had been forwarded to you against King, and that I would inquire into the truth of them. I now send you herewith what I suppose will

be an ample defense against any such charges. I ask attention to all the papers, but particularly to the letters of Mr. David Mack, and the paper with the long list of names. There is no mistake about King's being a good man. After the unjust assault upon him, and considering the just claims of Tazewell County, as indicated in the letters I inclose you, it would in my opinion be injustice, and withal a blunder, not to appoint him, at least as soon as any one is appointed to either of the offices here.

Your obedient servant,

A. LINCOLN.

## **TO J. GILLESPIE.**

**SPRINGFIELD, ILL., May 19, 1849.**

DEAR GILLESPIE:

Butterfield will be commissioner of the Gen'l Land Office, unless prevented by strong and speedy efforts. Ewing is for him, and he is only not appointed yet because Old Zach. hangs fire.

I have reliable information of this. Now, if you agree with me that this appointment would dissatisfy rather than gratify the Whigs of this State, that it would slacken their energies in future contests, that his appointment in '41 is an old sore with them which they will not patiently have reopened,—in a word that his appointment now would be a fatal blunder to the administration and our political men here in Illinois, write Crittenden to that effect. He can control the matter. Were you to write Ewing I fear the President would never hear of your letter. This may be mere suspicion. You might write directly to Old Zach. You will be the best judge of the propriety of that. Not a moment's time is to be lost.

Let this be confidential except with Mr. Edwards and a few others whom you know I would trust just as I do you.

Yours as ever,

A. LINCOLN.

# **REQUEST FOR GENERAL LAND-OFFICE APPOINTMENT**

**TO E. EMBREE.**

[Confidential]

SPRINGFIELD, ILLINOIS, May 25, 1849.

HON. E. EMBREE

DEAR SIR:—I am about to ask a favor of you, one which I hope will not cost you much. I understand the General Land-Office is about to be given to Illinois, and that Mr. Ewing desires Justin Butterfield, of Chicago, to be the man. I give you my word, the appointment of Mr. Butterfield will be an egregious political blunder. It will give offence to the whole Whig party here, and be worse than a dead loss to the administration of so much of its patronage. Now, if you can conscientiously do so, I wish you to write General Taylor at once, saying that either I or the man I recommend should in your opinion be appointed to that office, if any one from Illinois shall be. I restrict my request to Illinois because you may have a man from your own State, and I do not ask to interfere with that.

Your friend as ever,

A. LINCOLN.

# **REQUEST FOR A PATENT**

## **IMPROVED METHOD OF LIFTING VESSELS OVER SHOALS.**

Application for Patent:

What I claim as my invention, and desire to secure by letters patent, is the combination of expansible buoyant chambers placed at the sides of a vessel with the main shaft or shafts by means of the sliding spars, which pass down through the buoyant chambers and are made fast to their bottoms and the series of ropes and pulleys or their equivalents in such a manner that by turning the main shaft or shafts in one direction the buoyant chambers will be forced downward into the water, and at the same time expanded and filled with air for buoying up the vessel by the displacement of water, and by turning the shafts in an opposite direction the buoyant chambers will be contracted into a small space and secured against injury.

A. LINCOLN.

# **TO THE SECRETARY OF INTERIOR.**

**SPRINGFIELD, ILL., June 3, 1849**

HON. SECRETARY OF INTERIOR.

DEAR SIR:—Vandalia, the receiver's office at which place is the subject of the within, is not in my district; and I have been much perplexed to express any preference between Dr. Stapp and Mr. Remann. If any one man is better qualified for such an office than all others, Dr. Stapp is that man; still, I believe a large majority of the Whigs of the district prefer Mr. Remann, who also is a good man. Perhaps the papers on file will enable you to judge better than I can. The writers of the within are good men, residing within the land district.

Your obt. servant,

A. LINCOLN.

**TO W. H. HERNDON.**

**SPRINGFIELD, June 5, 1849.**

DEAR WILLIAM:—Your two letters were received last night. I have a great many letters to write, and so cannot write very long ones. There must be some mistake about Walter Davis saying I promised him the post-office. I did not so promise him. I did tell him that if the distribution of the offices should fall into my hands, he should have something; and if I shall be convinced he has said any more than this, I shall be disappointed. I said this much to him because, as I understand, he is of good character, is one of the young men, is of the mechanics, and always faithful and never troublesome; a Whig, and is poor, with the support of a widow mother thrown almost exclusively on him by the death of his brother. If these are wrong reasons, then I have been wrong; but I have certainly not been selfish in it, because in my greatest need of friends he was against me, and for Baker.

Yours as ever,

A. LINCOLN.

P. S. Let the above be confidential.



## **TO J. GILLESPIE.**

### **DEAR GILLESPIE:**

Mr. Edwards is unquestionably offended with me in connection with the matter of the General Land-Office. He wrote a letter against me which was filed at the department.

The better part of one's life consists of his friendships; and, of them, mine with Mr. Edwards was one of the most cherished. I have not been false to it. At a word I could have had the office any time before the department was committed to Mr. Butterfield, at least Mr. Ewing and the President say as much. That word I forbore to speak, partly for other reasons, but chiefly for Mr. Edwards' sake, losing the office (that he might gain it) I was always for; but to lose his friendship, by the effort for him, would oppress me very much, were I not sustained by the utmost consciousness of rectitude. I first determined to be an applicant, unconditionally, on the 2nd of June; and I did so then upon being informed by a telegraphic despatch that the question was narrowed down to Mr. B and myself, and that the Cabinet had postponed the appointment three weeks, for my benefit. Not doubting that Mr. Edwards was wholly out of the question I, nevertheless, would not then have become an applicant had I supposed he would thereby be brought to suspect me of treachery to him. Two or three days afterwards a conversation with Levi Davis convinced me Mr. Edwards was dissatisfied; but I was then too far in to get out. His own letter, written on the 25th of April, after I had fully informed him of all that had passed, up to within a few days of that time, gave assurance I had that entire confidence from him which I felt my uniform and strong friendship for him entitled me to. Among other things it says, "Whatever course your judgment may dictate as proper to be pursued, shall never be excepted to by me." I also had had a letter from Washington, saying Chambers, of the Republic, had brought a rumor then, that Mr. E had declined in my favor, which rumor I judged came from Mr. E himself, as I had not then breathed of his letter to any living creature. In saying I had never, before the 2nd of June, determined to be an applicant, unconditionally, I mean to admit that, before then, I had said substantially I

would take the office rather than it should be lost to the State, or given to one in the State whom the Whigs did not want; but I aver that in every instance in which I spoke of myself, I intended to keep, and now believe I did keep, Mr. E above myself. Mr. Edwards' first suspicion was that I had allowed Baker to overreach me, as his friend, in behalf of Don Morrison. I knew this was a mistake; and the result has proved it. I understand his view now is, that if I had gone to open war with Baker I could have ridden him down, and had the thing all my own way. I believe no such thing. With Baker and some strong man from the Military tract & elsewhere for Morrison, and we and some strong man from the Wabash & elsewhere for Mr. E, it was not possible for either to succeed. I believed this in March, and I know it now. The only thing which gave either any chance was the very thing Baker & I proposed,—an adjustment with themselves.

You may wish to know how Butterfield finally beat me. I can not tell you particulars now, but will when I see you. In the meantime let it be understood I am not greatly dissatisfied,—I wish the offer had been so bestowed as to encourage our friends in future contests, and I regret exceedingly Mr. Edwards' feelings towards me. These two things away, I should have no regrets,—at least I think I would not.

Write me soon.

Your friend, as ever,

A. LINCOLN.

# **RESOLUTIONS OF SYMPATHY WITH THE CAUSE OF HUNGARIAN FREEDOM,**

**SEPTEMBER [1??], 1849.**

At a meeting to express sympathy with the cause of Hungarian freedom, Dr. Todd, Thos. Lewis, Hon. A. Lincoln, and Wm. Carpenter were appointed a committee to present appropriate resolutions, which reported through Hon. A. Lincoln the following:

Resolved, That, in their present glorious struggle for liberty, the Hungarians command our highest admiration and have our warmest sympathy.

Resolved, That they have our most ardent prayers for their speedy triumph and final success.

Resolved, That the Government of the United States should acknowledge the independence of Hungary as a nation of freemen at the very earliest moment consistent with our amicable relations with the government against which they are contending.

Resolved, That, in the opinion of this meeting, the immediate acknowledgment of the independence of Hungary by our government is due from American freemen to their struggling brethren, to the general cause of republican liberty, and not violative of the just rights of any nation or people.

**TO Dr. WILLIAM FITHIAN.**

**SPRINGFIELD, Sept. 14, 1849.**

Dr. WILLIAM FITHIAN, Danville, Ill.

DEAR DOCTOR:—Your letter of the 9th was received a day or two ago. The notes and mortgages you enclosed me were duly received. I also got the original Blanchard mortgage from Antrim Campbell, with whom Blanchard had left it for you. I got a decree of foreclosure on the whole; but, owing to there being no redemption on the sale to be under the Blanchard mortgage, the court allowed Mobley till the first of March to pay the money, before advertising for sale. Stuart was empowered by Mobley to appear for him, and I had to take such decree as he would consent to, or none at all. I cast the matter about in my mind and concluded that as I could not get a decree we would put the accrued interest at interest, and thereby more than match the fact of throwing the Blanchard debt back from twelve to six per cent., it was better to do it. This is the present state of the case.

I can well enough understand and appreciate your suggestions about the Land-Office at Danville; but in my present condition, I can do nothing.

Yours, as ever,

A. LINCOLN.

**SPRINGFIELD, Dec. 15, 1849.**

——— **ESQ.**

DEAR SIR:—On my return from Kentucky I found your letter of the 7th of November, and have delayed answering it till now for the reason I now briefly state. From the beginning of our acquaintance I had felt the greatest kindness for you and had supposed it was reciprocated on your part. Last summer, under circumstances which I mentioned to you, I was painfully constrained to withhold a recommendation which you desired, and shortly afterwards I learned, in such a way as to believe it, that you were indulging in open abuse of me. Of course my feelings were wounded. On receiving your last letter the question occurred whether you were attempting to use me at the same time you would injure me, or whether you might not have been misrepresented to me. If the former, I ought not to answer you; if the latter, I ought, and so I have remained in suspense. I now enclose you the letter, which you may use if you see fit.

Yours, etc.,

A. LINCOLN.

**1850**

## **RESOLUTIONS ON THE DEATH OF JUDGE NATHANIEL POPE.**

Circuit and District Court of the U. S. in and for the State and District of Illinois. Monday, June 3, 1850.

On the opening of the Court this morning, the Hon. A. Lincoln, a member of the Bar of this Court, suggested the death of the Hon. Nathaniel Pope, late a judge of this Court, since the adjournment of the last term; whereupon, in token of respect for the memory of the deceased, it is ordered that the Court do now adjourn until to-morrow morning at ten o'clock.

The Hon. Stephen T. Logan, the Hon. Norman H. Purple, the Hon. David L. Gregg, the Hon. A. Lincoln, and George W. Meeker, Esq., were appointed a Committee to prepare resolutions.

Whereupon, the Hon. Stephen T. Logan, in behalf of the Committee, presented the following preamble and resolutions:

Whereas The Hon. Nathaniel Pope, District Judge of the United States Court for the District of Illinois, having departed this life during the last vacation of said Court, and the members of the Bar of said Court, entertaining the highest veneration for his memory, a profound respect for his ability, great experience, and learning as a judge, and cherishing for his many virtues, public and private, his earnest simplicity of character and unostentatious deportment, both in his public and private relations, the most lively and affectionate recollections, have

Resolved, That, as a manifestation of their deep sense of the loss which has been sustained in his death, they will wear the usual badge of mourning during the residue of the term.

Resolved, That the Chairman communicate to the family of the deceased a copy of these proceedings, with an assurance of our sincere condolence on account of their heavy bereavement.

Resolved, That the Hon. A. Williams, District Attorney of this Court, be requested in behalf of the meeting to present these proceedings to the

Circuit Court, and respectfully to ask that they may be entered on the records.

E. N. POWELL, Sec'y. SAMUEL H. TREAT, Ch'n.



# NOTES FOR LAW LECTURE

(fragments)

JULY 1, 1850

DISCOURAGE LITIGATION. Persuade your neighbors to compromise whenever you can. Point out to them how the nominal winner is often a real loser—in fees, expenses, and waste of time. As a peace-maker the lawyer has a superior opportunity of being a good man. There will still be business enough.

Never stir up litigation. A worse man can scarcely be found than one who does this. Who can be more nearly a fiend than he who habitually overhauls the register of deeds in search of defects in titles, whereon to stir up strife, and put money in his pocket? A moral tone ought to be infused into the profession which should drive such men out of it.

The matter of fees is important, far beyond the mere question of bread and butter involved. Properly attended to, fuller justice is done to both lawyer and client. An exorbitant fee should never be claimed. As a general rule never take your whole fee in advance, nor any more than a small retainer. When fully paid beforehand, you are more than a common mortal if you can feel the same interest in the case as if something was still in prospect for you, as well as for your client. And when you lack interest in the case the job will very likely lack skill and diligence in the performance. Settle the amount of fee and take a note in advance. Then you will feel that you are working for something, and you are sure to do your work faithfully and well. Never sell a fee note—at least not before the consideration service is performed. It leads to negligence and dishonesty—negligence by losing interest in the case, and dishonesty in refusing to refund when you have allowed the consideration to fail.

This idea of a refund or reduction of charges from the lawyer in a failed case is a new one to me—but not a bad one.



**1851**

# **LETTERS TO FAMILY MEMBERS**

## TO JOHN D. JOHNSTON.

January 2, 1851

DEAR JOHNSTON:—Your request for eighty dollars I do not think it best to comply with now. At the various times when I have helped you a little you have said to me, "We can get along very well now"; but in a very short time I find you in the same difficulty again. Now, this can only happen by some defect in your conduct. What that defect is, I think I know. You are not lazy, and still you are an idler. I doubt whether, since I saw you, you have done a good whole day's work in any one day. You do not very much dislike to work, and still you do not work much merely because it does not seem to you that you could get much for it. This habit of uselessly wasting time is the whole difficulty; it is vastly important to you, and still more so to your children, that you should break the habit. It is more important to them, because they have longer to live, and can keep out of an idle habit before they are in it, easier than they can get out after they are in.

You are now in need of some money; and what I propose is, that you shall go to work, "tooth and nail," for somebody who will give you money for it. Let father and your boys take charge of your things at home, prepare for a crop, and make the crop, and you go to work for the best money wages, or in discharge of any debt you owe, that you can get; and, to secure you a fair reward for your labor, I now promise you, that for every dollar you will, between this and the first of May, get for your own labor, either in money or as your own indebtedness, I will then give you one other dollar. By this, if you hire yourself at ten dollars a month, from me you will get ten more, making twenty dollars a month for your work. In this I do not mean you shall go off to St. Louis, or the lead mines, or the gold mines in California, but I mean for you to go at it for the best wages you can get close to home in Coles County. Now, if you will do this, you will be soon out of debt, and, what is better, you will have a habit that will keep you from getting in debt again. But, if I should now clear you out of debt, next year you would be just as deep in as ever. You say you would almost give your place in heaven for seventy or eighty dollars. Then you value your

place in heaven very cheap, for I am sure you can, with the offer I make, get the seventy or eighty dollars for four or five months' work. You say if I will furnish you the money you will deed me the land, and, if you don't pay the money back, you will deliver possession. Nonsense! If you can't now live with the land, how will you then live without it? You have always been kind to me, and I do not mean to be unkind to you. On the contrary, if you will but follow my advice, you will find it worth more than eighty times eighty dollars to you.

Affectionately your brother,

A. LINCOLN.

## TO C. HOYT.

SPRINGFIELD, Jan. 11, 1851.

C. HOYT, ESQ.

MY DEAR SIR:—Our case is decided against us. The decision was announced this morning. Very sorry, but there is no help. The history of the case since it came here is this. On Friday morning last, Mr. Joy filed his papers, and entered his motion for a mandamus, and urged me to take up the motion as soon as possible. I already had the points and authority sent me by you and by Mr. Goodrich, but had not studied them. I began preparing as fast as possible.

The evening of the same day I was again urged to take up the case. I refused on the ground that I was not ready, and on which plea I also got off over Saturday. But on Monday (the 14th) I had to go into it. We occupied the whole day, I using the large part. I made every point and used every authority sent me by yourself and by Mr. Goodrich; and in addition all the points I could think of and all the authorities I could find myself. When I closed the argument on my part, a large package was handed me, which proved to be the plat you sent me.

The court received it of me, but it was not different from the plat already on the record. I do not think I could ever have argued the case better than I did. I did nothing else, but prepare to argue and argue this case, from Friday morning till Monday evening. Very sorry for the result; but I do not think it could have been prevented.

Your friend, as ever,

A. LINCOLN.

## **TO JOHN D. JOHNSTON.**

**SPRINGFIELD, January 12, 1851**

DEAR BROTHER:—On the day before yesterday I received a letter from Harriet, written at Greenup. She says she has just returned from your house, and that father is very low and will hardly recover. She also says you have written me two letters, and that, although you do not expect me to come now, you wonder that I do not write.

I received both your letters, and although I have not answered them it is not because I have forgotten them, or been uninterested about them, but because it appeared to me that I could write nothing which would do any good. You already know I desire that neither father nor mother shall be in want of any comfort, either in health or sickness, while they live; and I feel sure you have not failed to use my name, if necessary, to procure a doctor, or anything else for father in his present sickness. My business is such that I could hardly leave home now, if it was not as it is, that my own wife is sick abed. (It is a case of baby-sickness, and I suppose is not dangerous.) I sincerely hope father may recover his health, but at all events, tell him to remember to call upon and confide in our great and good and merciful Maker, who will not turn away from him in any extremity. He notes the fall of a sparrow, and numbers the hairs of our heads, and He will not forget the dying man who puts his trust in Him. Say to him that if we could meet now it is doubtful whether it would not be more painful than pleasant, but that if it be his lot to go now, he will soon have a joyous meeting with many loved ones gone before, and where the rest of us, through the help of God, hope ere long to join them.

Write to me again when you receive this.

Affectionately,

A. LINCOLN.



# **PETITION ON BEHALF OF ONE JOSHUA GIPSON**

**TO THE JUDGE OF THE SANGAMON COUNTY COURT,**

MAY 13, 1851. TO THE HONORABLE, THE JUDGE OF THE COUNTY COURT IN AND FOR THE COUNTY OF SANGAMON AND STATE OF ILLINOIS:

Your Petitioner, Joshua Gipson, respectfully represents that on or about the 21st day of December, 1850, a judgment was rendered against your Petitioner for costs, by J. C. Spugg, one of the Justices of the Peace in and for said County of Sangamon, in a suit wherein your Petitioner was plaintiff and James L. and C. B. Gerard were defendants; that said judgment was not the result of negligence on the part of your Petitioner; that said judgment, in his opinion, is unjust and erroneous in this, that the defendants were at that time and are indebted to this Petitioner in the full amount of the principal and interest of the note sued on, the principal being, as affiant remembers and believes, thirty-one dollars and eighty two cents; and that, as affiant is informed and believes, the defendants succeeded in the trial of said cause by proving old claims against your petitioner, in set-off against said note, which claims had been settled, adjusted and paid before said note was executed. Your Petitioner further states that the reasons of his not being present at said trial, as he was not, and of its not being in his power to take an appeal in the ordinary way, as it was not, were that your Petitioner then resided in Edgar County about one hundred and twenty miles from where defendants resided; that a very short time before the suit was commenced your Petitioner was in Sangamon County for the purpose of collecting debts due him, and with the rest, the note in question, which note had then been given more than a year, that your Petitioner then saw the defendant J. L. Gerard who is the principal in said note, and solicited payment of the same; that said defendant then made no pretense that he did not owe the same, but on the contrary expressly promised that he would come into Springfield, in a very few days and either pay the money, or give a new note, payable by

the then next Christmas; that your Petitioner accordingly left said note with said J. C. Spugg, with directions to give defendant full time to pay the money or give the new note as above, and if he did neither to sue; and then affiant came home to Edgar County, not having the slightest suspicion that if suit should be brought, the defendants would make any defense whatever; and your Petitioner never did in any way learn that said suit had been commenced until more than twenty days after it had been decided against him. He therefore prays for a writ of Certiorari.

*HIS*  
*JOSHUA x GIPSON*  
*MARK*

**TO J. D. JOHNSTON.**

**SPRINGFIELD, Aug. 31, 1851**

DEAR BROTHER: Inclosed is the deed for the land. We are all well, and have nothing in the way of news. We have had no Cholera here for about two weeks.

Give my love to all, and especially to Mother.

Yours as ever,

A. LINCOLN.

**TO J. D. JOHNSTON.**

**SHELBYVILLE, Nov. 4, 1851**

DEAR BROTHER:

When I came into Charleston day before yesterday I learned that you are anxious to sell the land where you live, and move to Missouri. I have been thinking of this ever since, and cannot but think such a notion is utterly foolish. What can you do in Missouri better than here? Is the land richer? Can you there, any more than here, raise corn and wheat and oats without work? Will anybody there, any more than here, do your work for you? If you intend to go to work, there is no better place than right where you are; if you do not intend to go to work you cannot get along anywhere. Squirming and crawling about from place to place can do no good. You have raised no crop this year, and what you really want is to sell the land, get the money and spend it. Part with the land you have, and, my life upon it, you will never after own a spot big enough to bury you in. Half you will get for the land you spend in moving to Missouri, and the other half you will eat and drink and wear out, and no foot of land will be bought. Now I feel it is my duty to have no hand in such a piece of foolery. I feel that it is so even on your own account, and particularly on Mother's account. The eastern forty acres I intend to keep for Mother while she lives; if you will not cultivate it, it will rent for enough to support her; at least it will rent for something. Her dower in the other two forties she can let you have, and no thanks to me.

Now do not misunderstand this letter. I do not write it in any unkindness. I write it in order, if possible, to get you to face the truth, which truth is, you are destitute because you have idled away all your time. Your thousand pretenses for not getting along better are all nonsense; they deceive nobody but yourself. Go to work is the only cure for your case.

A word for Mother: Chapman tells me he wants you to go and live with him. If I were you I would try it awhile. If you get tired of it (as I think you will not) you can return to your own home. Chapman feels very kindly to you; and I have no doubt he will make your situation very pleasant.

Sincerely yours,  
A. LINCOLN.

**Nov. 4, 1851**

**DEAR MOTHER:**

Chapman tells me he wants you to go and live with him. If I were you I would try it awhile. If you get tired of it (as I think you will not) you can return to your own home. Chapman feels very kindly to you; and I have no doubt he will make your situation very pleasant.

Sincerely your son,

A. LINCOLN.

## **TO JOHN D. JOHNSTON.**

**SHELBYVILLE, November 9, 1851**

DEAR BROTHER:—When I wrote you before, I had not received your letter. I still think as I did, but if the land can be sold so that I get three hundred dollars to put to interest for Mother, I will not object, if she does not. But before I will make a deed, the money must be had, or secured beyond all doubt, at ten per cent.

As to Abram, I do not want him, on my own account; but I understand he wants to live with me, so that he can go to school and get a fair start in the world, which I very much wish him to have. When I reach home, if I can make it convenient to take, I will take him, provided there is no mistake between us as to the object and terms of my taking him. In haste, as ever,

A. LINCOLN.

## TO JOHN D. JOHNSTON.

SPRINGFIELD, November 25, 1851.

DEAR BROTHER:—Your letter of the 22d is just received. Your proposal about selling the east forty acres of land is all that I want or could claim for myself; but I am not satisfied with it on Mother's account—I want her to have her living, and I feel that it is my duty, to some extent, to see that she is not wronged. She had a right of dower (that is, the use of one-third for life) in the other two forties; but, it seems, she has already let you take that, hook and line. She now has the use of the whole of the east forty, as long as she lives; and if it be sold, of course she is entitled to the interest on all the money it brings, as long as she lives; but you propose to sell it for three hundred dollars, take one hundred away with you, and leave her two hundred at 8 per cent., making her the enormous sum of 16 dollars a year. Now, if you are satisfied with treating her in that way, I am not. It is true that you are to have that forty for two hundred dollars, at Mother's death, but you are not to have it before. I am confident that land can be made to produce for Mother at least \$30 a year, and I can not, to oblige any living person, consent that she shall be put on an allowance of sixteen dollars a year.

Yours, etc.,

A. LINCOLN.



**1852**

# **EULOGY ON HENRY CLAY,**

**DELIVERED IN THE STATE HOUSE AT SPRINGFIELD,  
ILLINOIS, JULY 16, 1852.**

On the fourth day of July, 1776, the people of a few feeble and oppressed colonies of Great Britain, inhabiting a portion of the Atlantic coast of North America, publicly declared their national independence, and made their appeal to the justice of their cause and to the God of battles for the maintenance of that declaration. That people were few in number and without resources, save only their wise heads and stout hearts. Within the first year of that declared independence, and while its maintenance was yet problematical, while the bloody struggle between those resolute rebels and their haughty would-be masters was still waging,—of undistinguished parents and in an obscure district of one of those colonies Henry Clay was born. The infant nation and the infant child began the race of life together. For three quarters of a century they have travelled hand in hand. They have been companions ever. The nation has passed its perils, and it is free, prosperous, and powerful. The child has reached his manhood, his middle age, his old age, and is dead. In all that has concerned the nation the man ever sympathized; and now the nation mourns the man.

The day after his death one of the public journals, opposed to him politically, held the following pathetic and beautiful language, which I adopt partly because such high and exclusive eulogy, originating with a political friend, might offend good taste, but chiefly because I could not in any language of my own so well express my thoughts:

"Alas, who can realize that Henry Clay is dead! Who can realize that never again that majestic form shall rise in the council-chambers of his country to beat back the storms of anarchy which may threaten, or pour the oil of peace upon the troubled billows as they rage and menace around! Who can realize that the workings of that mighty mind have ceased, that the throbbings of that gallant heart are stilled, that the mighty sweep of that graceful arm will be felt no more, and the magic of that eloquent tongue, which spake as spake no other tongue besides, is hushed hushed for ever!

Who can realize that freedom's champion, the champion of a civilized world and of all tongues and kindreds of people, has indeed fallen! Alas, in those dark hours of peril and dread which our land has experienced, and which she may be called to experience again, to whom now may her people look up for that counsel and advice which only wisdom and experience and patriotism can give, and which only the undoubting confidence of a nation will receive? Perchance in the whole circle of the great and gifted of our land there remains but one on whose shoulders the mighty mantle of the departed statesman may fall; one who while we now write is doubtless pouring his tears over the bier of his brother and friend brother, friend, ever, yet in political sentiment as far apart as party could make them. Ah, it is at times like these that the petty distinctions of mere party disappear. We see only the great, the grand, the noble features of the departed statesman; and we do not even beg permission to bow at his feet and mingle our tears with those who have ever been his political adherents—we do [not] beg this permission, we claim it as a right, though we feel it as a privilege. Henry Clay belonged to his country—to the world; mere party cannot claim men like him. His career has been national, his fame has filled the earth, his memory will endure to the last syllable of recorded time.

"Henry Clay is dead! He breathed his last on yesterday, at twenty minutes after eleven, in his chamber at Washington. To those who followed his lead in public affairs, it more appropriately belongs to pronounce his eulogy and pay specific honors to the memory of the illustrious dead. But all Americans may show the grief which his death inspires, for his character and fame are national property. As on a question of liberty he knew no North, no South, no East, no West, but only the Union which held them all in its sacred circle, so now his countrymen will know no grief that is not as wide-spread as the bounds of the confederacy. The career of Henry Clay was a public career. From his youth he has been devoted to the public service, at a period, too, in the world's history justly regarded as a remarkable era in human affairs. He witnessed in the beginning the throes of the French Revolution. He saw the rise and fall of Napoleon. He was called upon to legislate for America and direct her policy when all Europe was the battlefield of contending dynasties, and when the struggle for supremacy imperilled the rights of all neutral nations. His voice spoke war and peace in the contest with Great Britain.

"When Greece rose against the Turks and struck for liberty, his name was mingled with the battle-cry of freedom. When South America threw off the thralldom of Spain, his speeches were read at the head of her armies by Bolivar. His name has been, and will continue to be, hallowed in two hemispheres, for it is

*"'One of the few, the immortal names  
That were not born to die!'"*

"To the ardent patriot and profound statesman he added a quality possessed by few of the gifted on earth. His eloquence has not been surpassed. In the effective power to move the heart of man, Clay was without an equal, and the heaven-born endowment, in the spirit of its origin, has been most conspicuously exhibited against intestine feud. On at least three important occasions he has quelled our civil commotions by a power and influence which belonged to no other statesman of his age and times. And in our last internal discord, when this Union trembled to its centre, in old age he left the shades of private life, and gave the death-blow to fraternal strife, with the vigor of his earlier years, in a series of senatorial efforts which in themselves would bring immortality by challenging comparison with the efforts of any statesman in any age. He exorcised the demon which possessed the body politic, and gave peace to a distracted land. Alas! the achievement cost him his life. He sank day by day to the tomb his pale but noble brow bound with a triple wreath, put there by a grateful country. May his ashes rest in peace, while his spirit goes to take its station among the great and good men who preceded him."

While it is customary and proper upon occasions like the present to give a brief sketch of the life of the deceased, in the case of Mr. Clay it is less necessary than most others; for his biography has been written and rewritten and read and reread for the last twenty-five years; so that, with the exception of a few of the latest incidents of his life, all is as well known as it can be. The short sketch which I give is, therefore, merely to maintain the connection of this discourse.

Henry Clay was born on the twelfth day of April, 1777, in Hanover County, Virginia. Of his father, who died in the fourth or fifth year of Henry's age, little seems to be known, except that he was a respectable man and a preacher of the Baptist persuasion. Mr. Clay's education to the end of life was comparatively limited. I say "to the end of life," because I have

understood that from time to time he added something to his education during the greater part of his whole life. Mr. Clay's lack of a more perfect early education, however it may be regretted generally, teaches at least one profitable lesson: it teaches that in this country one can scarcely be so poor but that, if he will, he can acquire sufficient education to get through the world respectably. In his twenty-third year Mr. Clay was licensed to practise law, and emigrated to Lexington, Kentucky. Here he commenced and continued the practice till the year 1803, when he was first elected to the Kentucky Legislature. By successive elections he was continued in the Legislature till the latter part of 1806, when he was elected to fill a vacancy of a single session in the United States Senate. In 1807 he was again elected to the Kentucky House of Representatives, and by that body chosen Speaker. In 1808 he was re-elected to the same body. In 1809 he was again chosen to fill a vacancy of two years in the United States Senate. In 1811 he was elected to the United States House of Representatives, and on the first day of taking his seat in that body he was chosen its Speaker. In 1813 he was again elected Speaker. Early in 1814, being the period of our last British war, Mr. Clay was sent as commissioner, with others, to negotiate a treaty of peace, which treaty was concluded in the latter part of the same year. On his return from Europe he was again elected to the lower branch of Congress, and on taking his seat in December, 1815, was called to his old post-the Speaker's chair, a position in which he was retained by successive elections, with one brief intermission, till the inauguration of John Quincy Adams, in March, 1825. He was then appointed Secretary of State, and occupied that important station till the inauguration of General Jackson, in March, 1829. After this he returned to Kentucky, resumed the practice of law, and continued it till the autumn of 1831, when he was by the Legislature of Kentucky again placed in the United States Senate. By a reelection he was continued in the Senate till he resigned his seat and retired, in March, 1848. In December, 1849, he again took his seat in the Senate, which he again resigned only a few months before his death.

By the foregoing it is perceived that the period from the beginning of Mr. Clay's official life in 1803 to the end of 1852 is but one year short of half a century, and that the sum of all the intervals in it will not amount to ten years. But mere duration of time in office constitutes the smallest part of Mr. Clay's history. Throughout that long period he has constantly been the most loved and most implicitly followed by friends, and the most dreaded

by opponents, of all living American politicians. In all the great questions which have agitated the country, and particularly in those fearful crises, the Missouri question, the nullification question, and the late slavery question, as connected with the newly acquired territory, involving and endangering the stability of the Union, his has been the leading and most conspicuous part. In 1824 he was first a candidate for the Presidency, and was defeated; and, although he was successively defeated for the same office in 1832 and in 1844, there has never been a moment since 1824 till after 1848 when a very large portion of the American people did not cling to him with an enthusiastic hope and purpose of still elevating him to the Presidency. With other men, to be defeated was to be forgotten; but with him defeat was but a trifling incident, neither changing him nor the world's estimate of him. Even those of both political parties who have been preferred to him for the highest office have run far briefer courses than he, and left him still shining high in the heavens of the political world. Jackson, Van Buren, Harnson, Polk, and Taylor all rose after, and set long before him. The spell—the long-enduring spell—with which the souls of men were bound to him is a miracle. Who can compass it? It is probably true he owed his pre-eminence to no one quality, but to a fortunate combination of several. He was surpassingly eloquent; but many eloquent men fail utterly, and they are not, as a class, generally successful. His judgment was excellent; but many men of good judgment live and die unnoticed. His will was indomitable; but this quality often secures to its owner nothing better than a character for useless obstinacy. These, then, were Mr. Clay's leading qualities. No one of them is very uncommon; but all together are rarely combined in a single individual, and this is probably the reason why such men as Henry Clay are so rare in the world.

Mr. Clay's eloquence did not consist, as many fine specimens of eloquence do, of types and figures, of antithesis and elegant arrangement of words and sentences, but rather of that deeply earnest and impassioned tone and manner which can proceed only from great sincerity, and a thorough conviction in the speaker of the justice and importance of his cause. This it is that truly touches the chords of sympathy; and those who heard Mr. Clay never failed to be moved by it, or ever afterward forgot the impression. All his efforts were made for practical effect. He never spoke merely to be heard. He never delivered a Fourth of July oration, or a eulogy on an occasion like this. As a politician or statesman, no one was so habitually

careful to avoid all sectional ground. Whatever he did he did for the whole country. In the construction of his measures, he ever carefully surveyed every part of the field, and duly weighed every conflicting interest. Feeling as he did, and as the truth surely is, that the world's best hope depended on the continued union of these States, he was ever jealous of and watchful for whatever might have the slightest tendency to separate them.

Mr. Clay's predominant sentiment, from first to last, was a deep devotion to the cause of human liberty—a strong sympathy with the oppressed everywhere, and an ardent wish for their elevation. With him this was a primary and all-controlling passion. Subsidiary to this was the conduct of his whole life. He loved his country partly because it was his own country, and mostly because it was a free country; and he burned with a zeal for its advancement, prosperity, and glory, because he saw in such the advancement, prosperity, and glory of human liberty, human right, and human nature. He desired the prosperity of his countrymen, partly because they were his countrymen, but chiefly to show to the world that free men could be prosperous.

That his views and measures were always the wisest needs not to be affirmed; nor should it be on this occasion, where so many thinking differently join in doing honor to his memory. A free people in times of peace and quiet when pressed by no common danger—naturally divide into parties. At such times the man who is of neither party is not, cannot be, of any consequence. Mr. Clay therefore was of a party. Taking a prominent part, as he did, in all the great political questions of his country for the last half century, the wisdom of his course on many is doubted and denied by a large portion of his countrymen; and of such it is not now proper to speak particularly. But there are many others, about his course upon which there is little or no disagreement amongst intelligent and patriotic Americans. Of these last are the War of 1812, the Missouri question, nullification, and the now recent compromise measures. In 1812 Mr. Clay, though not unknown, was still a young man. Whether we should go to war with Great Britain being the question of the day, a minority opposed the declaration of war by Congress, while the majority, though apparently inclined to war, had for years wavered, and hesitated to act decisively. Meanwhile British aggressions multiplied, and grew more daring and aggravated. By Mr. Clay more than any other man the struggle was brought to a decision in Congress. The question, being now fully before Congress, came up in a

variety of ways in rapid succession, on most of which occasions Mr. Clay spoke. Adding to all the logic of which the subject was susceptible that noble inspiration which came to him as it came to no other, he aroused and nerved and inspired his friends, and confounded and bore down all opposition. Several of his speeches on these occasions were reported and are still extant, but the best of them all never was. During its delivery the reporters forgot their vocation, dropped their pens, and sat enchanted from near the beginning to quite the close. The speech now lives only in the memory of a few old men, and the enthusiasm with which they cherish their recollection of it is absolutely astonishing. The precise language of this speech we shall never know; but we do know we cannot help knowing—that with deep pathos it pleaded the cause of the injured sailor, that it invoked the genius of the Revolution, that it apostrophized the names of Otis, of Henry, and of Washington, that it appealed to the interests, the pride, the honor, and the glory of the nation, that it shamed and taunted the timidity of friends, that it scorned and scouted and withered the temerity of domestic foes, that it bearded and defied the British lion, and, rising and swelling and maddening in its course, it sounded the onset, till the charge, the shock, the steady struggle, and the glorious victory all passed in vivid review before the entranced hearers.

Important and exciting as was the war question of 1812, it never so alarmed the sagacious statesmen of the country for the safety of the Republic as afterward did the Missouri question. This sprang from that unfortunate source of discord—negro slavery. When our Federal Constitution was adopted, we owned no territory beyond the limits or ownership of the States, except the territory northwest of the River Ohio and east of the Mississippi. What has since been formed into the States of Maine, Kentucky and Tennessee, was, I believe, within the limits of or owned by Massachusetts, Virginia, and North Carolina. As to the Northwestern Territory, provision had been made even before the adoption of the Constitution that slavery should never go there. On the admission of States into the Union, carved from the territory we owned before the Constitution, no question, or at most no considerable question, arose about slavery—those which were within the limits of or owned by the old States following respectively the condition of the parent State, and those within the Northwest Territory following the previously made provision. But in 1803 we purchased Louisiana of the French, and it included with much



more what has since been formed into the State of Missouri. With regard to it, nothing had been done to forestall the question of slavery. When, therefore, in 1819, Missouri, having formed a State constitution without excluding slavery, and with slavery already actually existing within its limits, knocked at the door of the Union for admission, almost the entire representation of the non-slaveholding States objected. A fearful and angry struggle instantly followed. This alarmed thinking men more than any previous question, because, unlike all the former, it divided the country by geographical lines. Other questions had their opposing partisans in all localities of the country and in almost every family, so that no division of the Union could follow such without a separation of friends to quite as great an extent as that of opponents. Not so with the Missouri question. On this a geographical line could be traced, which in the main would separate opponents only. This was the danger. Mr. Jefferson, then in retirement, wrote:

"I had for a long time ceased to read newspapers or to pay any attention to public affairs, confident they were in good hands and content to be a passenger in our bark to the shore from which I am not distant. But this momentous question, like a firebell in the night, awakened and filled me with terror. I considered it at once as the knell of the Union. It is hushed, indeed, for the moment. But this is a reprieve only, not a final sentence. A geographical line coinciding with a marked principle, moral and political, once conceived and held up to the angry passions of men, will never be obliterated, and every irritation will mark it deeper and deeper. I can say with conscious truth that there is not a man on earth who would sacrifice more than I would to relieve us from this heavy reproach in any practicable way.

"The cession of that kind of property—for it is so misnamed—is a bagatelle which would not cost me a second thought if in that way a general emancipation and expatriation could be effected, and gradually and with due sacrifices I think it might be. But as it is, we have the wolf by the ears, and we can neither hold him nor safely let him go. Justice is in one scale, and self-preservation in the other."

Mr. Clay was in Congress, and, perceiving the danger, at once engaged his whole energies to avert it. It began, as I have said, in 1819; and it did not terminate till 1821. Missouri would not yield the point; and Congress that

is, a majority in Congress—by repeated votes showed a determination not to admit the State unless it should yield. After several failures, and great labor on the part of Mr. Clay to so present the question that a majority could consent to the admission, it was by a vote rejected, and, as all seemed to think, finally. A sullen gloom hung over the nation. All felt that the rejection of Missouri was equivalent to a dissolution of the Union, because those States which already had what Missouri was rejected for refusing to relinquish would go with Missouri. All deprecated and deplored this, but none saw how to avert it. For the judgment of members to be convinced of the necessity of yielding was not the whole difficulty; each had a constituency to meet and to answer to. Mr. Clay, though worn down and exhausted, was appealed to by members to renew his efforts at compromise. He did so, and by some judicious modifications of his plan, coupled with laborious efforts with individual members and his own overmastering eloquence upon that floor, he finally secured the admission of the State. Brightly and captivating as it had previously shown, it was now perceived that his great eloquence was a mere embellishment, or at most but a helping hand to his inventive genius and his devotion to his country in the day of her extreme peril.

After the settlement of the Missouri question, although a portion of the American people have differed with Mr. Clay, and a majority even appear generally to have been opposed to him on questions of ordinary administration, he seems constantly to have been regarded by all as the man for the crisis. Accordingly, in the days of nullification, and more recently in the reappearance of the slavery question connected with our territory newly acquired of Mexico, the task of devising a mode of adjustment seems to have been cast upon Mr. Clay by common consent—and his performance of the task in each case was little else than a literal fulfilment of the public expectation.

Mr. Clay's efforts in behalf of the South Americans, and afterward in behalf of the Greeks, in the times of their respective struggles for civil liberty, are among the finest on record, upon the noblest of all themes, and bear ample corroboration of what I have said was his ruling passion—a love of liberty and right, unselfishly, and for their own sakes.

Having been led to allude to domestic slavery so frequently already, I am unwilling to close without referring more particularly to Mr. Clay's views

and conduct in regard to it. He ever was on principle and in feeling opposed to slavery. The very earliest, and one of the latest, public efforts of his life, separated by a period of more than fifty years, were both made in favor of gradual emancipation. He did not perceive that on a question of human right the negroes were to be excepted from the human race. And yet Mr. Clay was the owner of slaves. Cast into life when slavery was already widely spread and deeply seated, he did not perceive, as I think no wise man has perceived, how it could be at once eradicated without producing a greater evil even to the cause of human liberty itself. His feeling and his judgment, therefore, ever led him to oppose both extremes of opinion on the subject. Those who would shiver into fragments the Union of these States, tear to tatters its now venerated Constitution, and even burn the last copy of the Bible, rather than slavery should continue a single hour, together with all their more halting sympathizers, have received, and are receiving, their just execration; and the name and opinions and influence of Mr. Clay are fully and, as I trust, effectually and enduringly arrayed against them. But I would also, if I could, array his name, opinions, and influence against the opposite extreme—against a few but an increasing number of men who, for the sake of perpetuating slavery, are beginning to assail and to ridicule the white man's charter of freedom, the declaration that "all men are created free and equal." So far as I have learned, the first American of any note to do or attempt this was the late John C. Calhoun; and if I mistake not, it soon after found its way into some of the messages of the Governor of South Carolina. We, however, look for and are not much shocked by political eccentricities and heresies in South Carolina. But only last year I saw with astonishment what purported to be a letter of a very distinguished and influential clergyman of Virginia, copied, with apparent approbation, into a St. Louis newspaper, containing the following to me very unsatisfactory language:

"I am fully aware that there is a text in some Bibles that is not in mine. Professional abolitionists have made more use of it than of any passage in the Bible. It came, however, as I trace it, from Saint Voltaire, and was baptized by Thomas Jefferson, and since almost universally regarded as canonical authority`All men are born free and equal.'

"This is a genuine coin in the political currency of our generation. I am sorry to say that I have never seen two men of whom it is true. But I must admit I never saw the Siamese Twins, and therefore will not dogmatically say that no man ever saw a proof of this sage aphorism."

This sounds strangely in republican America. The like was not heard in the fresher days of the republic. Let us contrast with it the language of that truly national man whose life and death we now commemorate and lament: I quote from a speech of Mr. Clay delivered before the American Colonization Society in 1827:

"We are reproached with doing mischief by the agitation of this question. The society goes into no household to disturb its domestic tranquillity. It addresses itself to no slaves to weaken their obligations of obedience. It seeks to affect no man's property. It neither has the power nor the will to affect the property of any one contrary to his consent. The execution of its scheme would augment instead of diminishing the value of property left behind. The society, composed of free men, conceals itself only with the free. Collateral consequences we are not responsible for. It is not this society which has produced the great moral revolution which the age exhibits. What would they who thus reproach us have done? If they would repress all tendencies toward liberty and ultimate emancipation, they must do more than put down the benevolent efforts of this society. They must go back to the era of our liberty and independence, and muzzle the cannon which thunders its annual joyous return. They must renew the slave trade, with all its train of atrocities. They must suppress the workings of British philanthropy, seeking to meliorate the condition of the unfortunate West Indian slave. They must arrest the career of South American deliverance from thralldom. They must blow out the moral lights around us and extinguish that greatest torch of all which America presents to a benighted world—pointing the way to their rights, their liberties, and their happiness. And when they have achieved all those purposes their work will be yet incomplete. They must penetrate the human soul, and eradicate the light of reason and the love of liberty. Then, and not till then, when universal darkness and despair prevail, can you perpetuate slavery and repress all sympathy and all humane and benevolent efforts among free men in behalf of the unhappy portion of our race doomed to bondage."

The American Colonization Society was organized in 1816. Mr. Clay, though not its projector, was one of its earliest members; and he died, as for many preceding years he had been, its president. It was one of the most cherished objects of his direct care and consideration, and the association of his name with it has probably been its very greatest collateral support. He considered it no demerit in the society that it tended to relieve the slave-

holders from the troublesome presence of the free negroes; but this was far from being its whole merit in his estimation. In the same speech from which we have quoted he says:

"There is a moral fitness in the idea of returning to Africa her children, whose ancestors have been torn from her by the ruthless hand of fraud and violence. Transplanted in a foreign land, they will carry back to their native soil the rich fruits of religion, civilization, law, and liberty. May it not be one of the great designs of the Ruler of the universe, whose ways are often inscrutable by short-sighted mortals, thus to transform an original crime into a signal blessing to that most unfortunate portion of the globe?"

This suggestion of the possible ultimate redemption of the African race and African continent was made twenty-five years ago. Every succeeding year has added strength to the hope of its realization. May it indeed be realized. Pharaoh's country was cursed with plagues, and his hosts were lost in the Red Sea, for striving to retain a captive people who had already served them more than four hundred years. May like disasters never befall us! If, as the friends of colonization hope, the present and coming generations of our countrymen shall by any means succeed in freeing our land from the dangerous presence of slavery, and at the same time in restoring a captive people to their long-lost fatherland with bright prospects for the future, and this too so gradually that neither races nor individuals shall have suffered by the change, it will indeed be a glorious consummation. And if to such a consummation the efforts of Mr. Clay shall have contributed, it will be what he most ardently wished, and none of his labors will have been more valuable to his country and his kind.

But Henry Clay is dead. His long and eventful life is closed. Our country is prosperous and powerful; but could it have been quite all it has been, and is, and is to be, without Henry Clay? Such a man the times have demanded, and such in the providence of God was given us. But he is gone. Let us strive to deserve, as far as mortals may, the continued care of Divine Providence, trusting that in future national emergencies He will not fail to provide us the instruments of safety and security.

NOTE. We are indebted for a copy of this speech to the courtesy of Major Wm. H. Bailhache, formerly one of the proprietors of the Illinois State Journal.



# CHALLENGED VOTERS

## OPINION ON THE ILLINOIS ELECTION LAW.

SPRINGFIELD, November 1, 1852

A leading article in the Daily Register of this morning has induced some of our friends to request our opinion on the election laws as applicable to challenged voters. We have examined the present constitution of the State, the election law of 1849, and the unrepealed parts of the election law in the revised code of 1845; and we are of the opinion that any person taking the oath prescribed in the act of 1849 is entitled to vote unless counter-proof be made satisfactory to a majority of the judges that such oath is untrue; and that for the purpose of obtaining such counter-proof, the proposed voter may be asked questions in the way of cross-examination, and other independent testimony may be received. We base our opinion as to receiving counter-proof upon the unrepealed Section nineteen of the election law in the revised code.

*A. LINCOLN,*  
*B. S. EDWARDS*  
*S. T. LOGAN.*  
*S. H. TREAT*

**1853**



# **LEGAL OFFICE WORK**

**TO JOSHUA R. STANFORD.**

**PEKIN, MAY 12, 1853**

Mr. JOSHUA R. STANFORD.

SIR:—I hope the subject-matter of this letter will appear a sufficient apology to you for the liberty I, a total stranger, take in addressing you. The persons here holding two lots under a conveyance made by you, as the attorney of Daniel M. Baily, now nearly twenty-two years ago, are in great danger of losing the lots, and very much, perhaps all, is to depend on the testimony you give as to whether you did or did not account to Baily for the proceeds received by you on this sale of the lots. I, therefore, as one of the counsel, beg of you to fully refresh your recollection by any means in your power before the time you may be called on to testify. If persons should come about you, and show a disposition to pump you on the subject, it may be no more than prudent to remember that it may be possible they design to misrepresent you and embarrass the real testimony you may ultimately give. It may be six months or a year before you are called on to testify.

Respectfully,

A. LINCOLN.

**1854**

**TO O. L. DAVIS.**

SPRINGFIELD, June 22, 1854.

O. L. DAVIS, ESQ.

DEAR SIR:—You, no doubt, remember the enclosed memorandum being handed me in your office. I have just made the desired search, and find that no such deed has ever been here. Campbell, the auditor, says that if it were here, it would be in his office, and that he has hunted for it a dozen times, and could never find it. He says that one time and another, he has heard much about the matter, that it was not a deed for Right of Way, but a deed, outright, for Depot-ground—at least, a sale for Depot-ground, and there may never have been a deed. He says, if there is a deed, it is most probable General Alexander, of Paris, has it.

Yours truly,

A. LINCOLN.

# NEBRASKA MEASURE

TO J. M. PALMER

[Confidential]

SPRINGFIELD, Sept. 7, 1854.

HON. J. M. PALMER.

DEAR SIR:—You know how anxious I am that this Nebraska measure shall be rebuked and condemned everywhere. Of course I hope something from your position; yet I do not expect you to do anything which may be wrong in your own judgment; nor would I have you do anything personally injurious to yourself. You are, and always have been, honestly and sincerely a Democrat; and I know how painful it must be to an honest, sincere man to be urged by his party to the support of a measure which in his conscience he believes to be wrong. You have had a severe struggle with yourself, and you have determined not to swallow the wrong. Is it not just to yourself that you should, in a few public speeches, state your reasons, and thus justify yourself? I wish you would; and yet I say, don't do it, if you think it will injure you. You may have given your word to vote for Major Harris; and if so, of course you will stick to it. But allow me to suggest that you should avoid speaking of this; for it probably would induce some of your friends in like manner to cast their votes. You understand. And now let me beg your pardon for obtruding this letter upon you, to whom I have ever been opposed in politics. Had your party omitted to make Nebraska a test of party fidelity, you probably would have been the Democratic candidate for Congress in the district. You deserved it, and I believe it would have been given you. In that case I should have been quite happy that Nebraska was to be rebuked at all events. I still should have voted for the Whig candidate; but I should have made no speeches, written no letters; and you would have been elected by at least a thousand majority.

Yours truly,

A. LINCOLN.



**TO A. B. MOREAU.**

**SPRINGFIELD, September 7, 1854**

A. B. MOREAU, ESQ.

SIR:—Stranger though I am, personally, being a brother in the faith, I venture to write you. Yates can not come to your court next week. He is obliged to be at Pike court where he has a case, with a fee of five hundred dollars, two hundred dollars already paid. To neglect it would be unjust to himself, and dishonest to his client. Harris will be with you, head up and tail up, for Nebraska. You must have some one to make an anti-Nebraska speech. Palmer is the best, if you can get him, I think. Jo. Gillespie, if you can not get Palmer, and somebody anyhow, if you can get neither. But press Palmer hard. It is in his Senatorial district, I believe.

Yours etc.,

A. LINCOLN.

# **REPLY TO SENATOR DOUGLAS—PEORIA SPEECH**

## **SPEECH AT PEORIA, ILLINOIS, IN REPLY TO SENATOR DOUGLAS,**

OCTOBER 16, 1854.

I do not rise to speak now, if I can stipulate with the audience to meet me here at half-past six or at seven o'clock. It is now several minutes past five, and Judge Douglas has spoken over three hours. If you hear me at all, I wish you to hear me through. It will take me as long as it has taken him. That will carry us beyond eight o'clock at night. Now, every one of you who can remain that long can just as well get his supper, meet me at seven, and remain an hour or two later. The Judge has already informed you that he is to have an hour to reply to me. I doubt not but you have been a little surprised to learn that I have consented to give one of his high reputation and known ability this advantage of me. Indeed, my consenting to it, though reluctant, was not wholly unselfish, for I suspected, if it were understood that the Judge was entirely done, you Democrats would leave and not hear me; but by giving him the close, I felt confident you would stay for the fun of hearing him skin me.

The audience signified their assent to the arrangement, and adjourned to seven o'clock P.M., at which time they reassembled, and Mr. Lincoln spoke substantially as follows:

The repeal of the Missouri Compromise, and the propriety of its restoration, constitute the subject of what I am about to say. As I desire to present my own connected view of this subject, my remarks will not be specifically an answer to Judge Douglas; yet, as I proceed, the main points he has presented will arise, and will receive such respectful attention as I may be able to give them. I wish further to say that I do not propose to question the patriotism or to assail the motives of any man or class of men, but rather to confine myself strictly to the naked merits of the question. I also wish to be no less than national in all the positions I may take, and

whenever I take ground which others have thought, or may think, narrow, sectional, and dangerous to the Union, I hope to give a reason which will appear sufficient, at least to some, why I think differently.

And as this subject is no other than part and parcel of the larger general question of domestic slavery, I wish to make and to keep the distinction between the existing institution and the extension of it so broad and so clear that no honest man can misunderstand me, and no dishonest one successfully misrepresent me.

In order to a clear understanding of what the Missouri Compromise is, a short history of the preceding kindred subjects will perhaps be proper.

When we established our independence, we did not own or claim the country to which this compromise applies. Indeed, strictly speaking, the Confederacy then owned no country at all; the States respectively owned the country within their limits, and some of them owned territory beyond their strict State limits. Virginia thus owned the Northwestern Territory—the country out of which the principal part of Ohio, all Indiana, all Illinois, all Michigan, and all Wisconsin have since been formed. She also owned (perhaps within her then limits) what has since been formed into the State of Kentucky. North Carolina thus owned what is now the State of Tennessee; and South Carolina and Georgia owned, in separate parts, what are now Mississippi and Alabama. Connecticut, I think, owned the little remaining part of Ohio, being the same where they now send Giddings to Congress and beat all creation in making cheese.

These territories, together with the States themselves, constitute all the country over which the Confederacy then claimed any sort of jurisdiction. We were then living under the Articles of Confederation, which were superseded by the Constitution several years afterward. The question of ceding the territories to the General Government was set on foot. Mr. Jefferson,—the author of the Declaration of Independence, and otherwise a chief actor in the Revolution; then a delegate in Congress; afterward, twice President; who was, is, and perhaps will continue to be, the most distinguished politician of our history; a Virginian by birth and continued residence, and withal a slaveholder,—conceived the idea of taking that occasion to prevent slavery ever going into the Northwestern Territory. He prevailed on the Virginia Legislature to adopt his views, and to cede the Territory, making the prohibition of slavery therein a condition of the deed.



(Jefferson got only an understanding, not a condition of the deed to this wish.) Congress accepted the cession with the condition; and the first ordinance (which the acts of Congress were then called) for the government of the Territory provided that slavery should never be permitted therein. This is the famed "Ordinance of '87," so often spoken of.

Thenceforward for sixty-one years, and until, in 1848, the last scrap of this Territory came into the Union as the State of Wisconsin, all parties acted in quiet obedience to this ordinance. It is now what Jefferson foresaw and intended—the happy home of teeming millions of free, white, prosperous people, and no slave among them.

Thus, with the author of the Declaration of Independence, the policy of prohibiting slavery in new territory originated. Thus, away back to the Constitution, in the pure, fresh, free breath of the Revolution, the State of Virginia and the national Congress put that policy into practice. Thus, through more than sixty of the best years of the republic, did that policy steadily work to its great and beneficent end. And thus, in those five States, and in five millions of free, enterprising people, we have before us the rich fruits of this policy.

But now new light breaks upon us. Now Congress declares this ought never to have been, and the like of it must never be again. The sacred right of self-government is grossly violated by it. We even find some men who drew their first breath—and every other breath of their lives—under this very restriction, now live in dread of absolute suffocation if they should be restricted in the "sacred right" of taking slaves to Nebraska. That perfect liberty they sigh for—the liberty of making slaves of other people, Jefferson never thought of, their own fathers never thought of, they never thought of themselves, a year ago. How fortunate for them they did not sooner become sensible of their great misery! Oh, how difficult it is to treat with respect such assaults upon all we have ever really held sacred!

But to return to history. In 1803 we purchased what was then called Louisiana, of France. It included the present States of Louisiana, Arkansas, Missouri, and Iowa; also the Territory of Minnesota, and the present bone of contention, Kansas and Nebraska. Slavery already existed among the French at New Orleans, and to some extent at St. Louis. In 1812 Louisiana came into the Union as a slave State, without controversy. In 1818 or '19, Missouri showed signs of a wish to come in with slavery. This was resisted

by Northern members of Congress; and thus began the first great slavery agitation in the nation. This controversy lasted several months, and became very angry and exciting—the House of Representatives voting steadily for the prohibition of slavery in Missouri, and the Senate voting as steadily against it. Threats of the breaking up of the Union were freely made, and the ablest public men of the day became seriously alarmed. At length a compromise was made, in which, as in all compromises, both sides yielded something. It was a law, passed on the 6th of March, 1820, providing that Missouri might come into the Union with slavery, but that in all the remaining part of the territory purchased of France which lies north of thirty-six degrees and thirty minutes north latitude, slavery should never be permitted. This provision of law is the "Missouri Compromise." In excluding slavery north of the line, the same language is employed as in the Ordinance of 1787. It directly applied to Iowa, Minnesota, and to the present bone of contention, Kansas and Nebraska. Whether there should or should not be slavery south of that line, nothing was said in the law. But Arkansas constituted the principal remaining part south of the line; and it has since been admitted as a slave State, without serious controversy. More recently, Iowa, north of the line, came in as a free State without controversy. Still later, Minnesota, north of the line, had a territorial organization without controversy. Texas, principally south of the line, and west of Arkansas, though originally within the purchase from France, had, in 1819, been traded off to Spain in our treaty for the acquisition of Florida. It had thus become a part of Mexico. Mexico revolutionized and became independent of Spain. American citizens began settling rapidly with their slaves in the southern part of Texas. Soon they revolutionized against Mexico, and established an independent government of their own, adopting a constitution with slavery, strongly resembling the constitutions of our slave States. By still another rapid move, Texas, claiming a boundary much farther west than when we parted with her in 1819, was brought back to the United States, and admitted into the Union as a slave State. Then there was little or no settlement in the northern part of Texas, a considerable portion of which lay north of the Missouri line; and in the resolutions admitting her into the Union, the Missouri restriction was expressly extended westward across her territory. This was in 1845, only nine years ago.

Thus originated the Missouri Compromise; and thus has it been respected down to 1845. And even four years later, in 1849, our distinguished Senator,

in a public address, held the following language in relation to it:

"The Missouri Compromise has been in practical operation for about a quarter of a century, and has received the sanction and approbation of men of all parties in every section of the Union. It has allayed all sectional jealousies and irritations growing out of this vexed question, and harmonized and tranquillized the whole country. It has given to Henry Clay, as its prominent champion, the proud sobriquet of the 'Great Pacificator,' and by that title, and for that service, his political friends had repeatedly appealed to the people to rally under his standard as a Presidential candidate, as the man who had exhibited the patriotism and power to suppress an unholy and treasonable agitation, and preserve the Union. He was not aware that any man or any party, from any section of the Union, had ever urged as an objection to Mr. Clay that he was the great champion of the Missouri Compromise. On the contrary, the effort was made by the opponents of Mr. Clay to prove that he was not entitled to the exclusive merit of that great patriotic measure, and that the honor was equally due to others, as well as to him, for securing its adoption; that it had its origin in the hearts of all patriotic men, who desired to preserve and perpetuate the blessings of our glorious Union—an origin akin to that of the Constitution of the United States, conceived in the same spirit of fraternal affection, and calculated to remove forever the only danger which seemed to threaten, at some distant day, to sever the social bond of union. All the evidences of public opinion at that day seemed to indicate that this compromise had been canonized in the hearts of the American people, as a sacred thing which no ruthless hand would ever be reckless enough to disturb."

I do not read this extract to involve Judge Douglas in an inconsistency. If he afterward thought he had been wrong, it was right for him to change. I bring this forward merely to show the high estimate placed on the Missouri Compromise by all parties up to so late as the year 1849.

But going back a little in point of time. Our war with Mexico broke out in 1846. When Congress was about adjourning that session, President Polk asked them to place two millions of dollars under his control, to be used by him in the recess, if found practicable and expedient, in negotiating a treaty of peace with Mexico, and acquiring some part of her territory. A bill was duly gotten up for the purpose, and was progressing swimmingly in the House of Representatives, when a member by the name of David Wilmot, a

Democrat from Pennsylvania, moved as an amendment, "Provided, that in any territory thus acquired there never shall be slavery."

This is the origin of the far-famed Wilmot Proviso. It created a great flutter; but it stuck like wax, was voted into the bill, and the bill passed with it through the House. The Senate, however, adjourned without final action on it, and so both appropriation and proviso were lost for the time. The war continued, and at the next session the President renewed his request for the appropriation, enlarging the amount, I think, to three millions. Again came the proviso, and defeated the measure. Congress adjourned again, and the war went on. In December, 1847, the new Congress assembled. I was in the lower House that term. The Wilmot Proviso, or the principle of it, was constantly coming up in some shape or other, and I think I may venture to say I voted for it at least forty times during the short time I was there. The Senate, however, held it in check, and it never became a law. In the spring of 1848 a treaty of peace was made with Mexico, by which we obtained that portion of her country which now constitutes the Territories of New Mexico and Utah and the present State of California. By this treaty the Wilmot Proviso was defeated, in so far as it was intended to be a condition of the acquisition of territory. Its friends, however, were still determined to find some way to restrain slavery from getting into the new country. This new acquisition lay directly west of our old purchase from France, and extended west to the Pacific Ocean, and was so situated that if the Missouri line should be extended straight west, the new country would be divided by such extended line, leaving some north and some south of it. On Judge Douglas's motion, a bill, or provision of a bill, passed the Senate to so extend the Missouri line. The proviso men in the House, including myself, voted it down, because, by implication, it gave up the southern part to slavery, while we were bent on having it all free.

In the fall of 1848 the gold-mines were discovered in California. This attracted people to it with unprecedented rapidity, so that on, or soon after, the meeting of the new Congress in December, 1849, she already had a population of nearly a hundred thousand, had called a convention, formed a State constitution excluding slavery, and was knocking for admission into the Union. The proviso men, of course, were for letting her in, but the Senate, always true to the other side, would not consent to her admission, and there California stood, kept out of the Union because she would not let slavery into her borders. Under all the circumstances, perhaps, this was not

wrong. There were other points of dispute connected with the general question of Slavery, which equally needed adjustment. The South clamored for a more efficient fugitive slave law. The North clamored for the abolition of a peculiar species of slave trade in the District of Columbia, in connection with which, in view from the windows of the Capitol, a sort of negro livery-stable, where droves of negroes were collected, temporarily kept, and finally taken to Southern markets, precisely like droves of horses, had been openly maintained for fifty years. Utah and New Mexico needed territorial governments; and whether slavery should or should not be prohibited within them was another question. The indefinite western boundary of Texas was to be settled. She was a slave State, and consequently the farther west the slavery men could push her boundary, the more slave country they secured; and the farther east the slavery opponents could thrust the boundary back, the less slave ground was secured. Thus this was just as clearly a slavery question as any of the others.

These points all needed adjustment, and they were held up, perhaps wisely, to make them help adjust one another. The Union now, as in 1820, was thought to be in danger, and devotion to the Union rightfully inclined men to yield somewhat in points where nothing else could have so inclined them. A compromise was finally effected. The South got their new fugitive slave law, and the North got California, (by far the best part of our acquisition from Mexico) as a free State. The South got a provision that New Mexico and Utah, when admitted as States, may come in with or without slavery as they may then choose; and the North got the slave trade abolished in the District of Columbia.. The North got the western boundary of Texas thrown farther back eastward than the South desired; but, in turn, they gave Texas ten millions of dollars with which to pay her old debts. This is the Compromise of 1850.

Preceding the Presidential election of 1852, each of the great political parties, Democrats and Whigs, met in convention and adopted resolutions indorsing the Compromise of '50, as a "finality," a final settlement, so far as these parties could make it so, of all slavery agitation. Previous to this, in 1851, the Illinois Legislature had indorsed it.

During this long period of time, Nebraska (the Nebraska Territory, not the State of as we know it now) had remained substantially an uninhabited country, but now emigration to and settlement within it began to take place.

It is about one third as large as the present United States, and its importance, so long overlooked, begins to come into view. The restriction of slavery by the Missouri Compromise directly applies to it—in fact was first made, and has since been maintained expressly for it. In 1853, a bill to give it a territorial government passed the House of Representatives, and, in the hands of Judge Douglas, failed of passing only for want of time. This bill contained no repeal of the Missouri Compromise. Indeed, when it was assailed because it did not contain such repeal, Judge Douglas defended it in its existing form. On January 4, 1854, Judge Douglas introduces a new bill to give Nebraska territorial government. He accompanies this bill with a report, in which last he expressly recommends that the Missouri Compromise shall neither be affirmed nor repealed. Before long the bill is so modified as to make two territories instead of one, calling the southern one Kansas.

Also, about a month after the introduction of the bill, on the Judge's own motion it is so amended as to declare the Missouri Compromise inoperative and void; and, substantially, that the people who go and settle there may establish slavery, or exclude it, as they may see fit. In this shape the bill passed both branches of Congress and became a law.

This is the repeal of the Missouri Compromise. The foregoing history may not be precisely accurate in every particular, but I am sure it is sufficiently so for all the use I shall attempt to make of it, and in it we have before us the chief material enabling us to judge correctly whether the repeal of the Missouri Compromise is right or wrong. I think, and shall try to show, that it is wrong—wrong in its direct effect, letting slavery into Kansas and Nebraska, and wrong in its prospective principle, allowing it to spread to every other part of the wide world where men can be found inclined to take it.

This declared indifference, but, as I must think, covert real zeal, for the spread of slavery, I cannot but hate. I hate it because of the monstrous injustice of slavery itself. I hate it because it deprives our republican example of its just influence in the world; enables the enemies of free institutions with plausibility to taunt us as hypocrites; causes the real friends of freedom to doubt our sincerity; and especially because it forces so many good men among ourselves into an open war with the very fundamental

principles of civil liberty, criticizing the Declaration of Independence, and insisting that there is no right principle of action but self-interest.

Before proceeding let me say that I think I have no prejudice against the Southern people. They are just what we would be in their situation. If slavery did not now exist among them, they would not introduce it. If it did now exist among us, we should not instantly give it up. This I believe of the masses North and South. Doubtless there are individuals on both sides who would not hold slaves under any circumstances, and others who would gladly introduce slavery anew if it were out of existence. We know that some Southern men do free their slaves, go North and become tip-top abolitionists, while some Northern ones go South and become most cruel slave masters.

When Southern people tell us that they are no more responsible for the origin of slavery than we are, I acknowledge the fact. When it is said that the institution exists, and that it is very difficult to get rid of it in any satisfactory way, I can understand and appreciate the saying. I surely will not blame them for not doing what I should not know how to do myself. If all earthly power were given me, I should not know what to do as to the existing institution. My first impulse would be to free all the slaves, and send them to Liberia, to their own native land. But a moment's reflection would convince me that whatever of high hope (as I think there is) there may be in this in the long run, its sudden execution is impossible. If they were all landed there in a day, they would all perish in the next ten days; and there are not surplus shipping and surplus money enough to carry them there in many times ten days. What then? Free them all, and keep them among us as underlings? Is it quite certain that this betters their condition? I think I would not hold one in slavery at any rate, yet the point is not clear enough for me to denounce people upon. What next? Free them, and make them politically and socially our equals? My own feelings will not admit of this, and if mine would, we well know that those of the great mass of whites will not. Whether this feeling accords with justice and sound judgment is not the sole question, if indeed it is any part of it. A universal feeling, whether well or ill founded, cannot be safely disregarded. We cannot then make them equals. It does seem to me that systems of gradual emancipation might be adopted, but for their tardiness in this I will not undertake to judge our brethren of the South.

When they remind us of their constitutional rights, I acknowledge them—not grudgingly, but fully and fairly; and I would give them any legislation for the reclaiming of their fugitives which should not in its stringency be more likely to carry a free man into slavery than our ordinary criminal laws are to hang an innocent one.

But all this, to my judgment, furnishes no more excuse for permitting slavery to go into our own free territory than it would for reviving the African slave trade by law. The law which forbids the bringing of slaves from Africa, and that which has so long forbidden the taking of them into Nebraska, can hardly be distinguished on any moral principle, and the repeal of the former could find quite as plausible excuses as that of the latter.

The arguments by which the repeal of the Missouri Compromise is sought to be justified are these:

First. That the Nebraska country needed a territorial government.

*Second. That in various ways the public had repudiated that compromise and demanded the repeal, and therefore should not now complain of it.*

*And, lastly, That the repeal establishes a principle which is intrinsically right.*

I will attempt an answer to each of them in its turn.

First, then: If that country was in need of a territorial organization, could it not have had it as well without as with a repeal? Iowa and Minnesota, to both of which the Missouri restriction applied, had, without its repeal, each in succession, territorial organizations. And even the year before, a bill for Nebraska itself was within an ace of passing without the repealing clause, and this in the hands of the same men who are now the champions of repeal. Why no necessity then for repeal? But still later, when this very bill was first brought in, it contained no repeal. But, say they, because the people had demanded, or rather commanded, the repeal, the repeal was to accompany the organization whenever that should occur.

Now, I deny that the public ever demanded any such thing—ever repudiated the Missouri Compromise, ever commanded its repeal. I deny it, and call for the proof. It is not contended, I believe, that any such command has ever been given in express terms. It is only said that it was done in principle. The support of the Wilmot Proviso is the first fact mentioned to prove that the Missouri restriction was repudiated in principle, and the



second is the refusal to extend the Missouri line over the country acquired from Mexico. These are near enough alike to be treated together. The one was to exclude the chances of slavery from the whole new acquisition by the lump, and the other was to reject a division of it, by which one half was to be given up to those chances. Now, whether this was a repudiation of the Missouri line in principle depends upon whether the Missouri law contained any principle requiring the line to be extended over the country acquired from Mexico. I contend it did not. I insist that it contained no general principle, but that it was, in every sense, specific. That its terms limit it to the country purchased from France is undenied and undeniable. It could have no principle beyond the intention of those who made it. They did not intend to extend the line to country which they did not own. If they intended to extend it in the event of acquiring additional territory, why did they not say so? It was just as easy to say that "in all the country west of the Mississippi which we now own, or may hereafter acquire, there shall never be slavery," as to say what they did say; and they would have said it if they had meant it. An intention to extend the law is not only not mentioned in the law, but is not mentioned in any contemporaneous history. Both the law itself, and the history of the times, are a blank as to any principle of extension; and by neither the known rules of construing statutes and contracts, nor by common sense, can any such principle be inferred.

Another fact showing the specific character of the Missouri law—showing that it intended no more than it expressed, showing that the line was not intended as a universal dividing line between Free and Slave territory, present and prospective, north of which slavery could never go—is the fact that by that very law Missouri came in as a slave State, north of the line. If that law contained any prospective principle, the whole law must be looked to in order to ascertain what the principle was. And by this rule the South could fairly contend that, inasmuch as they got one slave State north of the line at the inception of the law, they have the right to have another given them north of it occasionally, now and then, in the indefinite westward extension of the line. This demonstrates the absurdity of attempting to deduce a prospective principle from the Missouri Compromise line.

When we voted for the Wilmot Proviso we were voting to keep slavery out of the whole Mexican acquisition, and little did we think we were thereby voting to let it into Nebraska lying several hundred miles distant.

When we voted against extending the Missouri line, little did we think we were voting to destroy the old line, then of near thirty years' standing.

To argue that we thus repudiated the Missouri Compromise is no less absurd than it would be to argue that because we have so far forbore to acquire Cuba, we have thereby, in principle, repudiated our former acquisitions and determined to throw them out of the Union. No less absurd than it would be to say that because I may have refused to build an addition to my house, I thereby have decided to destroy the existing house! And if I catch you setting fire to my house, you will turn upon me and say I instructed you to do it!

The most conclusive argument, however, that while for the Wilmot Proviso, and while voting against the extension of the Missouri line, we never thought of disturbing the original Missouri Compromise, is found in the fact that there was then, and still is, an unorganized tract of fine country, nearly as large as the State of Missouri, lying immediately west of Arkansas and south of the Missouri Compromise line, and that we never attempted to prohibit slavery as to it. I wish particular attention to this. It adjoins the original Missouri Compromise line by its northern boundary, and consequently is part of the country into which by implication slavery was permitted to go by that compromise. There it has lain open ever since, and there it still lies, and yet no effort has been made at any time to wrest it from the South. In all our struggles to prohibit slavery within our Mexican acquisitions, we never so much as lifted a finger to prohibit it as to this tract. Is not this entirely conclusive that at all times we have held the Missouri Compromise as a sacred thing, even when against ourselves as well as when for us?

Senator Douglas sometimes says the Missouri line itself was in principle only an extension of the line of the Ordinance of '87—that is to say, an extension of the Ohio River. I think this is weak enough on its face. I will remark, however, that, as a glance at the map will show, the Missouri line is a long way farther south than the Ohio, and that if our Senator in proposing his extension had stuck to the principle of jogging southward, perhaps it might not have been voted down so readily.

But next it is said that the compromises of '50, and the ratification of them by both political parties in '52, established a new principle which required the repeal of the Missouri Compromise. This again I deny. I deny

it, and demand the proof. I have already stated fully what the compromises of '50 are. That particular part of those measures from which the virtual repeal of the Missouri Compromise is sought to be inferred (for it is admitted they contain nothing about it in express terms) is the provision in the Utah and New Mexico laws which permits them when they seek admission into the Union as States to come in with or without slavery, as they shall then see fit. Now I insist this provision was made for Utah and New Mexico, and for no other place whatever. It had no more direct reference to Nebraska than it had to the territories of the moon. But, say they, it had reference to Nebraska in principle. Let us see. The North consented to this provision, not because they considered it right in itself, but because they were compensated—paid for it.

They at the same time got California into the Union as a free State. This was far the best part of all they had struggled for by the Wilmot Proviso. They also got the area of slavery somewhat narrowed in the settlement of the boundary of Texas. Also they got the slave trade abolished in the District of Columbia.

For all these desirable objects the North could afford to yield something; and they did yield to the South the Utah and New Mexico provision. I do not mean that the whole North, or even a majority, yielded, when the law passed; but enough yielded—when added to the vote of the South, to carry the measure. Nor can it be pretended that the principle of this arrangement requires us to permit the same provision to be applied to Nebraska, without any equivalent at all. Give us another free State; press the boundary of Texas still farther back; give us another step toward the destruction of slavery in the District, and you present us a similar case. But ask us not to repeat, for nothing, what you paid for in the first instance. If you wish the thing again, pay again. That is the principle of the compromises of '50, if, indeed, they had any principles beyond their specific terms—it was the system of equivalents.

Again, if Congress, at that time, intended that all future Territories should, when admitted as States, come in with or without slavery at their own option, why did it not say so? With such a universal provision, all know the bills could not have passed. Did they, then—could they—establish a principle contrary to their own intention? Still further, if they intended to establish the principle that, whenever Congress had control, it should be left

to the people to do as they thought fit with slavery, why did they not authorize the people of the District of Columbia, at their option, to abolish slavery within their limits?

I personally know that this has not been left undone because it was unthought of. It was frequently spoken of by members of Congress, and by citizens of Washington, six years ago; and I heard no one express a doubt that a system of gradual emancipation, with compensation to owners, would meet the approbation of a large majority of the white people of the District. But without the action of Congress they could say nothing; and Congress said "No." In the measures of 1850, Congress had the subject of slavery in the District expressly on hand. If they were then establishing the principle of allowing the people to do as they please with slavery, why did they not apply the principle to that people?

Again it is claimed that by the resolutions of the Illinois Legislature, passed in 1851, the repeal of the Missouri Compromise was demanded. This I deny also. Whatever may be worked out by a criticism of the language of those resolutions, the people have never understood them as being any more than an indorsement of the compromises of 1850, and a release of our senators from voting for the Wilmot Proviso. The whole people are living witnesses that this only was their view. Finally, it is asked, "If we did not mean to apply the Utah and New Mexico provision to all future territories, what did we mean when we, in 1852, indorsed the compromises of 1850?"

For myself I can answer this question most easily. I meant not to ask a repeal or modification of the Fugitive Slave law. I meant not to ask for the abolition of slavery in the District of Columbia. I meant not to resist the admission of Utah and New Mexico, even should they ask to come in as slave States. I meant nothing about additional Territories, because, as I understood, we then had no Territory whose character as to slavery was not already settled. As to Nebraska, I regarded its character as being fixed by the Missouri Compromise for thirty years—as unalterably fixed as that of my own home in Illinois. As to new acquisitions, I said, "Sufficient unto the day is the evil thereof." When we make new acquisitions, we will, as heretofore, try to manage them somehow. That is my answer; that is what I meant and said; and I appeal to the people to say each for himself whether that is not also the universal meaning of the free States.

And now, in turn, let me ask a few questions. If, by any or all these matters, the repeal of the Missouri Compromise was commanded, why was not the command sooner obeyed? Why was the repeal omitted in the Nebraska Bill of 1853? Why was it omitted in the original bill of 1854? Why in the accompanying report was such a repeal characterized as a departure from the course pursued in 1850 and its continued omission recommended?

I am aware Judge Douglas now argues that the subsequent express repeal is no substantial alteration of the bill. This argument seems wonderful to me. It is as if one should argue that white and black are not different. He admits, however, that there is a literal change in the bill, and that he made the change in deference to other senators who would not support the bill without. This proves that those other senators thought the change a substantial one, and that the Judge thought their opinions worth deferring to. His own opinions, therefore, seem not to rest on a very firm basis, even in his own mind; and I suppose the world believes, and will continue to believe, that precisely on the substance of that change this whole agitation has arisen.

I conclude, then, that the public never demanded the repeal of the Missouri Compromise.

I now come to consider whether the appeal with its avowed principles, is intrinsically right. I insist that it is not. Take the particular case. A controversy had arisen between the advocates and opponents of slavery, in relation to its establishment within the country we had purchased of France. The southern, and then best, part of the purchase was already in as a slave State. The controversy was settled by also letting Missouri in as a slave State; but with the agreement that within all the remaining part of the purchase, north of a certain line, there should never be slavery. As to what was to be done with the remaining part, south of the line, nothing was said; but perhaps the fair implication was, it should come in with slavery if it should so choose. The southern part, except a portion heretofore mentioned, afterward did come in with slavery, as the State of Arkansas. All these many years, since 1820, the northern part had remained a wilderness. At length settlements began in it also. In due course Iowa came in as a free State, and Minnesota was given a territorial government, without removing the slavery restriction. Finally, the sole remaining part north of the line—Kansas and

Nebraska—was to be organized; and it is proposed, and carried, to blot out the old dividing line of thirty-four years' standing, and to open the whole of that country to the introduction of slavery. Now this, to my mind, is manifestly unjust. After an angry and dangerous controversy, the parties made friends by dividing the bone of contention. The one party first appropriates her own share, beyond all power to be disturbed in the possession of it, and then seizes the share of the other party. It is as if two starving men had divided their only loaf, the one had hastily swallowed his half, and then grabbed the other's half just as he was putting it to his mouth.

Let me here drop the main argument, to notice what I consider rather an inferior matter. It is argued that slavery will not go to Kansas and Nebraska, in any event. This is a palliation, a lullaby. I have some hope that it will not; but let us not be too confident. As to climate, a glance at the map shows that there are five slave States—Delaware, Maryland, Virginia, Kentucky, and Missouri, and also the District of Columbia, all north of the Missouri Compromise line. The census returns of 1850 show that within these there are eight hundred and sixty-seven thousand two hundred and seventy-six slaves, being more than one fourth of all the slaves in the nation.

It is not climate, then, that will keep slavery out of these Territories. Is there anything in the peculiar nature of the country? Missouri adjoins these Territories by her entire western boundary, and slavery is already within every one of her western counties. I have even heard it said that there are more slaves in proportion to whites in the northwestern county of Missouri than within any other county in the State. Slavery pressed entirely up to the old western boundary of the State, and when rather recently a part of that boundary at the northwest was moved out a little farther west, slavery followed on quite up to the new line. Now, when the restriction is removed, what is to prevent it from going still farther? Climate will not, no peculiarity of the country will, nothing in nature will. Will the disposition of the people prevent it? Those nearest the scene are all in favor of the extension. The Yankees who are opposed to it may be most flumorous; but, in military phrase, the battlefield is too far from their base of operations.

But it is said there now is no law in Nebraska on the subject of slavery, and that, in such case, taking a slave there operates his freedom. That is good book-law, but it is not the rule of actual practice. Wherever slavery is it has been first introduced without law. The oldest laws we find concerning

it are not laws introducing it, but regulating it as an already existing thing. A white man takes his slave to Nebraska now. Who will inform the negro that he is free? Who will take him before court to test the question of his freedom? In ignorance of his legal emancipation he is kept chopping, splitting, and plowing. Others are brought, and move on in the same track. At last, if ever the time for voting comes on the question of slavery the institution already, in fact, exists in the country, and cannot well be removed. The fact of its presence, and the difficulty of its removal, will carry the vote in its favor. Keep it out until a vote is taken, and a vote in favor of it cannot be got in any population of forty thousand on earth, who have been drawn together by the ordinary motives of emigration and settlement. To get slaves into the Territory simultaneously with the whites in the incipient stages of settlement is the precise stake played for and won in this Nebraska measure.

The question is asked us: "If slaves will go in notwithstanding the general principle of law liberates them, why would they not equally go in against positive statute law—go in, even if the Missouri restriction were maintained!" I answer, because it takes a much bolder man to venture in with his property in the latter case than in the former; because the positive Congressional enactment is known to and respected by all, or nearly all, whereas the negative principle that no law is free law is not much known except among lawyers. We have some experience of this practical difference. In spite of the Ordinance of '87, a few negroes were brought into Illinois, and held in a state of quasi-slavery, not enough, however, to carry a vote of the people in favor of the institution when they came to form a constitution. But into the adjoining Missouri country, where there was no Ordinance of '87,—was no restriction,—they were carried ten times, nay, a hundred times, as fast, and actually made a slave State. This is fact-naked fact.

Another lullaby argument is that taking slaves to new countries does not increase their number, does not make any one slave who would otherwise be free. There is some truth in this, and I am glad of it; but it is not wholly true. The African slave trade is not yet effectually suppressed; and, if we make a reasonable deduction for the white people among us who are foreigners and the descendants of foreigners arriving here since 1808, we shall find the increase of the black population outrunning that of the white to an extent unaccountable, except by supposing that some of them, too,

have been coming from Africa. If this be so, the opening of new countries to the institution increases the demand for and augments the price of slaves, and so does, in fact, make slaves of freemen, by causing them to be brought from Africa and sold into bondage.

But however this may be, we know the opening of new countries to slavery tends to the perpetuation of the institution, and so does keep men in slavery who would otherwise be free. This result we do not feel like favoring, and we are under no legal obligation to suppress our feelings in this respect.

Equal justice to the South, it is said, requires us to consent to the extension of slavery to new countries. That is to say, inasmuch as you do not object to my taking my hog to Nebraska, therefore I must not object to your taking your slave. Now, I admit that this is perfectly logical if there is no difference between hogs and negroes. But while you thus require me to deny the humanity of the negro, I wish to ask whether you of the South, yourselves, have ever been willing to do as much? It is kindly provided that of all those who come into the world only a small percentage are natural tyrants. That percentage is no larger in the slave States than in the free. The great majority South, as well as North, have human sympathies, of which they can no more divest themselves than they can of their sensibility to physical pain. These sympathies in the bosoms of the Southern people manifest, in many ways, their sense of the wrong of slavery, and their consciousness that, after all, there is humanity in the negro. If they deny this, let me address them a few plain questions. In 1820 you (the South) joined the North, almost unanimously, in declaring the African slave trade piracy, and in annexing to it the punishment of death. Why did you do this? If you did not feel that it was wrong, why did you join in providing that men should be hung for it? The practice was no more than bringing wild negroes from Africa to such as would buy them. But you never thought of hanging men for catching and selling wild horses, wild buffaloes, or wild bears.

Again, you have among you a sneaking individual of the class of native tyrants known as the "slavedealer." He watches your necessities, and crawls up to buy your slave, at a speculating price. If you cannot help it, you sell to him; but if you can help it, you drive him from your door. You despise him utterly. You do not recognize him as a friend, or even as an honest man.



Your children must not play with his; they may rollick freely with the little negroes, but not with the slave-dealer's children. If you are obliged to deal with him, you try to get through the job without so much as touching him. It is common with you to join hands with the men you meet, but with the slave-dealer you avoid the ceremony—instinctively shrinking from the snaky contact. If he grows rich and retires from business, you still remember him, and still keep up the ban of non-intercourse upon him and his family. Now, why is this? You do not so treat the man who deals in corn, cotton, or tobacco.

And yet again: There are in the United States and Territories, including the District of Columbia, 433,643 free blacks. At five hundred dollars per head they are worth over two hundred millions of dollars. How comes this vast amount of property to be running about without owners? We do not see free horses or free cattle running at large. How is this? All these free blacks are the descendants of slaves, or have been slaves themselves; and they would be slaves now but for something which has operated on their white owners, inducing them at vast pecuniary sacrifice to liberate them. What is that something? Is there any mistaking it? In all these cases it is your sense of justice and human sympathy continually telling you that the poor negro has some natural right to himself—that those who deny it and make mere merchandise of him deserve kickings, contempt, and death.

And now why will you ask us to deny the humanity of the slave, and estimate him as only the equal of the hog? Why ask us to do what you will not do yourselves? Why ask us to do for nothing what two hundred millions of dollars could not induce you to do?

But one great argument in support of the repeal of the Missouri Compromise is still to come. That argument is "the sacred right of self-government." It seems our distinguished Senator has found great difficulty in getting his antagonists, even in the Senate, to meet him fairly on this argument. Some poet has said:

"Fools rush in where angels fear to tread."

At the hazard of being thought one of the fools of this quotation, I meet that argument—I rush in—I take that bull by the horns. I trust I understand and truly estimate the right of self-government. My faith in the proposition that each man should do precisely as he pleases with all which is exclusively his own lies at the foundation of the sense of justice there is in

me. I extend the principle to communities of men as well as to individuals. I so extend it because it is politically wise, as well as naturally just; politically wise in saving us from broils about matters which do not concern us. Here, or at Washington, I would not trouble myself with the oyster laws of Virginia, or the cranberry laws of Indiana. The doctrine of self-government is right,—absolutely and eternally right,—but it has no just application as here attempted. Or perhaps I should rather say that whether it has such application depends upon whether a negro is or is not a man. If he is not a man, in that case he who is a man may as a matter of self-government do just what he pleases with him. But if the negro is a man, is it not to that extent a total destruction of self-government to say that he too shall not govern himself? When the white man governs himself, that is self-government; but when he governs himself and also governs another man, that is more than self-government—that is despotism. If the negro is a man, why, then, my ancient faith teaches me that "all men are created equal," and that there can be no moral right in connection with one man's making a slave of another.

Judge Douglas frequently, with bitter irony and sarcasm, paraphrases our argument by saying: "The white people of Nebraska are good enough to govern themselves, but they are not good enough to govern a few miserable negroes!"

Well, I doubt not that the people of Nebraska are and will continue to be as good as the average of people elsewhere. I do not say the contrary. What I do say is that no man is good enough to govern another man without that other's consent. I say this is the leading principle, the sheet-anchor of American republicanism. Our Declaration of Independence says:

"We hold these truths to be self-evident: That all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men, DERIVING THEIR JUST POWERS FROM THE CONSENT OF THE GOVERNED."

I have quoted so much at this time merely to show that, according to our ancient faith, the just powers of government are derived from the consent of the governed. Now the relation of master and slave is pro tanto a total violation of this principle. The master not only governs the slave without his consent, but he governs him by a set of rules altogether different from

those which he prescribes for himself. Allow all the governed an equal voice in the government, and that, and that only, is self-government.

Let it not be said that I am contending for the establishment of political and social equality between the whites and blacks. I have already said the contrary. I am not combating the argument of necessity, arising from the fact that the blacks are already among us; but I am combating what is set up as moral argument for allowing them to be taken where they have never yet been—arguing against the extension of a bad thing, which, where it already exists, we must of necessity manage as we best can.

In support of his application of the doctrine of self-government, Senator Douglas has sought to bring to his aid the opinions and examples of our Revolutionary fathers. I am glad he has done this. I love the sentiments of those old-time men, and shall be most happy to abide by their opinions. He shows us that when it was in contemplation for the colonies to break off from Great Britain, and set up a new government for themselves, several of the States instructed their delegates to go for the measure, provided each State should be allowed to regulate its domestic concerns in its own way. I do not quote; but this in substance. This was right; I see nothing objectionable in it. I also think it probable that it had some reference to the existence of slavery among them. I will not deny that it had. But had it any reference to the carrying of slavery into new countries? That is the question, and we will let the fathers themselves answer it.

This same generation of men, and mostly the same individuals of the generation who declared this principle, who declared independence, who fought the war of the Revolution through, who afterward made the Constitution under which we still live—these same men passed the Ordinance of '87, declaring that slavery should never go to the Northwest Territory.

I have no doubt Judge Douglas thinks they were very inconsistent in this. It is a question of discrimination between them and him. But there is not an inch of ground left for his claiming that their opinions, their example, their authority, are on his side in the controversy.

Again, is not Nebraska, while a Territory, a part of us? Do we not own the country? And if we surrender the control of it, do we not surrender the right of self-government? It is part of ourselves. If you say we shall not control it, because it is only part, the same is true of every other part; and

when all the parts are gone, what has become of the whole? What is then left of us? What use for the General Government, when there is nothing left for it to govern?

But you say this question should be left to the people of Nebraska, because they are more particularly interested. If this be the rule, you must leave it to each individual to say for himself whether he will have slaves. What better moral right have thirty-one citizens of Nebraska to say that the thirty-second shall not hold slaves than the people of the thirty-one States have to say that slavery shall not go into the thirty-second State at all?

But if it is a sacred right for the people of Nebraska to take and hold slaves there, it is equally their sacred right to buy them where they can buy them cheapest; and that, undoubtedly, will be on the coast of Africa, provided you will consent not to hang them for going there to buy them. You must remove this restriction, too, from the sacred right of self-government. I am aware you say that taking slaves from the States to Nebraska does not make slaves of freemen; but the African slave-trader can say just as much. He does not catch free negroes and bring them here. He finds them already slaves in the hands of their black captors, and he honestly buys them at the rate of a red cotton handkerchief a head. This is very cheap, and it is a great abridgment of the sacred right of self-government to hang men for engaging in this profitable trade.

Another important objection to this application of the right of self-government is that it enables the first few to deprive the succeeding many of a free exercise of the right of self-government. The first few may get slavery in, and the subsequent many cannot easily get it out. How common is the remark now in the slave States, "If we were only clear of our slaves, how much better it would be for us." They are actually deprived of the privilege of governing themselves as they would, by the action of a very few in the beginning. The same thing was true of the whole nation at the time our Constitution was formed.

Whether slavery shall go into Nebraska, or other new Territories, is not a matter of exclusive concern to the people who may go there. The whole nation is interested that the best use shall be made of these Territories. We want them for homes of free white people. This they cannot be, to any considerable extent, if slavery shall be planted within them. Slave States are places for poor white people to remove from, not to remove to. New free

States are the places for poor people to go to, and better their condition. For this use the nation needs these Territories.

Still further: there are constitutional relations between the slave and free States which are degrading to the latter. We are under legal obligations to catch and return their runaway slaves to them: a sort of dirty, disagreeable job, which, I believe, as a general rule, the slaveholders will not perform for one another. Then again, in the control of the government—the management of the partnership affairs—they have greatly the advantage of us. By the Constitution each State has two senators, each has a number of representatives in proportion to the number of its people, and each has a number of Presidential electors equal to the whole number of its senators and representatives together. But in ascertaining the number of the people for this purpose, five slaves are counted as being equal to three whites. The slaves do not vote; they are only counted and so used as to swell the influence of the white people's votes. The practical effect of this is more aptly shown by a comparison of the States of South Carolina and Maine. South Carolina has six representatives, and so has Maine; South Carolina has eight Presidential electors, and so has Maine. This is precise equality so far; and of course they are equal in senators, each having two. Thus in the control of the government the two States are equals precisely. But how are they in the number of their white people? Maine has 581,813, while South Carolina has 274,567; Maine has twice as many as South Carolina, and 32,679 over. Thus, each white man in South Carolina is more than the double of any man in Maine. This is all because South Carolina, besides her free people, has 384,984 slaves. The South Carolinian has precisely the same advantage over the white man in every other free State as well as in Maine. He is more than the double of any one of us in this crowd. The same advantage, but not to the same extent, is held by all the citizens of the slave States over those of the free; and it is an absolute truth, without an exception, that there is no voter in any slave State but who has more legal power in the government than any voter in any free State. There is no instance of exact equality; and the disadvantage is against us the whole chapter through. This principle, in the aggregate, gives the slave States in the present Congress twenty additional representatives, being seven more than the whole majority by which they passed the Nebraska Bill.

Now all this is manifestly unfair; yet I do not mention it to complain of it, in so far as it is already settled. It is in the Constitution, and I do not for that

cause, or any other cause, propose to destroy, or alter, or disregard the Constitution. I stand to it, fairly, fully, and firmly.

But when I am told I must leave it altogether to other people to say whether new partners are to be bred up and brought into the firm, on the same degrading terms against me, I respectfully demur. I insist that whether I shall be a whole man or only the half of one, in comparison with others is a question in which I am somewhat concerned, and one which no other man can have a sacred right of deciding for me. If I am wrong in this, if it really be a sacred right of self-government in the man who shall go to Nebraska to decide whether he will be the equal of me or the double of me, then, after he shall have exercised that right, and thereby shall have reduced me to a still smaller fraction of a man than I already am, I should like for some gentleman, deeply skilled in the mysteries of sacred rights, to provide himself with a microscope, and peep about, and find out, if he can, what has become of my sacred rights. They will surely be too small for detection with the naked eye.

Finally, I insist that if there is anything which it is the duty of the whole people to never intrust to any hands but their own, that thing is the preservation and perpetuity of their own liberties and institutions. And if they shall think as I do, that the extension of slavery endangers them more than any or all other causes, how recreant to themselves if they submit The question, and with it the fate of their country, to a mere handful of men bent only on self-interest. If this question of slavery extension were an insignificant one, one having no power to do harm—it might be shuffled aside in this way; and being, as it is, the great Behemoth of danger, shall the strong grip of the nation be loosened upon him, to intrust him to the hands of such feeble keepers?

I have done with this mighty argument of self-government. Go, sacred thing! Go in peace.

But Nebraska is urged as a great Union-saving measure. Well, I too go for saving the Union. Much as I hate slavery, I would consent to the extension of it rather than see the Union dissolved, just as I would consent to any great evil to avoid a greater one. But when I go to Union-saving, I must believe, at least, that the means I employ have some adaptation to the end. To my mind, Nebraska has no such adaptation.

"It hath no relish of salvation in it."

It is an aggravation, rather, of the only one thing which ever endangers the Union. When it came upon us, all was peace and quiet. The nation was looking to the forming of new bonds of union, and a long course of peace and prosperity seemed to lie before us. In the whole range of possibility, there scarcely appears to me to have been anything out of which the slavery agitation could have been revived, except the very project of repealing the Missouri Compromise. Every inch of territory we owned already had a definite settlement of the slavery question, by which all parties were pledged to abide. Indeed, there was no uninhabited country on the continent which we could acquire, if we except some extreme northern regions which are wholly out of the question.

In this state of affairs the Genius of Discord himself could scarcely have invented a way of again setting us by the ears but by turning back and destroying the peace measures of the past. The counsels of that Genius seem to have prevailed. The Missouri Compromise was repealed; and here we are in the midst of a new slavery agitation, such, I think, as we have never seen before. Who is responsible for this? Is it those who resist the measure, or those who causelessly brought it forward, and pressed it through, having reason to know, and in fact knowing, it must and would be so resisted? It could not but be expected by its author that it would be looked upon as a measure for the extension of slavery, aggravated by a gross breach of faith.

Argue as you will and long as you will, this is the naked front and aspect of the measure. And in this aspect it could not but produce agitation. Slavery is founded in the selfishness of man's nature—opposition to it in his love of justice. These principles are at eternal antagonism, and when brought into collision so fiercely as slavery extension brings them, shocks and throes and convulsions must ceaselessly follow. Repeal the Missouri Compromise, repeal all compromises, repeal the Declaration of Independence, repeal all past history, you still cannot repeal human nature. It still will be the abundance of man's heart that slavery extension is wrong, and out of the abundance of his heart his mouth will continue to speak.

The structure, too, of the Nebraska Bill is very peculiar. The people are to decide the question of slavery for themselves; but when they are to decide, or how they are to decide, or whether, when the question is once decided, it is to remain so or is to be subject to an indefinite succession of new trials,

the law does not say. Is it to be decided by the first dozen settlers who arrive there, or is it to await the arrival of a hundred? Is it to be decided by a vote of the people or a vote of the Legislature, or, indeed, by a vote of any sort? To these questions the law gives no answer. There is a mystery about this; for when a member proposed to give the Legislature express authority to exclude slavery, it was hooted down by the friends of the bill. This fact is worth remembering. Some Yankees in the East are sending emigrants to Nebraska to exclude slavery from it; and, so far as I can judge, they expect the question to be decided by voting in some way or other. But the Missourians are awake, too. They are within a stone's-throw of the contested ground. They hold meetings and pass resolutions, in which not the slightest allusion to voting is made. They resolve that slavery already exists in the Territory; that more shall go there; that they, remaining in Missouri, will protect it, and that abolitionists shall be hung or driven away. Through all this bowie knives and six-shooters are seen plainly enough, but never a glimpse of the ballot-box.

And, really, what is the result of all this? Each party within having numerous and determined backers without, is it not probable that the contest will come to blows and bloodshed? Could there be a more apt invention to bring about collision and violence on the slavery question than this Nebraska project is? I do not charge or believe that such was intended by Congress; but if they had literally formed a ring and placed champions within it to fight out the controversy, the fight could be no more likely to come off than it is. And if this fight should begin, is it likely to take a very peaceful, Union-saving turn? Will not the first drop of blood so shed be the real knell of the Union?

The Missouri Compromise ought to be restored. For the sake of the Union, it ought to be restored. We ought to elect a House of Representatives which will vote its restoration. If by any means we omit to do this, what follows? Slavery may or may not be established in Nebraska. But whether it be or not, we shall have repudiated—discarded from the councils of the nation—the spirit of compromise; for who, after this, will ever trust in a national compromise? The spirit of mutual concession—that spirit which first gave us the Constitution, and which has thrice saved the Union—we shall have strangled and cast from us forever. And what shall we have in lieu of it? The South flushed with triumph and tempted to excess; the North, betrayed as they believe, brooding on wrong and burning for revenge. One



side will provoke, the other resent. The one will taunt, the other defy; one aggresses, the other retaliates. Already a few in the North defy all constitutional restraints, resist the execution of the Fugitive Slave law, and even menace the institution of slavery in the States where it exists. Already a few in the South claim the constitutional right to take and to hold slaves in the free States, demand the revival of the slave trade, and demand a treaty with Great Britain by which fugitive slaves may be reclaimed from Canada. As yet they are but few on either side. It is a grave question for lovers of the union whether the final destruction of the Missouri Compromise, and with it the spirit of all compromise, will or will not embolden and embitter each of these, and fatally increase the number of both.

But restore the compromise, and what then? We thereby restore the national faith, the national confidence, the national feeling of brotherhood. We thereby reinstate the spirit of concession and compromise, that spirit which has never failed us in past perils, and which may be safely trusted for all the future. The South ought to join in doing this. The peace of the nation is as dear to them as to us. In memories of the past and hopes of the future, they share as largely as we. It would be on their part a great act—great in its spirit, and great in its effect. It would be worth to the nation a hundred years purchase of peace and prosperity. And what of sacrifice would they make? They only surrender to us what they gave us for a consideration long, long ago; what they have not now asked for, struggled or cared for; what has been thrust upon them, not less to their astonishment than to ours.

But it is said we cannot restore it; that though we elect every member of the lower House, the Senate is still against us. It is quite true that of the senators who passed the Nebraska Bill a majority of the whole Senate will retain their seats in spite of the elections of this and the next year. But if at these elections their several constituencies shall clearly express their will against Nebraska, will these senators disregard their will? Will they neither obey nor make room for those who will?

But even if we fail to technically restore the compromise, it is still a great point to carry a popular vote in favor of the restoration. The moral weight of such a vote cannot be estimated too highly. The authors of Nebraska are not at all satisfied with the destruction of the compromise—an indorsement of this principle they proclaim to be the great object. With them, Nebraska

alone is a small matter—to establish a principle for future use is what they particularly desire.

The future use is to be the planting of slavery wherever in the wide world local and unorganized opposition cannot prevent it. Now, if you wish to give them this indorsement, if you wish to establish this principle, do so. I shall regret it, but it is your right. On the contrary, if you are opposed to the principle,—intend to give it no such indorsement, let no wheedling, no sophistry, divert you from throwing a direct vote against it.

Some men, mostly Whigs, who condemn the repeal of the Missouri Compromise, nevertheless hesitate to go for its restoration, lest they be thrown in company with the abolitionists. Will they allow me, as an old Whig, to tell them, good-humoredly, that I think this is very silly? Stand with anybody that stands right. Stand with him while he is right, and part with him when he goes wrong. Stand with the abolitionist in restoring the Missouri Compromise, and stand against him when he attempts to repeal the Fugitive Slave law. In the latter case you stand with the Southern disunionist. What of that? You are still right. In both cases you are right. In both cases you oppose the dangerous extremes. In both you stand on middle ground, and hold the ship level and steady. In both you are national, and nothing less than national. This is the good old Whig ground. To desert such ground because of any company is to be less than a Whig—less than a man—less than an American.

I particularly object to the new position which the avowed principle of this Nebraska law gives to slavery in the body politic. I object to it because it assumes that there can be moral right in the enslaving of one man by another. I object to it as a dangerous dalliance for a free people—a sad evidence that, feeling prosperity, we forget right; that liberty, as a principle, we have ceased to revere. I object to it because the fathers of the republic eschewed and rejected it. The argument of "necessity" was the only argument they ever admitted in favor of slavery; and so far, and so far only, as it carried them did they ever go. They found the institution existing among us, which they could not help, and they cast blame upon the British king for having permitted its introduction.

The royally appointed Governor of Georgia in the early 1700's was threatened by the King with removal if he continued to oppose slavery in his colony—at that time the King of England made a small profit on every

slave imported to the colonies. The later British criticism of the United States for not eradicating slavery in the early 1800's, combined with their tacit support of the 'Confederacy' during the Civil War is a prime example of the irony and hypocrisy of politics: that self-interest will ever overpower right.

Before the Constitution they prohibited its introduction into the Northwestern Territory, the only country we owned then free from it. At the framing and adoption of the Constitution, they forbore to so much as mention the word "slave" or "slavery" in the whole instrument. In the provision for the recovery of fugitives, the slave is spoken of as a "person held to service or labor." In that prohibiting the abolition of the African slave trade for twenty years, that trade is spoken of as "the migration or importation of such persons as any of the States now existing shall think proper to admit," etc. These are the only provisions alluding to slavery. Thus the thing is hid away in the Constitution, just as an afflicted man hides away a wen or cancer which he dares not cut out at once, lest he bleed to death,—with the promise, nevertheless, that the cutting may begin at a certain time. Less than this our fathers could not do, and more they would not do. Necessity drove them so far, and farther they would not go. But this is not all. The earliest Congress under the Constitution took the same view of slavery. They hedged and hemmed it in to the narrowest limits of necessity.

In 1794 they prohibited an outgoing slave trade—that is, the taking of slaves from the United States to sell. In 1798 they prohibited the bringing of slaves from Africa into the Mississippi Territory, this Territory then comprising what are now the States of Mississippi and Alabama. This was ten years before they had the authority to do the same thing as to the States existing at the adoption of the Constitution. In 1800 they prohibited American citizens from trading in slaves between foreign countries, as, for instance, from Africa to Brazil. In 1803 they passed a law in aid of one or two slave-State laws in restraint of the internal slave trade. In 1807, in apparent hot haste, they passed the law, nearly a year in advance,—to take effect the first day of 1808, the very first day the Constitution would permit, prohibiting the African slave trade by heavy pecuniary and corporal penalties. In 1820, finding these provisions ineffectual, they declared the slave trade piracy, and annexed to it the extreme penalty of death. While all this was passing in the General Government, five or six of the original slave

States had adopted systems of gradual emancipation, by which the institution was rapidly becoming extinct within their limits. Thus we see that the plain, unmistakable spirit of that age toward slavery was hostility to the principle and toleration only by necessity.

But now it is to be transformed into a "sacred right." Nebraska brings it forth, places it on the highroad to extension and perpetuity, and with a pat on its back says to it, "Go, and God speed you." Henceforth it is to be the chief jewel of the nation the very figure-head of the ship of state. Little by little, but steadily as man's march to the grave, we have been giving up the old for the new faith. Near eighty years ago we began by declaring that all men are created equal; but now from that beginning we have run down to the other declaration, that for some men to enslave others is a "sacred right of self-government." These principles cannot stand together. They are as opposite as God and Mammon; and who ever holds to the one must despise the other. When Pettit, in connection with his support of the Nebraska Bill, called the Declaration of Independence "a self-evident lie," he only did what consistency and candor require all other Nebraska men to do. Of the forty-odd Nebraska senators who sat present and heard him, no one rebuked him. Nor am I apprised that any Nebraska newspaper, or any Nebraska orator, in the whole nation has ever yet rebuked him. If this had been said among Marion's men, Southerners though they were, what would have become of the man who said it? If this had been said to the men who captured Andre, the man who said it would probably have been hung sooner than Andre was. If it had been said in old Independence Hall seventy-eight years ago, the very doorkeeper would have throttled the man and thrust him into the street. Let no one be deceived. The spirit of seventy-six and the spirit of Nebraska are utter antagonisms; and the former is being rapidly displaced by the latter.

Fellow-countrymen, Americans, South as well as North, shall we make no effort to arrest this? Already the liberal party throughout the world express the apprehension that "the one retrograde institution in America is undermining the principles of progress, and fatally violating the noblest political system the world ever saw." This is not the taunt of enemies, but the warning of friends. Is it quite safe to disregard it—to despise it? Is there no danger to liberty itself in discarding the earliest practice and first precept of our ancient faith? In our greedy chase to make profit of the negro, let us

beware lest we "cancel and tear in pieces" even the white man's charter of freedom.

Our republican robe is soiled and trailed in the dust. Let us repurify it. Let us turn and wash it white in the spirit, if not the blood, of the Revolution. Let us turn slavery from its claims of "moral right," back upon its existing legal rights and its arguments of "necessity." Let us return it to the position our fathers gave it, and there let it rest in peace. Let us readopt the Declaration of Independence, and with it the practices and policy which harmonize with it. Let North and South, let all Americans—let all lovers of liberty everywhere join in the great and good work. If we do this, we shall not only have saved the Union, but we shall have so saved it as to make and to keep it forever worthy of the saving. We shall have so saved it that the succeeding millions of free happy people the world over shall rise up and call us blessed to the latest generations.

At Springfield, twelve days ago, where I had spoken substantially as I have here, Judge Douglas replied to me; and as he is to reply to me here, I shall attempt to anticipate him by noticing some of the points he made there. He commenced by stating I had assumed all the way through that the principle of the Nebraska Bill would have the effect of extending slavery. He denied that this was intended or that this effect would follow.

I will not reopen the argument upon this point. That such was the intention the world believed at the start, and will continue to believe. This was the countenance of the thing, and both friends and enemies instantly recognized it as such. That countenance cannot now be changed by argument. You can as easily argue the color out of the negro's skin. Like the "bloody hand," you may wash it and wash it, the red witness of guilt still sticks and stares horribly at you.

Next he says that Congressional intervention never prevented slavery anywhere; that it did not prevent it in the Northwestern Territory, nor in Illinois; that, in fact, Illinois came into the Union as a slave State; that the principle of the Nebraska Bill expelled it from Illinois, from several old States, from everywhere.

Now this is mere quibbling all the way through. If the Ordinance of '87 did not keep slavery out of the Northwest Territory, how happens it that the northwest shore of the Ohio River is entirely free from it, while the

southeast shore, less than a mile distant, along nearly the whole length of the river, is entirely covered with it?

If that ordinance did not keep it out of Illinois, what was it that made the difference between Illinois and Missouri? They lie side by side, the Mississippi River only dividing them, while their early settlements were within the same latitude. Between 1810 and 1820 the number of slaves in Missouri increased 7211, while in Illinois in the same ten years they decreased 51. This appears by the census returns. During nearly all of that ten years both were Territories, not States. During this time the ordinance forbade slavery to go into Illinois, and nothing forbade it to go into Missouri. It did go into Missouri, and did not go into Illinois. That is the fact. Can any one doubt as to the reason of it? But he says Illinois came into the Union as a slave State. Silence, perhaps, would be the best answer to this flat contradiction of the known history of the country. What are the facts upon which this bold assertion is based? When we first acquired the country, as far back as 1787, there were some slaves within it held by the French inhabitants of Kaskaskia. The territorial legislation admitted a few negroes from the slave States as indentured servants. One year after the adoption of the first State constitution, the whole number of them was—what do you think? Just one hundred and seventeen, while the aggregate free population was 55,094,—about four hundred and seventy to one. Upon this state of facts the people framed their constitution prohibiting the further introduction of slavery, with a sort of guaranty to the owners of the few indentured servants, giving freedom to their children to be born thereafter, and making no mention whatever of any supposed slave for life. Out of this small matter the Judge manufactures his argument that Illinois came into the Union as a slave State. Let the facts be the answer to the argument.

The principles of the Nebraska Bill, he says, expelled slavery from Illinois. The principle of that bill first planted it here—that is, it first came because there was no law to prevent it, first came before we owned the country; and finding it here, and having the Ordinance of '87 to prevent its increasing, our people struggled along, and finally got rid of it as best they could.

But the principle of the Nebraska Bill abolished slavery in several of the old States. Well, it is true that several of the old States, in the last quarter of the last century, did adopt systems of gradual emancipation by which the

institution has finally become extinct within their limits; but it may or may not be true that the principle of the Nebraska Bill was the cause that led to the adoption of these measures. It is now more than fifty years since the last of these States adopted its system of emancipation.

If the Nebraska Bill is the real author of the benevolent works, it is rather deplorable that it has for so long a time ceased working altogether. Is there not some reason to suspect that it was the principle of the Revolution, and not the principle of the Nebraska Bill, that led to emancipation in these old States? Leave it to the people of these old emancipating States, and I am quite certain they will decide that neither that nor any other good thing ever did or ever will come of the Nebraska Bill.

In the course of my main argument, Judge Douglas interrupted me to say that the principle of the Nebraska Bill was very old; that it originated when God made man, and placed good and evil before him, allowing him to choose for himself, being responsible for the choice he should make. At the time I thought this was merely playful, and I answered it accordingly. But in his reply to me he renewed it as a serious argument. In seriousness, then, the facts of this proposition are not true as stated. God did not place good and evil before man, telling him to make his choice. On the contrary, he did tell him there was one tree of the fruit of which he should not eat, upon pain of certain death. I should scarcely wish so strong a prohibition against slavery in Nebraska.

But this argument strikes me as not a little remarkable in another particular—in its strong resemblance to the old argument for the "divine right of kings." By the latter, the king is to do just as he pleases with his white subjects, being responsible to God alone. By the former, the white man is to do just as he pleases with his black slaves, being responsible to God alone. The two things are precisely alike, and it is but natural that they should find similar arguments to sustain them.

I had argued that the application of the principle of self-government, as contended for, would require the revival of the African slave trade; that no argument could be made in favor of a man's right to take slaves to Nebraska which could not be equally well made in favor of his right to bring them from the coast of Africa. The Judge replied that the Constitution requires the suppression of the foreign slave trade, but does not require the prohibition of slavery in the Territories. That is a mistake in point of fact.

The Constitution does not require the action of Congress in either case, and it does authorize it in both. And so there is still no difference between the cases.

In regard to what I have said of the advantage the slave States have over the free in the matter of representation, the Judge replied that we in the free States count five free negroes as five white people, while in the slave States they count five slaves as three whites only; and that the advantage, at last, was on the side of the free States.

Now, in the slave States they count free negroes just as we do; and it so happens that, besides their slaves, they have as many free negroes as we have, and thirty thousand over. Thus, their free negroes more than balance ours; and their advantage over us, in consequence of their slaves, still remains as I stated it.

In reply to my argument that the compromise measures of 1850 were a system of equivalents, and that the provisions of no one of them could fairly be carried to other subjects without its corresponding equivalent being carried with it, the Judge denied outright that these measures had any connection with or dependence upon each other. This is mere desperation. If they had no connection, why are they always spoken of in connection? Why has he so spoken of them a thousand times? Why has he constantly called them a series of measures? Why does everybody call them a compromise? Why was California kept out of the Union six or seven months, if it was not because of its connection with the other measures? Webster's leading definition of the verb "to compromise" is "to adjust and settle a difference, by mutual agreement, with concessions of claims by the parties." This conveys precisely the popular understanding of the word "compromise."

We knew, before the Judge told us, that these measures passed separately, and in distinct bills, and that no two of them were passed by the votes of precisely the same members. But we also know, and so does he know, that no one of them could have passed both branches of Congress but for the understanding that the others were to pass also. Upon this understanding, each got votes which it could have got in no other way. It is this fact which gives to the measures their true character; and it is the universal knowledge of this fact that has given them the name of "compromises," so expressive of that true character.



I had asked: "If, in carrying the Utah and New Mexico laws to Nebraska, you could clear away other objection, how could you leave Nebraska 'perfectly free' to introduce slavery before she forms a constitution, during her territorial government, while the Utah and New Mexico laws only authorize it when they form constitutions and are admitted into the Union?" To this Judge Douglas answered that the Utah and New Mexico laws also authorized it before; and to prove this he read from one of their laws, as follows: "That the legislative power of said Territory shall extend to all rightful subjects of legislation, consistent with the Constitution of the United States and the provisions of this act."

Now it is perceived from the reading of this that there is nothing express upon the subject, but that the authority is sought to be implied merely for the general provision of "all rightful subjects of legislation." In reply to this I insist, as a legal rule of construction, as well as the plain, popular view of the matter, that the express provision for Utah and New Mexico coming in with slavery, if they choose, when they shall form constitutions, is an exclusion of all implied authority on the same subject; that Congress having the subject distinctly in their minds when they made the express provision, they therein expressed their whole meaning on that subject.

The Judge rather insinuated that I had found it convenient to forget the Washington territorial law passed in 1853. This was a division of Oregon, organizing the northern part as the Territory of Washington. He asserted that by this act the Ordinance of '87, theretofore existing in Oregon, was repealed; that nearly all the members of Congress voted for it, beginning in the House of Representatives with Charles Allen of Massachusetts, and ending with Richard Yates of Illinois; and that he could not understand how those who now opposed the Nebraska Bill so voted there, unless it was because it was then too soon after both the great political parties had ratified the compromises of 1850, and the ratification therefore was too fresh to be then repudiated.

Now I had seen the Washington act before, and I have carefully examined it since; and I aver that there is no repeal of the Ordinance of '87, or of any prohibition of slavery, in it. In express terms, there is absolutely nothing in the whole law upon the subject—in fact, nothing to lead a reader to think of the subject. To my judgment it is equally free from everything from which repeal can be legally implied; but, however this may be, are men now to be

entrapped by a legal implication, extracted from covert language, introduced perhaps for the very purpose of entrapping them? I sincerely wish every man could read this law quite through, carefully watching every sentence and every line for a repeal of the Ordinance of '87, or anything equivalent to it.

Another point on the Washington act: If it was intended to be modeled after the Utah and New Mexico acts, as Judge Douglas insists, why was it not inserted in it, as in them, that Washington was to come in with or without slavery as she may choose at the adoption of her constitution? It has no such provision in it; and I defy the ingenuity of man to give a reason for the omission, other than that it was not intended to follow the Utah and New Mexico laws in regard to the question of slavery.

The Washington act not only differs vitally from the Utah and New Mexico acts, but the Nebraska act differs vitally from both. By the latter act the people are left "perfectly free" to regulate their own domestic concerns, etc.; but in all the former, all their laws are to be submitted to Congress, and if disapproved are to be null. The Washington act goes even further; it absolutely prohibits the territorial Legislature, by very strong and guarded language, from establishing banks or borrowing money on the faith of the Territory. Is this the sacred right of self-government we hear vaunted so much? No, sir; the Nebraska Bill finds no model in the acts of '50 or the Washington act. It finds no model in any law from Adam till to-day. As Phillips says of Napoleon, the Nebraska act is grand, gloomy and peculiar, wrapped in the solitude of its own originality, without a model and without a shadow upon the earth.

In the course of his reply Senator Douglas remarked in substance that he had always considered this government was made for the white people and not for the negroes. Why, in point of mere fact, I think so too. But in this remark of the Judge there is a significance which I think is the key to the great mistake (if there is any such mistake) which he has made in this Nebraska measure. It shows that the Judge has no very vivid impression that the negro is human, and consequently has no idea that there can be any moral question in legislating about him. In his view the question of whether a new country shall be slave or free is a matter of utter indifference as it is whether his neighbor shall plant his farm with tobacco or stock it with horned cattle. Now, whether this view is right or wrong, it is very certain

that the great mass of mankind take a totally different view. They consider slavery a great moral wrong, and their feeling against it is not evanescent, but eternal. It lies at the very foundation of their sense of justice, and it cannot be trifled with. It is a great and durable element of popular action, and I think no statesman can safely disregard it.

Our Senator also objects that those who oppose him in this matter do not entirely agree with one another. He reminds me that in my firm adherence to the constitutional rights of the slave States I differ widely from others who are cooperating with me in opposing the Nebraska Bill, and he says it is not quite fair to oppose him in this variety of ways. He should remember that he took us by surprise—astounded us by this measure. We were thunderstruck and stunned, and we reeled and fell in utter confusion. But we rose, each fighting, grasping whatever he could first reach—a scythe, a pitchfork, a chopping-ax, or a butcher's cleaver. We struck in the direction of the sound, and we were rapidly closing in upon him. He must not think to divert us from our purpose by showing us that our drill, our dress, and our weapons are not entirely perfect and uniform. When the storm shall be past he shall find us still Americans, no less devoted to the continued union and prosperity of the country than heretofore.

Finally, the Judge invokes against me the memory of Clay and Webster. They were great men, and men of great deeds. But where have I assailed them? For what is it that their lifelong enemy shall now make profit by assuming to defend them against me, their lifelong friend? I go against the repeal of the Missouri Compromise; did they ever go for it? They went for the Compromise of 1850; did I ever go against them? They were greatly devoted to the Union; to the small measure of my ability was I ever less so? Clay and Webster were dead before this question arose; by what authority shall our Senator say they would espouse his side of it if alive? Mr. Clay was the leading spirit in making the Missouri Compromise; is it very credible that if now alive he would take the lead in the breaking of it? The truth is that some support from Whigs is now a necessity with the Judge, and for this it is that the names of Clay and Webster are invoked. His old friends have deserted him in such numbers as to leave too few to live by. He came to his own, and his own received him not; and lo! he turns unto the Gentiles.

A word now as to the Judge's desperate assumption that the compromises of 1850 had no connection with one another; that Illinois came into the Union as a slave State, and some other similar ones. This is no other than a bold denial of the history of the country. If we do not know that the compromises of 1850 were dependent on each other; if we do not know that Illinois came into the Union as a free State,—we do not know anything. If we do not know these things, we do not know that we ever had a Revolutionary War or such a chief as Washington. To deny these things is to deny our national axioms,—or dogmas, at least,—and it puts an end to all argument. If a man will stand up and assert, and repeat and reassert, that two and two do not make four, I know nothing in the power of argument that can stop him. I think I can answer the Judge so long as he sticks to the premises; but when he flies from them, I cannot work any argument into the consistency of a mental gag and actually close his mouth with it. In such a case I can only commend him to the seventy thousand answers just in from Pennsylvania, Ohio, and Indiana.

# **REQUEST FOR SENATE SUPPORT**

**TO CHARLES HOYT**

CLINTON, De WITT Co., Nov. 10, 1854

DEAR SIR:—You used to express a good deal of partiality for me, and if you are still so, now is the time. Some friends here are really for me for the U.S. Senate, and I should be very grateful if you could make a mark for me among your members. Please write me at all events, giving me the names, post-offices, and "political position" of members round about you. Direct to Springfield.

Let this be confidential.

Yours truly,

A. LINCOLN.

**TO T. J. HENDERSON.**

**SPRINGFIELD,**

November 27, 1854 T. J. HENDERSON, ESQ.

MY DEAR SIR:—It has come round that a whig may, by possibility, be elected to the United States Senate, and I want the chance of being the man. You are a member of the Legislature, and have a vote to give. Think it over, and see whether you can do better than to go for me.

Write me, at all events; and let this be confidential.

Yours truly,

A. LINCOLN.

## **TO J. GILLESPIE.**

**SPRINGFIELD, Dec. 1, 1854.**

DEAR SIR:—I have really got it into my head to try to be United States Senator, and, if I could have your support, my chances would be reasonably good. But I know, and acknowledge, that you have as just claims to the place as I have; and therefore I cannot ask you to yield to me, if you are thinking of becoming a candidate, yourself. If, however, you are not, then I should like to be remembered affectionately by you; and also to have you make a mark for me with the Anti-Nebraska members down your way.

If you know, and have no objection to tell, let me know whether Trumbull intends to make a push. If he does, I suppose the two men in St. Clair, and one, or both, in Madison, will be for him. We have the Legislature, clearly enough, on joint ballot, but the Senate is very close, and Cullom told me to-day that the Nebraska men will stave off the election, if they can. Even if we get into joint vote, we shall have difficulty to unite our forces. Please write me, and let this be confidential.

Your friend, as ever,

A. LINCOLN.

# **POLITICAL REFERENCES**

## **TO JUSTICE MCLEAN.**

SPRINGFIELD, ILL., December 6, 1854.

SIR:—I understand it is in contemplation to displace the present clerk and appoint a new one for the Circuit and District Courts of Illinois. I am very friendly to the present incumbent, and, both for his own sake and that of his family, I wish him to be retained so long as it is possible for the court to do so.

In the contingency of his removal, however, I have recommended William Butler as his successor, and I do not wish what I write now to be taken as any abatement of that recommendation.

William J. Black is also an applicant for the appointment, and I write this at the solicitation of his friends to say that he is every way worthy of the office, and that I doubt not the conferring it upon him will give great satisfaction.

Your ob't servant,

A. LINCOLN.



**TO T. J. HENDERSON.**

**SPRINGFIELD, December 15. 1854**

HON. T. J. HENDERSON.

DEAR SIR:—Yours of the 11th was received last night, and for which I thank you. Of course I prefer myself to all others; yet it is neither in my heart nor my conscience to say I am any better man than Mr. Williams. We shall have a terrible struggle with our adversaries. They are desperate and bent on desperate deeds. I accidentally learned of one of the leaders here writing to a member south of here, in about the following language:

We are beaten. They have a clean majority of at least nine, on joint ballot. They outnumber us, but we must outmanage them. Douglas must be sustained. We must elect the Speaker; and we must elect a Nebraska United States Senator, or "elect none at all." Similar letters, no doubt, are written to every Nebraska member. Be considering how we can best meet, and foil, and beat them. I send you, by mail, a copy of my Peoria speech. You may have seen it before, or you may not think it worth seeing now.

Do not speak of the Nebraska letter mentioned above; I do not wish it to become public, that I received such information.

Yours truly,

A. LINCOLN.

**1855**

# LOSS OF PRIMARY FOR SENATOR

TO E. B. WASHBURNE.

SPRINGFIELD, February 9, 1855 MY DEAR SIR:

I began with 44 votes, Shields 41, and Trumbull 5,—yet Trumbull was elected. In fact 47 different members voted for me,—getting three new ones on the second ballot, and losing four old ones. How came my 47 to yield to Trumbull's 5? It was Governor Matteson's work. He has been secretly a candidate ever since (before, even) the fall election.

All the members round about the canal were Anti-Nebraska, but were nevertheless nearly all Democrats and old personal friends of his. His plan was to privately impress them with the belief that he was as good Anti-Nebraska as any one else—at least could be secured to be so by instructions, which could be easily passed.

The Nebraska men, of course, were not for Matteson; but when they found they could elect no avowed Nebraska man, they tardily determined to let him get whomever of our men he could, by whatever means he could, and ask him no questions.

The Nebraska men were very confident of the election of Matteson, though denying that he was a candidate, and we very much believing also that they would elect him. But they wanted first to make a show of good faith to Shields by voting for him a few times, and our secret Matteson men also wanted to make a show of good faith by voting with us a few times. So we led off. On the seventh ballot, I think, the signal was given to the Nebraska men to turn to Matteson, which they acted on to a man, with one exception. . . Next ballot the remaining Nebraska man and one pretended Anti went over to him, giving him 46. The next still another, giving him 47, wanting only three of an election. In the meantime our friends, with a view of detaining our expected bolters, had been turning from me to Trumbull till he had risen to 35 and I had been reduced to 15. These would never desert me except by my direction; but I became satisfied that if we could prevent Matteson's election one or two ballots more, we could not possibly do so a

single ballot after my friends should begin to return to me from Trumbull. So I determined to strike at once, and accordingly advised my remaining friends to go for him, which they did and elected him on the tenth ballot.

Such is the way the thing was done. I think you would have done the same under the circumstances.

I could have headed off every combination and been elected, had it not been for Matteson's double game—and his defeat now gives me more pleasure than my own gives me pain. On the whole, it is perhaps as well for our general cause that Trumbull is elected. The Nebraska men confess that they hate it worse than anything that could have happened. It is a great consolation to see them worse whipped than I am.

Yours forever,

A. LINCOLN.

# **RETURN TO LAW PROFESSION**

**TO SANFORD, PORTER, AND STRIKER, NEW YORK.**

SPRINGFIELD, MARCH 10, 1855

GENTLEMEN:—Yours of the 5th is received, as also was that of 15th Dec, last, inclosing bond of Clift to Pray. When I received the bond I was dabbling in politics, and of course neglecting business. Having since been beaten out I have gone to work again.

As I do not practice in Rushville, I to-day open a correspondence with Henry E. Dummer, Esq., of Beardstown, Ill., with the view of getting the job into his hands. He is a good man if he will undertake it.

Write me whether I shall do this or return the bond to you.

Yours respectfully,

A. LINCOLN.

## **TO O. H. BROWNING.**

**SPRINGFIELD, March 23, 1855.**

HON. O. H. BROWNING.

MY DEAR SIR:—Your letter to Judge Logan has been shown to us by him; and, with his consent, we answer it. When it became probable that there would be a vacancy on the Supreme Bench, public opinion, on this side of the river, seemed to be universally directed to Logan as the proper man to fill it. I mean public opinion on our side in politics, with very small manifestation in any different direction by the other side. The result is, that he has been a good deal pressed to allow his name to be used, and he has consented to it, provided it can be done with perfect cordiality and good feeling on the part of all our own friends. We, the undersigned, are very anxious for it; and the more so now that he has been urged, until his mind is turned upon the matter. We, therefore are very glad of your letter, with the information it brings us, mixed only with a regret that we can not elect Logan and Walker both. We shall be glad, if you will hoist Logan's name, in your Quincy papers.

Very truly your friends,

A. LINCOLN, B. S. EDWARDS, JOHN T. STUART.

**TO H. C. WHITNEY.**

**SPRINGFIELD, June 7, 1855.**

H. C. WHITNEY, ESQ.

MY DEAR SIR:—Your note containing election news is received; and for which I thank you. It is all of no use, however. Logan is worse beaten than any other man ever was since elections were invented—beaten more than twelve hundred in this county. It is conceded on all hands that the Prohibitory law is also beaten.

Yours truly,

A. LINCOLN.

# **RESPONSE TO A PRO-SLAVERY FRIEND**

**TO JOSHUA. F. SPEED.**

SPRINGFIELD, August 24, 1855

DEAR SPEED:—You know what a poor correspondent I am. Ever since I received your very agreeable letter of the 22d of May, I have been intending to write you an answer to it. You suggest that in political action, now, you and I would differ. I suppose we would; not quite as much, however, as you may think. You know I dislike slavery, and you fully admit the abstract wrong of it. So far there is no cause of difference. But you say that sooner than yield your legal right to the slave, especially at the bidding of those who are not themselves interested, you would see the Union dissolved. I am not aware that any one is bidding you yield that right; very certainly I am not. I leave that matter entirely to yourself. I also acknowledge your rights and my obligations under the Constitution in regard to your slaves. I confess I hate to see the poor creatures hunted down and caught and carried back to their stripes and unrequited toil; but I bite my lips and keep quiet. In 1841 you and I had together a tedious low-water trip on a steamboat from Louisville to St. Louis. You may remember, as I well do, that from Louisville to the mouth of the Ohio there were on board ten or a dozen slaves shackled together with irons. That sight was a continued torment to me, and I see something like it every time I touch the Ohio or any other slave border. It is not fair for you to assume that I have no interest in a thing which has, and continually exercises, the power of making me miserable. You ought rather to appreciate how much the great body of the Northern people do crucify their feelings, in order to maintain their loyalty to the Constitution and the Union. I do oppose the extension of slavery because my judgment and feeling so prompt me, and I am under no obligations to the contrary. If for this you and I must differ, differ we must. You say, if you were President, you would send an army and hang the leaders of the Missouri outrages upon the Kansas elections; still, if Kansas fairly votes herself a slave State she must be admitted or the Union must be dissolved. But how if she votes herself a slave State unfairly, that is, by the



very means for which you say you would hang men? Must she still be admitted, or the Union dissolved? That will be the phase of the question when it first becomes a practical one. In your assumption that there may be a fair decision of the slavery question in Kansas, I plainly see you and I would differ about the Nebraska law. I look upon that enactment not as a law, but as a violence from the beginning. It was conceived in violence, is maintained in violence, and is being executed in violence. I say it was conceived in violence, because the destruction of the Missouri Compromise, under the circumstances, was nothing less than violence. It was passed in violence because it could not have passed at all but for the votes of many members in violence of the known will of their constituents. It is maintained in violence, because the elections since clearly demand its repeal; and the demand is openly disregarded.

You say men ought to be hung for the way they are executing the law; I say the way it is being executed is quite as good as any of its antecedents. It is being executed in the precise way which was intended from the first, else why does no Nebraska man express astonishment or condemnation? Poor Reeder is the only public man who has been silly enough to believe that anything like fairness was ever intended, and he has been bravely undeceived.

That Kansas will form a slave constitution, and with it will ask to be admitted into the Union, I take to be already a settled question, and so settled by the very means you so pointedly condemn. By every principle of law ever held by any court North or South, every negro taken to Kansas is free; yet, in utter disregard of this,—in the spirit of violence merely,—that beautiful Legislature gravely passes a law to hang any man who shall venture to inform a negro of his legal rights. This is the subject and real object of the law. If, like Haman, they should hang upon the gallows of their own building, I shall not be among the mourners for their fate. In my humble sphere, I shall advocate the restoration of the Missouri Compromise so long as Kansas remains a Territory, and when, by all these foul means, it seeks to come into the Union as a slave State, I shall oppose it. I am very loath in any case to withhold my assent to the enjoyment of property acquired or located in good faith; but I do not admit that good faith in taking a negro to Kansas to be held in slavery is a probability with any man. Any man who has sense enough to be the controller of his own property has too much sense to misunderstand the outrageous character of the whole

Nebraska business. But I digress. In my opposition to the admission of Kansas I shall have some company, but we may be beaten. If we are, I shall not on that account attempt to dissolve the Union. I think it probable, however, we shall be beaten. Standing as a unit among yourselves, You can, directly and indirectly, bribe enough of our men to carry the day, as you could on the open proposition to establish a monarchy. Get hold of some man in the North whose position and ability is such that he can make the support of your measure, whatever it may be, a Democratic party necessity, and the thing is done. Apropos of this, let me tell you an anecdote. Douglas introduced the Nebraska Bill in January. In February afterward there was a called session of the Illinois Legislature. Of the one hundred members composing the two branches of that body, about seventy were Democrats. These latter held a caucus in which the Nebraska Bill was talked of, if not formally discussed. It was thereby discovered that just three, and no more, were in favor of the measure. In a day or two Douglas's orders came on to have resolutions passed approving the bill; and they were passed by large majorities!!!! The truth of this is vouched for by a bolting Democratic member. The masses, too, Democratic as well as Whig, were even nearer unanimous against it; but, as soon as the party necessity of supporting it became apparent, the way the Democrats began to see the wisdom and justice of it was perfectly astonishing.

You say that if Kansas fairly votes herself a free State, as a Christian you will rejoice at it. All decent slaveholders talk that way, and I do not doubt their candor. But they never vote that way. Although in a private letter or conversation you will express your preference that Kansas shall be free, you would vote for no man for Congress who would say the same thing publicly. No such man could be elected from any district in a slave State. You think Stringfellow and company ought to be hung; and yet at the next Presidential election you will vote for the exact type and representative of Stringfellow. The slave-breeders and slave-traders are a small, odious, and detested class among you; and yet in politics they dictate the course of all of you, and are as completely your masters as you are the master of your own negroes. You inquire where I now stand. That is a disputed point. I think I am a Whig; but others say there are no Whigs, and that I am an Abolitionist. When I was at Washington, I voted for the Wilmot Proviso as good as forty times; and I never heard of any one attempting to un-Whig me for that. I now do no more than oppose the extension of slavery. I am not a Know-

Nothing; that is certain. How could I be? How can any one who abhors the oppression of negroes be in favor of degrading classes of white people? Our progress in degeneracy appears to me to be pretty rapid. As a nation we began by declaring that "all men are created equal." We now practically read it "all men are created equal, except negroes." When the Know-Nothings get control, it will read "all men are created equal, except negroes and foreigners and Catholics." When it comes to this, I shall prefer emigrating to some country where they make no pretense of loving liberty,—to Russia, for instance, where despotism can be taken pure, and without the base alloy of hypocrisy.

Mary will probably pass a day or two in Louisville in October. My kindest regards to Mrs. Speed. On the leading subject of this letter I have more of her sympathy than I have of yours; and yet let me say I am,

Your friend forever,

A. LINCOLN.

**1856**

# REQUEST FOR A RAILWAY PASS

TO R. P. MORGAN

SPRINGFIELD, February 13, 1856.

R. P. MORGAN, ESQ.:

Says Tom to John, "Here's your old rotten wheelbarrow. I've broke it usin' on it. I wish you would mend it, 'case I shall want to borrow it this arternoon." Acting on this as a precedent, I say, "Here's your old 'chalked hat,—I wish you would take it and send me a new one, 'case I shall want to use it the first of March."

Yours truly,

A. LINCOLN.

(A 'chalked hat' was the common term, at that time, for a railroad pass.)

**SPEECH DELIVERED BEFORE THE FIRST  
REPUBLICAN STATE CONVENTION  
OF ILLINOIS, HELD AT BLOOMINGTON, ON MAY 29,  
1856.**

[From the Report by William C. Whitney.]

(Mr. Whitney's notes were made at the time, but not written out until 1896. He does not claim that the speech, as here reported, is literally correct only that he has followed the argument, and that in many cases the sentences are as Mr. Lincoln spoke them.)

Mr. CHAIRMAN AND GENTLEMEN: I was over at [Cries of "Platform!" "Take the platform!"]—I say, that while I was at Danville Court, some of our friends of Anti-Nebraska got together in Springfield and elected me as one delegate to represent old Sangamon with them in this convention, and I am here certainly as a sympathizer in this movement and by virtue of that meeting and selection. But we can hardly be called delegates strictly, inasmuch as, properly speaking, we represent nobody but ourselves. I think it altogether fair to say that we have no Anti-Nebraska party in Sangamon, although there is a good deal of Anti-Nebraska feeling there; but I say for myself, and I think I may speak also for my colleagues, that we who are here fully approve of the platform and of all that has been done [A voice, "Yes!"], and even if we are not regularly delegates, it will be right for me to answer your call to speak. I suppose we truly stand for the public sentiment of Sangamon on the great question of the repeal, although we do not yet represent many numbers who have taken a distinct position on the question.

We are in a trying time—it ranges above mere party—and this movement to call a halt and turn our steps backward needs all the help and good counsels it can get; for unless popular opinion makes itself very strongly felt, and a change is made in our present course, blood will flow on account of Nebraska, and brother's hands will be raised against brother!

[The last sentence was uttered in such an earnest, impressive, if not, indeed, tragic, manner, as to make a cold chill creep over me. Others gave a similar experience.]

I have listened with great interest to the earnest appeal made to Illinois men by the gentleman from Lawrence [James S. Emery] who has just addressed us so eloquently and forcibly. I was deeply moved by his statement of the wrongs done to free-State men out there. I think it just to say that all true men North should sympathize with them, and ought to be willing to do any possible and needful thing to right their wrongs. But we must not promise what we ought not, lest we be called on to perform what we cannot; we must be calm and moderate, and consider the whole difficulty, and determine what is possible and just. We must not be led by excitement and passion to do that which our sober judgments would not approve in our cooler moments. We have higher aims; we will have more serious business than to dally with temporary measures.

We are here to stand firmly for a principle—to stand firmly for a right. We know that great political and moral wrongs are done, and outrages committed, and we denounce those wrongs and outrages, although we cannot, at present, do much more. But we desire to reach out beyond those personal outrages and establish a rule that will apply to all, and so prevent any future outrages.

We have seen to-day that every shade of popular opinion is represented here, with Freedom, or rather Free Soil, as the basis. We have come together as in some sort representatives of popular opinion against the extension of slavery into territory now free in fact as well as by law, and the pledged word of the statesmen of the nation who are now no more. We come—we are here assembled together—to protest as well as we can against a great wrong, and to take measures, as well as we now can, to make that wrong right; to place the nation, as far as it may be possible now, as it was before the repeal of the Missouri Compromise; and the plain way to do this is to restore the Compromise, and to demand and determine that Kansas shall be free! [Immense applause.] While we affirm, and reaffirm, if necessary, our devotion to the principles of the Declaration of Independence, let our practical work here be limited to the above. We know that there is not a perfect agreement of sentiment here on the public questions which might be rightfully considered in this convention, and that the indignation which we

all must feel cannot be helped; but all of us must give up something for the good of the cause. There is one desire which is uppermost in the mind, one wish common to us all, to which no dissent will be made; and I counsel you earnestly to bury all resentment, to sink all personal feeling, make all things work to a common purpose in which we are united and agreed about, and which all present will agree is absolutely necessary—which must be done by any rightful mode if there be such: Slavery must be kept out of Kansas! [Applause.] The test—the pinch—is right there. If we lose Kansas to freedom, an example will be set which will prove fatal to freedom in the end. We, therefore, in the language of the Bible, must "lay the axe to the root of the tree." Temporizing will not do longer; now is the time for decision—for firm, persistent, resolute action. [Applause.]

The Nebraska Bill, or rather Nebraska law, is not one of wholesome legislation, but was and is an act of legislative usurpation, whose result, if not indeed intention, is to make slavery national; and unless headed off in some effective way, we are in a fair way to see this land of boasted freedom converted into a land of slavery in fact. [Sensation.] Just open your two eyes, and see if this be not so. I need do no more than state, to command universal approval, that almost the entire North, as well as a large following in the border States, is radically opposed to the planting of slavery in free territory. Probably in a popular vote throughout the nation nine tenths of the voters in the free States, and at least one-half in the border States, if they could express their sentiments freely, would vote NO on such an issue; and it is safe to say that two thirds of the votes of the entire nation would be opposed to it. And yet, in spite of this overbalancing of sentiment in this free country, we are in a fair way to see Kansas present itself for admission as a slave State. Indeed, it is a felony, by the local law of Kansas, to deny that slavery exists there even now. By every principle of law, a negro in Kansas is free; yet the bogus Legislature makes it an infamous crime to tell him that he is free!

Statutes of Kansas, 1555, chapter 151, Sec. 12: If any free person, by speaking or by writing, assert or maintain that persons have not the right to hold slaves in this Territory, or shall introduce into this Territory, print, publish, write, circulate . . . any book, paper, magazine, pamphlet, or circular containing any denial of the right of persons to hold slaves in this Territory such person shall be deemed guilty of felony, and punished by imprisonment at hard labor for a term of not less than two years. Sec. 13.



No person who is conscientiously opposed to holding slaves, or who does not admit the right to hold slaves in this Territory, shall sit as a juror on the trial of any prosecution for any violation of any Sections of this Act.

The party lash and the fear of ridicule will overawe justice and liberty; for it is a singular fact, but none the less a fact, and well known by the most common experience, that men will do things under the terror of the party lash that they would not on any account or for any consideration do otherwise; while men who will march up to the mouth of a loaded cannon without shrinking will run from the terrible name of "Abolitionist," even when pronounced by a worthless creature whom they, with good reason, despise. For instance—to press this point a little—Judge Douglas introduced his Nebraska Bill in January; and we had an extra session of our Legislature in the succeeding February, in which were seventy-five Democrats; and at a party caucus, fully attended, there were just three votes, out of the whole seventy-five, for the measure. But in a few days orders came on from Washington, commanding them to approve the measure; the party lash was applied, and it was brought up again in caucus, and passed by a large majority. The masses were against it, but party necessity carried it; and it was passed through the lower house of Congress against the will of the people, for the same reason. Here is where the greatest danger lies that, while we profess to be a government of law and reason, law will give way to violence on demand of this awful and crushing power. Like the great Juggernaut—I think that is the name—the great idol, it crushes everything that comes in its way, and makes a [?]-or, as I read once, in a blackletter law book, "a slave is a human being who is legally not a person but a thing." And if the safeguards to liberty are broken down, as is now attempted, when they have made things of all the free negroes, how long, think you, before they will begin to make things of poor white men? [Applause.] Be not deceived. Revolutions do not go backward. The founder of the Democratic party declared that all men were created equal. His successor in the leadership has written the word "white" before men, making it read "all white men are created equal." Pray, will or may not the Know-Nothings, if they should get in power, add the word "Protestant," making it read "all Protestant white men...?"

Meanwhile the hapless negro is the fruitful subject of reprisals in other quarters. John Pettit, whom Tom Benton paid his respects to, you will recollect, calls the immortal Declaration "a self-evident lie"; while at the

birthplace of freedom—in the shadow of Bunker Hill and of the "cradle of liberty," at the home of the Adamses and Warren and Otis—Choate, from our side of the house, dares to fritter away the birthday promise of liberty by proclaiming the Declaration to be "a string of glittering generalities"; and the Southern Whigs, working hand in hand with proslavery Democrats, are making Choate's theories practical. Thomas Jefferson, a slaveholder, mindful of the moral element in slavery, solemnly declared that he trembled for his country when he remembered that God is just; while Judge Douglas, with an insignificant wave of the hand, "don't care whether slavery is voted up or voted down." Now, if slavery is right, or even negative, he has a right to treat it in this trifling manner. But if it is a moral and political wrong, as all Christendom considers it to be, how can he answer to God for this attempt to spread and fortify it? [Applause.]

But no man, and Judge Douglas no more than any other, can maintain a negative, or merely neutral, position on this question; and, accordingly, he avows that the Union was made by white men and for white men and their descendants. As matter of fact, the first branch of the proposition is historically true; the government was made by white men, and they were and are the superior race. This I admit. But the corner-stone of the government, so to speak, was the declaration that "all men are created equal," and all entitled to "life, liberty, and the pursuit of happiness." [Applause.]

And not only so, but the framers of the Constitution were particular to keep out of that instrument the word "slave," the reason being that slavery would ultimately come to an end, and they did not wish to have any reminder that in this free country human beings were ever prostituted to slavery. [Applause.] Nor is it any argument that we are superior and the negro inferior—that he has but one talent while we have ten. Let the negro possess the little he has in independence; if he has but one talent, he should be permitted to keep the little he has. [Applause:] But slavery will endure no test of reason or logic; and yet its advocates, like Douglas, use a sort of bastard logic, or noisy assumption it might better be termed, like the above, in order to prepare the mind for the gradual, but none the less certain, encroachments of the Moloch of slavery upon the fair domain of freedom. But however much you may argue upon it, or smother it in soft phrase, slavery can only be maintained by force—by violence. The repeal of the Missouri Compromise was by violence. It was a violation of both law and

the sacred obligations of honor, to overthrow and trample under foot a solemn compromise, obtained by the fearful loss to freedom of one of the fairest of our Western domains. Congress violated the will and confidence of its constituents in voting for the bill; and while public sentiment, as shown by the elections of 1854, demanded the restoration of this compromise, Congress violated its trust by refusing simply because it had the force of numbers to hold on to it. And murderous violence is being used now, in order to force slavery on to Kansas; for it cannot be done in any other way. [Sensation.]

The necessary result was to establish the rule of violence—force, instead of the rule of law and reason; to perpetuate and spread slavery, and in time to make it general. We see it at both ends of the line. In Washington, on the very spot where the outrage was started, the fearless Sumner is beaten to insensibility, and is now slowly dying; while senators who claim to be gentlemen and Christians stood by, countenancing the act, and even applauding it afterward in their places in the Senate. Even Douglas, our man, saw it all and was within helping distance, yet let the murderous blows fall unopposed. Then, at the other end of the line, at the very time Sumner was being murdered, Lawrence was being destroyed for the crime of freedom. It was the most prominent stronghold of liberty in Kansas, and must give way to the all-dominating power of slavery. Only two days ago, Judge Trumbull found it necessary to propose a bill in the Senate to prevent a general civil war and to restore peace in Kansas.

We live in the midst of alarms; anxiety beclouds the future; we expect some new disaster with each newspaper we read. Are we in a healthful political state? Are not the tendencies plain? Do not the signs of the times point plainly the way in which we are going? [Sensation.]

In the early days of the Constitution slavery was recognized, by South and North alike, as an evil, and the division of sentiment about it was not controlled by geographical lines or considerations of climate, but by moral and philanthropic views. Petitions for the abolition of slavery were presented to the very first Congress by Virginia and Massachusetts alike. To show the harmony which prevailed, I will state that a fugitive slave law was passed in 1793, with no dissenting voice in the Senate, and but seven dissenting votes in the House. It was, however, a wise law, moderate, and, under the Constitution, a just one. Twenty-five years later, a more stringent

law was proposed and defeated; and thirty-five years after that, the present law, drafted by Mason of Virginia, was passed by Northern votes. I am not, just now, complaining of this law, but I am trying to show how the current sets; for the proposed law of 1817 was far less offensive than the present one. In 1774 the Continental Congress pledged itself, without a dissenting vote, to wholly discontinue the slave trade, and to neither purchase nor import any slave; and less than three months before the passage of the Declaration of Independence, the same Congress which adopted that declaration unanimously resolved "that no slave be imported into any of the thirteen United Colonies." [Great applause.]

On the second day of July, 1776, the draft of a Declaration of Independence was reported to Congress by the committee, and in it the slave trade was characterized as "an execrable commerce," as "a piratical warfare," as the "opprobrium of infidel powers," and as "a cruel war against human nature." [Applause.] All agreed on this except South Carolina and Georgia, and in order to preserve harmony, and from the necessity of the case, these expressions were omitted. Indeed, abolition societies existed as far south as Virginia; and it is a well-known fact that Washington, Jefferson, Madison, Lee, Henry, Mason, and Pendleton were qualified abolitionists, and much more radical on that subject than we of the Whig and Democratic parties claim to be to-day. On March 1, 1784, Virginia ceded to the confederation all its lands lying northwest of the Ohio River. Jefferson, Chase of Maryland, and Howell of Rhode Island, as a committee on that and territory thereafter to be ceded, reported that no slavery should exist after the year 1800. Had this report been adopted, not only the Northwest, but Kentucky, Tennessee, Alabama, and Mississippi also would have been free; but it required the assent of nine States to ratify it. North Carolina was divided, and thus its vote was lost; and Delaware, Georgia, and New Jersey refused to vote. In point of fact, as it was, it was assented to by six States. Three years later on a square vote to exclude slavery from the Northwest, only one vote, and that from New York, was against it. And yet, thirty-seven years later, five thousand citizens of Illinois, out of a voting mass of less than twelve thousand, deliberately, after a long and heated contest, voted to introduce slavery in Illinois; and, to-day, a large party in the free State of Illinois are willing to vote to fasten the shackles of slavery on the fair domain of Kansas, notwithstanding it received the dowry of freedom long before its birth as a political community. I repeat, therefore, the question: Is

it not plain in what direction we are tending? [Sensation.] In the colonial time, Mason, Pendleton, and Jefferson were as hostile to slavery in Virginia as Otis, Ames, and the Adamses were in Massachusetts; and Virginia made as earnest an effort to get rid of it as old Massachusetts did. But circumstances were against them and they failed; but not that the good will of its leading men was lacking. Yet within less than fifty years Virginia changed its tune, and made negro-breeding for the cotton and sugar States one of its leading industries. [Laughter and applause.]

In the Constitutional Convention, George Mason of Virginia made a more violent abolition speech than my friends Lovejoy or Coddington would desire to make here to-day—a speech which could not be safely repeated anywhere on Southern soil in this enlightened year. But, while there were some differences of opinion on this subject even then, discussion was allowed; but as you see by the Kansas slave code, which, as you know, is the Missouri slave code, merely ferried across the river, it is a felony to even express an opinion hostile to that foul blot in the land of Washington and the Declaration of Independence. [Sensation.]

In Kentucky—my State—in 1849, on a test vote, the mighty influence of Henry Clay and many other good men there could not get a symptom of expression in favor of gradual emancipation on a plain issue of marching toward the light of civilization with Ohio and Illinois; but the State of Boone and Hardin and Henry Clay, with a nigger under each arm, took the black trail toward the deadly swamps of barbarism. Is there—can there be—any doubt about this thing? And is there any doubt that we must all lay aside our prejudices and march, shoulder to shoulder, in the great army of Freedom? [Applause.]

Every Fourth of July our young orators all proclaim this to be "the land of the free and the home of the brave!" Well, now, when you orators get that off next year, and, may be, this very year, how would you like some old grizzled farmer to get up in the grove and deny it? [Laughter.] How would you like that? But suppose Kansas comes in as a slave State, and all the "border ruffians" have barbecues about it, and free-State men come trailing back to the dishonored North, like whipped dogs with their tails between their legs, it is—ain't it?—evident that this is no more the "land of the free"; and if we let it go so, we won't dare to say "home of the brave" out loud. [Sensation and confusion.]

Can any man doubt that, even in spite of the people's will, slavery will triumph through violence, unless that will be made manifest and enforced? Even Governor Reeder claimed at the outset that the contest in Kansas was to be fair, but he got his eyes open at last; and I believe that, as a result of this moral and physical violence, Kansas will soon apply for admission as a slave State. And yet we can't mistake that the people don't want it so, and that it is a land which is free both by natural and political law. No law, is free law! Such is the understanding of all Christendom. In the Somerset case, decided nearly a century ago, the great Lord Mansfield held that slavery was of such a nature that it must take its rise in positive (as distinguished from natural) law; and that in no country or age could it be traced back to any other source. Will some one please tell me where is the positive law that establishes slavery in Kansas? [A voice: "The bogus laws."] Aye, the bogus laws! And, on the same principle, a gang of Missouri horse-thieves could come into Illinois and declare horse-stealing to be legal [Laughter], and it would be just as legal as slavery is in Kansas. But by express statute, in the land of Washington and Jefferson, we may soon be brought face to face with the discreditable fact of showing to the world by our acts that we prefer slavery to freedom—darkness to light! [Sensation.]

It is, I believe, a principle in law that when one party to a contract violates it so grossly as to chiefly destroy the object for which it is made, the other party may rescind it. I will ask Browning if that ain't good law. [Voices: "Yes!"] Well, now if that be right, I go for rescinding the whole, entire Missouri Compromise and thus turning Missouri into a free State; and I should like to know the difference—should like for any one to point out the difference—between our making a free State of Missouri and their making a slave State of Kansas. [Great applause.] There ain't one bit of difference, except that our way would be a great mercy to humanity. But I have never said, and the Whig party has never said, and those who oppose the Nebraska Bill do not as a body say, that they have any intention of interfering with slavery in the slave States. Our platform says just the contrary. We allow slavery to exist in the slave States, not because slavery is right or good, but from the necessities of our Union. We grant a fugitive slave law because it is so "nominated in the bond"; because our fathers so stipulated—had to—and we are bound to carry out this agreement. But they did not agree to introduce slavery in regions where it did not previously exist. On the contrary, they said by their example and teachings that they

did not deem it expedient—did n't consider it right—to do so; and it is wise and right to do just as they did about it. [Voices: "Good!"] And that it what we propose—not to interfere with slavery where it exists (we have never tried to do it), and to give them a reasonable and efficient fugitive slave law. [A voice: "No!"] I say YES! [Applause.] It was part of the bargain, and I'm for living up to it; but I go no further; I'm not bound to do more, and I won't agree any further. [Great applause.]

We, here in Illinois, should feel especially proud of the provision of the Missouri Compromise excluding slavery from what is now Kansas; for an Illinois man, Jesse B. Thomas, was its father. Henry Clay, who is credited with the authorship of the Compromise in general terms, did not even vote for that provision, but only advocated the ultimate admission by a second compromise; and Thomas was, beyond all controversy, the real author of the "slavery restriction" branch of the Compromise. To show the generosity of the Northern members toward the Southern side: on a test vote to exclude slavery from Missouri, ninety voted not to exclude, and eighty-seven to exclude, every vote from the slave States being ranged with the former and fourteen votes from the free States, of whom seven were from New England alone; while on a vote to exclude slavery from what is now Kansas, the vote was one hundred and thirty-four for, to forty-two against. The scheme, as a whole, was, of course, a Southern triumph. It is idle to contend otherwise, as is now being done by the Nebraskites; it was so shown by the votes and quite as emphatically by the expressions of representative men. Mr. Lowndes of South Carolina was never known to commit a political mistake; his was the great judgment of that section; and he declared that this measure "would restore tranquillity to the country—a result demanded by every consideration of discretion, of moderation, of wisdom, and of virtue." When the measure came before President Monroe for his approval, he put to each member of his cabinet this question: "Has Congress the constitutional power to prohibit slavery in a Territory?" And John C. Calhoun and William H. Crawford from the South, equally with John Quincy Adams, Benjamin Rush, and Smith Thompson from the North, alike answered, "Yes!" without qualification or equivocation; and this measure, of so great consequence to the South, was passed; and Missouri was, by means of it, finally enabled to knock at the door of the Republic for an open passage to its brood of slaves. And, in spite of this, Freedom's share is about to be taken by violence—by the force of misrepresentative votes, not called for by the popular will.

What name can I, in common decency, give to this wicked transaction?  
[Sensation.]

But even then the contest was not over; for when the Missouri constitution came before Congress for its approval, it forbade any free negro or mulatto from entering the State. In short, our Illinois "black laws" were hidden away in their constitution [Laughter], and the controversy was thus revived. Then it was that Mr. Clay's talents shone out conspicuously, and the controversy that shook the union to its foundation was finally settled to the satisfaction of the conservative parties on both sides of the line, though not to the extremists on either, and Missouri was admitted by the small majority of six in the lower House. How great a majority, do you think, would have been given had Kansas also been secured for slavery? [A voice: "A majority the other way."] "A majority the other way," is answered. Do you think it would have been safe for a Northern man to have confronted his constituents after having voted to consign both Missouri and Kansas to hopeless slavery? And yet this man Douglas, who misrepresents his constituents and who has exerted his highest talents in that direction, will be carried in triumph through the State and hailed with honor while applauding that act. [Three groans for "Dug!"] And this shows whither we are tending. This thing of slavery is more powerful than its supporters—even than the high priests that minister at its altar. It debauches even our greatest men. It gathers strength, like a rolling snowball, by its own infamy. Monstrous crimes are committed in its name by persons collectively which they would not dare to commit as individuals. Its aggressions and encroachments almost surpass belief. In a despotism, one might not wonder to see slavery advance steadily and remorselessly into new dominions; but is it not wonderful, is it not even alarming, to see its steady advance in a land dedicated to the proposition that "all men are created equal"?  
[Sensation.]

It yields nothing itself; it keeps all it has, and gets all it can besides. It really came dangerously near securing Illinois in 1824; it did get Missouri in 1821. The first proposition was to admit what is now Arkansas and Missouri as one slave State. But the territory was divided and Arkansas came in, without serious question, as a slave State; and afterwards Missouri, not, as a sort of equality, free, but also as a slave State. Then we had Florida and Texas; and now Kansas is about to be forced into the dismal procession.  
[Sensation.] And so it is wherever you look. We have not forgotten—it is



but six years since—how dangerously near California came to being a slave State. Texas is a slave State, and four other slave States may be carved from its vast domain. And yet, in the year 1829, slavery was abolished throughout that vast region by a royal decree of the then sovereign of Mexico. Will you please tell me by what right slavery exists in Texas to-day? By the same right as, and no higher or greater than, slavery is seeking dominion in Kansas: by political force—peaceful, if that will suffice; by the torch (as in Kansas) and the bludgeon (as in the Senate chamber), if required. And so history repeats itself; and even as slavery has kept its course by craft, intimidation, and violence in the past, so it will persist, in my judgment, until met and dominated by the will of a people bent on its restriction.

We have, this very afternoon, heard bitter denunciations of Brooks in Washington, and Titus, Stringfellow, Atchison, Jones, and Shannon in Kansas—the battle-ground of slavery. I certainly am not going to advocate or shield them; but they and their acts are but the necessary outcome of the Nebraska law. We should reserve our highest censure for the authors of the mischief, and not for the catspaws which they use. I believe it was Shakespeare who said, "Where the offence lies, there let the axe fall"; and, in my opinion, this man Douglas and the Northern men in Congress who advocate "Nebraska" are more guilty than a thousand Joneses and Stringfellows, with all their murderous practices, can be. [Applause.]

We have made a good beginning here to-day. As our Methodist friends would say, "I feel it is good to be here." While extremists may find some fault with the moderation of our platform, they should recollect that "the battle is not always to the strong, nor the race to the swift." In grave emergencies, moderation is generally safer than radicalism; and as this struggle is likely to be long and earnest, we must not, by our action, repel any who are in sympathy with us in the main, but rather win all that we can to our standard. We must not belittle nor overlook the facts of our condition—that we are new and comparatively weak, while our enemies are entrenched and relatively strong. They have the administration and the political power; and, right or wrong, at present they have the numbers. Our friends who urge an appeal to arms with so much force and eloquence should recollect that the government is arrayed against us, and that the numbers are now arrayed against us as well; or, to state it nearer to the truth, they are not yet expressly and affirmatively for us; and we should repel

friends rather than gain them by anything savoring of revolutionary methods. As it now stands, we must appeal to the sober sense and patriotism of the people. We will make converts day by day; we will grow strong by calmness and moderation; we will grow strong by the violence and injustice of our adversaries. And, unless truth be a mockery and justice a hollow lie, we will be in the majority after a while, and then the revolution which we will accomplish will be none the less radical from being the result of pacific measures. The battle of freedom is to be fought out on principle. Slavery is a violation of the eternal right. We have temporized with it from the necessities of our condition; but as sure as God reigns and school children read, **THAT BLACK FOUL LIE CAN NEVER BE CONSECRATED INTO GOD'S HALLOWED TRUTH!** [Immense applause lasting some time.]

One of our greatest difficulties is, that men who know that slavery is a detestable crime and ruinous to the nation are compelled, by our peculiar condition and other circumstances, to advocate it concretely, though damning it in the raw. Henry Clay was a brilliant example of this tendency; others of our purest statesmen are compelled to do so; and thus slavery secures actual support from those who detest it at heart. Yet Henry Clay perfected and forced through the compromise which secured to slavery a great State as well as a political advantage. Not that he hated slavery less, but that he loved the whole Union more. As long as slavery profited by his great compromise, the hosts of proslavery could not sufficiently cover him with praise; but now that this compromise stands in their way—

*"...they never mention him,  
His name is never heard:  
Their lips are now forbid to speak  
That once familiar word."*

They have slaughtered one of his most cherished measures, and his ghost would arise to rebuke them. [Great applause.]

Now, let us harmonize, my friends, and appeal to the moderation and patriotism of the people: to the sober second thought; to the awakened public conscience. The repeal of the sacred Missouri Compromise has installed the weapons of violence: the bludgeon, the incendiary torch, the death-dealing rifle, the bristling cannon—the weapons of kingcraft, of the inquisition, of ignorance, of barbarism, of oppression. We see its fruits in the dying bed of the heroic Sumner; in the ruins of the "Free State" hotel; in the smoking embers of the Herald of Freedom; in the free-State Governor

of Kansas chained to a stake on freedom's soil like a horse-thief, for the crime of freedom. [Applause.] We see it in Christian statesmen, and Christian newspapers, and Christian pulpits applauding the cowardly act of a low bully, WHO CRAWLED UPON HIS VICTIM BEHIND HIS BACK AND DEALT THE DEADLY BLOW. [Sensation and applause.] We note our political demoralization in the catch-words that are coming into such common use; on the one hand, "freedom-shriekers," and sometimes "freedom-screechers" [Laughter], and, on the other hand, "border-ruffians," and that fully deserved. And the significance of catch-words cannot pass unheeded, for they constitute a sign of the times. Everything in this world "jibes" in with everything else, and all the fruits of this Nebraska Bill are like the poisoned source from which they come. I will not say that we may not sooner or later be compelled to meet force by force; but the time has not yet come, and, if we are true to ourselves, may never come. Do not mistake that the ballot is stronger than the bullet. Therefore let the legions of slavery use bullets; but let us wait patiently till November and fire ballots at them in return; and by that peaceful policy I believe we shall ultimately win. [Applause.]

It was by that policy that here in Illinois the early fathers fought the good fight and gained the victory. In 1824 the free men of our State, led by Governor Coles (who was a native of Maryland and President Madison's private secretary), determined that those beautiful groves should never re-echo the dirge of one who has no title to himself. By their resolute determination, the winds that sweep across our broad prairies shall never cool the parched brow, nor shall the unfettered streams that bring joy and gladness to our free soil water the tired feet, of a slave; but so long as those heavenly breezes and sparkling streams bless the land, or the groves and their fragrance or memory remain, the humanity to which they minister SHALL BE FOREVER FREE! [Great applause] Palmer, Yates, Williams, Browning, and some more in this convention came from Kentucky to Illinois (instead of going to Missouri), not only to better their conditions, but also to get away from slavery. They have said so to me, and it is understood among us Kentuckians that we don't like it one bit. Now, can we, mindful of the blessings of liberty which the early men of Illinois left to us, refuse a like privilege to the free men who seek to plant Freedom's banner on our Western outposts? ["No!" "No!"] Should we not stand by our neighbors who seek to better their conditions in Kansas and Nebraska?

["Yes!" "Yes!"] Can we as Christian men, and strong and free ourselves, wield the sledge or hold the iron which is to manacle anew an already oppressed race? ["No!" "No!"] "Woe unto them," it is written, "that decree unrighteous decrees and that write grievousness which they have prescribed." Can we afford to sin any more deeply against human liberty? ["No!" "No!"]

One great trouble in the matter is, that slavery is an insidious and crafty power, and gains equally by open violence of the brutal as well as by sly management of the peaceful. Even after the Ordinance of 1787, the settlers in Indiana and Illinois (it was all one government then) tried to get Congress to allow slavery temporarily, and petitions to that end were sent from Kaskaskia, and General Harrison, the Governor, urged it from Vincennes, the capital. If that had succeeded, good-bye to liberty here. But John Randolph of Virginia made a vigorous report against it; and although they persevered so well as to get three favorable reports for it, yet the United States Senate, with the aid of some slave States, finally squelched it for good. [Applause.] And that is why this hall is to-day a temple for free men instead of a negro livery-stable. [Great applause and laughter.] Once let slavery get planted in a locality, by ever so weak or doubtful a title, and in ever so small numbers, and it is like the Canada thistle or Bermuda grass—you can't root it out. You yourself may detest slavery; but your neighbor has five or six slaves, and he is an excellent neighbor, or your son has married his daughter, and they beg you to help save their property, and you vote against your interests and principle to accommodate a neighbor, hoping that your vote will be on the losing side. And others do the same; and in those ways slavery gets a sure foothold. And when that is done the whole mighty Union—the force of the nation—is committed to its support. And that very process is working in Kansas to-day. And you must recollect that the slave property is worth a billion of dollars; while free-State men must work for sentiment alone. Then there are "blue lodges"—as they call them—everywhere doing their secret and deadly work.

It is a very strange thing, and not solvable by any moral law that I know of, that if a man loses his horse, the whole country will turn out to help hang the thief; but if a man but a shade or two darker than I am is himself stolen, the same crowd will hang one who aids in restoring him to liberty. Such are the inconsistencies of slavery, where a horse is more sacred than a man; and the essence of squatter or popular sovereignty—I don't care how

you call it—is that if one man chooses to make a slave of another, no third man shall be allowed to object. And if you can do this in free Kansas, and it is allowed to stand, the next thing you will see is shiploads of negroes from Africa at the wharf at Charleston, for one thing is as truly lawful as the other; and these are the bastard notions we have got to stamp out, else they will stamp us out. [Sensation and applause.]

Two years ago, at Springfield, Judge Douglas avowed that Illinois came into the Union as a slave State, and that slavery was weeded out by the operation of his great, patent, everlasting principle of "popular sovereignty." [Laughter.] Well, now, that argument must be answered, for it has a little grain of truth at the bottom. I do not mean that it is true in essence, as he would have us believe. It could not be essentially true if the Ordinance of '87 was valid. But, in point of fact, there were some degraded beings called slaves in Kaskaskia and the other French settlements when our first State constitution was adopted; that is a fact, and I don't deny it. Slaves were brought here as early as 1720, and were kept here in spite of the Ordinance of 1787 against it. But slavery did not thrive here. On the contrary, under the influence of the ordinance the number decreased fifty-one from 1810 to 1820; while under the influence of squatter sovereignty, right across the river in Missouri, they increased seven thousand two hundred and eleven in the same time; and slavery finally faded out in Illinois, under the influence of the law of freedom, while it grew stronger and stronger in Missouri, under the law or practice of "popular sovereignty." In point of fact there were but one hundred and seventeen slaves in Illinois one year after its admission, or one to every four hundred and seventy of its population; or, to state it in another way, if Illinois was a slave State in 1820, so were New York and New Jersey much greater slave States from having had greater numbers, slavery having been established there in very early times. But there is this vital difference between all these States and the Judge's Kansas experiment: that they sought to disestablish slavery which had been already established, while the Judge seeks, so far as he can, to disestablish freedom, which had been established there by the Missouri Compromise. [Voices: "Good!"]

The Union is under-going a fearful strain; but it is a stout old ship, and has weathered many a hard blow, and "the stars in their courses," aye, an invisible Power, greater than the puny efforts of men, will fight for us. But we ourselves must not decline the burden of responsibility, nor take counsel

of unworthy passions. Whatever duty urges us to do or to omit must be done or omitted; and the recklessness with which our adversaries break the laws, or counsel their violation, should afford no example for us. Therefore, let us revere the Declaration of Independence; let us continue to obey the Constitution and the laws; let us keep step to the music of the Union. Let us draw a cordon, so to speak, around the slave States, and the hateful institution, like a reptile poisoning itself, will perish by its own infamy. [Applause.]

But we cannot be free men if this is, by our national choice, to be a land of slavery. Those who deny freedom to others deserve it not for themselves; and, under the rule of a just God, cannot long retain it. [Loud applause.]

Did you ever, my friends, seriously reflect upon the speed with which we are tending downwards? Within the memory of men now present the leading statesman of Virginia could make genuine, red-hot abolitionist speeches in old Virginia! and, as I have said, now even in "free Kansas" it is a crime to declare that it is "free Kansas." The very sentiments that I and others have just uttered would entitle us, and each of us, to the ignominy and seclusion of a dungeon; and yet I suppose that, like Paul, we were "free born." But if this thing is allowed to continue, it will be but one step further to impress the same rule in Illinois. [Sensation.]

The conclusion of all is, that we must restore the Missouri Compromise. We must highly resolve that Kansas must be free! [Great applause.] We must reinstate the birthday promise of the Republic; we must reaffirm the Declaration of Independence; we must make good in essence as well as in form Madison's avowal that "the word slave ought not to appear in the Constitution"; and we must even go further, and decree that only local law, and not that time-honored instrument, shall shelter a slaveholder. We must make this a land of liberty in fact, as it is in name. But in seeking to attain these results—so indispensable if the liberty which is our pride and boast shall endure—we will be loyal to the Constitution and to the "flag of our Union," and no matter what our grievance—even though Kansas shall come in as a slave State; and no matter what theirs—even if we shall restore the compromise—WE WILL SAY TO THE SOUTHERN DISUNIONISTS, WE WON'T GO OUT OF THE UNION, AND YOU SHAN'T!

[This was the climax; the audience rose to its feet en masse, applauded, stamped, waved handkerchiefs, threw hats in the air, and ran riot for several

minutes. The arch-enchanter who wrought this transformation looked, meanwhile, like the personification of political justice.]

But let us, meanwhile, appeal to the sense and patriotism of the people, and not to their prejudices; let us spread the floods of enthusiasm here aroused all over these vast prairies, so suggestive of freedom. Let us commence by electing the gallant soldier Governor (Colonel) Bissell who stood for the honor of our State alike on the plains and amidst the chaparral of Mexico and on the floor of Congress, while he defied the Southern Hotspur; and that will have a greater moral effect than all the border ruffians can accomplish in all their raids on Kansas. There is both a power and a magic in popular opinion. To that let us now appeal; and while, in all probability, no resort to force will be needed, our moderation and forbearance will stand US in good stead when, if ever, WE MUST MAKE AN APPEAL TO BATTLE AND TO THE GOD OF HOSTS! [Immense applause and a rush for the orator.]

One can realize with this ability to move people's minds that the Southern Conspiracy were right to hate this man. He, better than any at the time was able to uncover their stratagems and tear down their sophisms and contradictions.





# **POLITICAL CORRESPONDENCE**

**TO W. C. WHITNEY.**

SPRINGFIELD, July 9, 1856.

DEAR WHITNEY:—I now expect to go to Chicago on the 15th, and I probably shall remain there or thereabouts for about two weeks.

It turned me blind when I first heard Swett was beaten and Lovejoy nominated; but, after much reflection, I really believe it is best to let it stand. This, of course, I wish to be confidential.

Lamon did get your deeds. I went with him to the office, got them, and put them in his hands myself.

Yours very truly,

A. LINCOLN.

# ON OUT-OF-STATE CAMPAIGNERS

TO WILLIAM GRIMES.

SPRINGFIELD, ILLINOIS, July 12, 1856

Your's of the 29th of June was duly received. I did not answer it because it plagued me. This morning I received another from Judd and Peck, written by consultation with you. Now let me tell you why I am plagued:

1. I can hardly spare the time.

2. I am superstitious. I have scarcely known a party preceding an election to call in help from the neighboring States but they lost the State. Last fall, our friends had Wade, of Ohio, and others, in Maine; and they lost the State. Last spring our adversaries had New Hampshire full of South Carolinians, and they lost the State. And so, generally, it seems to stir up more enemies than friends.

Have the enemy called in any foreign help? If they have a foreign champion there I should have no objection to drive a nail in his track. I shall reach Chicago on the night of the 15th, to attend to a little business in court. Consider the things I have suggested, and write me at Chicago. Especially write me whether Browning consents to visit you.

Your obedient servant,

A. LINCOLN.

# **REPUBLICAN CAMPAIGN SPEECH**

## **FRAGMENT OF SPEECH AT GALENA, ILLINOIS, IN THE FREMONT CAMPAIGN,**

AUGUST 1, 1856.

You further charge us with being disunionists. If you mean that it is our aim to dissolve the Union, I for myself answer that it is untrue; for those who act with me I answer that it is untrue. Have you heard us assert that as our aim? Do you really believe that such is our aim? Do you find it in our platform, our speeches, our conventions, or anywhere? If not, withdraw the charge.

But you may say that, though it is not our aim, it will be the result if we succeed, and that we are therefore disunionists in fact. This is a grave charge you make against us, and we certainly have a right to demand that you specify in what way we are to dissolve the Union. How are we to effect this?

The only specification offered is volunteered by Mr. Fillmore in his Albany speech. His charge is that if we elect a President and Vice-President both from the free States, it will dissolve the Union. This is open folly. The Constitution provides that the President and Vice-President of the United States shall be of different States, but says nothing as to the latitude and longitude of those States. In 1828 Andrew Jackson, of Tennessee, and John C. Calhoun, of South Carolina, were elected President and Vice-President, both from slave States; but no one thought of dissolving the Union then on that account. In 1840 Harrison, of Ohio, and Tyler, of Virginia, were elected. In 1841 Harrison died and John Tyler succeeded to the Presidency, and William R. King, of Alabama, was elected acting Vice-President by the Senate; but no one supposed that the Union was in danger. In fact, at the very time Mr. Fillmore uttered this idle charge, the state of things in the United States disproved it. Mr. Pierce, of New Hampshire, and Mr. Bright, of Indiana, both from free States, are President and Vice-President, and the Union stands and will stand. You do not pretend that it ought to dissolve the

Union, and the facts show that it won't; therefore the charge may be dismissed without further consideration.

No other specification is made, and the only one that could be made is that the restoration of the restriction of 1820, making the United States territory free territory, would dissolve the Union. Gentlemen, it will require a decided majority to pass such an act. We, the majority, being able constitutionally to do all that we purpose, would have no desire to dissolve the Union. Do you say that such restriction of slavery would be unconstitutional, and that some of the States would not submit to its enforcement? I grant you that an unconstitutional act is not a law; but I do not ask and will not take your construction of the Constitution. The Supreme Court of the United States is the tribunal to decide such a question, and we will submit to its decisions; and if you do also, there will be an end of the matter. Will you? If not, who are the disunionists—you or we? We, the majority, would not strive to dissolve the Union; and if any attempt is made, it must be by you, who so loudly stigmatize us as disunionists. But the Union, in any event, will not be dissolved. We don't want to dissolve it, and if you attempt it we won't let you. With the purse and sword, the army and navy and treasury, in our hands and at our command, you could not do it. This government would be very weak indeed if a majority with a disciplined army and navy and a well-filled treasury could not preserve itself when attacked by an unarmed, undisciplined, unorganized minority. All this talk about the dissolution of the Union is humbug, nothing but folly. We do not want to dissolve the Union; you shall not.

# ON THE DANGER OF THIRD-PARTIES

TO JOHN BENNETT.

SPRINGFIELD, AUG. 4, 1856

DEAR SIR:—I understand you are a Fillmore man. If, as between Fremont and Buchanan, you really prefer the election of Buchanan, then burn this without reading a line further. But if you would like to defeat Buchanan and his gang, allow me a word with you: Does any one pretend that Fillmore can carry the vote of this State? I have not heard a single man pretend so. Every vote taken from Fremont and given to Fillmore is just so much in favor of Buchanan. The Buchanan men see this; and hence their great anxiety in favor of the Fillmore movement. They know where the shoe pinches. They now greatly prefer having a man of your character go for Fillmore than for Buchanan because they expect several to go with you, who would go for Fremont if you were to go directly for Buchanan.

I think I now understand the relative strength of the three parties in this State as well as any one man does, and my opinion is that to-day Buchanan has alone 85,000, Fremont 78,000, and Fillmore 21,000.

This gives B. the State by 7000 and leaves him in the minority of the whole 14,000.

Fremont and Fillmore men being united on Bissell, as they already are, he cannot be beaten. This is not a long letter, but it contains the whole story.

Yours as ever,

A. LINCOLN.

**TO JESSE K. DUBOIS.**

**SPRINGFIELD, Aug. 19, 1856.**

DEAR DUBOIS: Your letter on the same sheet with Mr. Miller's is just received. I have been absent four days. I do not know when your court sits.

Trumbull has written the committee here to have a set of appointments made for him commencing here in Springfield, on the 11th of Sept., and to extend throughout the south half of the State. When he goes to Lawrenceville, as he will, I will strain every nerve to be with you and him. More than that I cannot promise now.

Yours as truly as ever,

A. LINCOLN.

## TO HARRISON MALTBY.

[Confidential]

SPRINGFIELD, September 8, 1856.

DEAR SIR:—I understand you are a Fillmore man. Let me prove to you that every vote withheld from Fremont and given to Fillmore in this State actually lessens Fillmore's chance of being President. Suppose Buchanan gets all the slave States and Pennsylvania, and any other one State besides; then he is elected, no matter who gets all the rest. But suppose Fillmore gets the two slave States of Maryland and Kentucky; then Buchanan is not elected; Fillmore goes into the House of Representatives, and may be made President by a compromise. But suppose, again, Fillmore's friends throw away a few thousand votes on him in Indiana and Illinois; it will inevitably give these States to Buchanan, which will more than compensate him for the loss of Maryland and Kentucky, will elect him, and leave Fillmore no chance in the House of Representatives or out of it.

This is as plain as adding up the weight of three small hogs. As Mr. Fillmore has no possible chance to carry Illinois for himself, it is plainly to his interest to let Fremont take it, and thus keep it out of the hands of Buchanan. Be not deceived. Buchanan is the hard horse to beat in this race. Let him have Illinois, and nothing can beat him; and he will get Illinois if men persist in throwing away votes upon Mr. Fillmore. Does some one persuade you that Mr. Fillmore can carry Illinois? Nonsense! There are over seventy newspapers in Illinois opposing Buchanan, only three or four of which support Mr. Fillmore, all the rest going for Fremont. Are not these newspapers a fair index of the proportion of the votes? If not, tell me why.

Again, of these three or four Fillmore newspapers, two, at least, are supported in part by the Buchanan men, as I understand. Do not they know where the shoe pinches? They know the Fillmore movement helps them, and therefore they help it. Do think these things over, and then act according to your judgment.

Yours very truly,

A. LINCOLN.



**TO Dr. R. BOAL.**

**Sept. 14, 1856.**

Dr. R. BOAL, Lacon, Ill.

MY DEAR SIR:—Yours of the 8th inviting me to be with [you] at Lacon on the 30th is received. I feel that I owe you and our friends of Marshall a good deal, and I will come if I can; and if I do not get there, it will be because I shall think my efforts are now needed farther south.

Present my regards to Mrs. Boal, and believe [me], as ever,

Your friend,

A. LINCOLN.

## **TO HENRY O'CONNER, MUSCATINE, IOWA.**

**SPRINGFIELD, Sept. 14, 1856.**

DEAR SIR:—Yours, inviting me to attend a mass-meeting on the 23d inst., is received. It would be very pleasant to strike hands with the Fremonters of Iowa, who have led the van so splendidly, in this grand charge which we hope and believe will end in a most glorious victory. All thanks, all honor to Iowa! But Iowa is out of all danger, and it is no time for us, when the battle still rages, to pay holiday visits to Iowa. I am sure you will excuse me for remaining in Illinois, where much hard work is still to be done.

Yours very truly,

A. LINCOLN.

# **AFTER THE DEMOCRATIC VICTORY OF BUCHANAN**

## **FRAGMENT OF SPEECH AT A REPUBLICAN BANQUET IN CHICAGO, DECEMBER 10, 1856.**

We have another annual Presidential message. Like a rejected lover making merry at the wedding of his rival, the President felicitates himself hugely over the late Presidential election. He considers the result a signal triumph of good principles and good men, and a very pointed rebuke of bad ones. He says the people did it. He forgets that the "people," as he complacently calls only those who voted for Buchanan, are in a minority of the whole people by about four hundred thousand votes—one full tenth of all the votes. Remembering this, he might perceive that the "rebuke" may not be quite as durable as he seems to think—that the majority may not choose to remain permanently rebuked by that minority.

The President thinks the great body of us Fremonters, being ardently attached to liberty, in the abstract, were duped by a few wicked and designing men. There is a slight difference of opinion on this. We think he, being ardently attached to the hope of a second term, in the concrete, was duped by men who had liberty every way. He is the cat's-paw. By much dragging of chestnuts from the fire for others to eat, his claws are burnt off to the gristle, and he is thrown aside as unfit for further use. As the fool said of King Lear, when his daughters had turned him out of doors, "He 's a shelled peascod" ("That 's a sheal'd peascod").

So far as the President charges us "with a desire to change the domestic institutions of existing States," and of "doing everything in our power to deprive the Constitution and the laws of moral authority," for the whole party on belief, and for myself on knowledge, I pronounce the charge an unmixed and unmitigated falsehood.

Our government rests in public opinion. Whoever can change public opinion can change the government practically just so much. Public opinion, on any subject, always has a "central idea," from which all its

minor thoughts radiate. That "central idea" in our political public opinion at the beginning was, and until recently has continued to be, "the equality of men." And although it has always submitted patiently to whatever of inequality there seemed to be as matter of actual necessity, its constant working has been a steady progress toward the practical equality of all men. The late Presidential election was a struggle by one party to discard that central idea and to substitute for it the opposite idea that slavery is right in the abstract, the workings of which as a central idea may be the perpetuity of human slavery and its extension to all countries and colors. Less than a year ago the Richmond Enquirer, an avowed advocate of slavery, regardless of color, in order to favor his views, invented the phrase "State equality," and now the President, in his message, adopts the Enquirer's catch-phrase, telling us the people "have asserted the constitutional equality of each and all of the States of the Union as States." The President flatters himself that the new central idea is completely inaugurated; and so indeed it is, so far as the mere fact of a Presidential election can inaugurate it. To us it is left to know that the majority of the people have not yet declared for it, and to hope that they never will.

All of us who did not vote for Mr. Buchanan, taken together, are a majority of four hundred thousand. But in the late contest we were divided between Fremont and Fillmore. Can we not come together for the future? Let every one who really believes and is resolved that free society is not and shall not be a failure, and who can conscientiously declare that in the last contest he has done only what he thought best—let every such one have charity to believe that every other one can say as much. Thus let bygones be bygones; let past differences as nothing be; and with steady eye on the real issue let us reinaugurate the good old "central idea" of the republic. We can do it. The human heart is with us; God is with us. We shall again be able, not to declare that "all States as States are equal," nor yet that "all citizens as citizens are equal," but to renew the broader, better declaration, including both these and much more, that "all men are created equal."

**TO Dr. R. BOAL.**

**SPRINGFIELD, Dec. 25, 1856.**

DEAR SIR:-When I was at Chicago two weeks ago I saw Mr. Arnold, and from a remark of his I inferred he was thinking of the speakership, though I think he was not anxious about it. He seemed most anxious for harmony generally, and particularly that the contested seats from Peoria and McDonough might be rightly determined. Since I came home I had a talk with Cullom, one of our American representatives here, and he says he is for you for Speaker and also that he thinks all the Americans will be for you, unless it be Gorin, of Macon, of whom he cannot speak. If you would like to be Speaker go right up and see Arnold. He is talented, a practised debater, and, I think, would do himself more credit on the floor than in the Speaker's seat. Go and see him; and if you think fit, show him this letter.

Your friend as ever,

A. LINCOLN.

**1857**

**TO JOHN E. ROSETTE. Private.**

SPRINGFIELD, ILL., February 10, 1857.

DEAR SIR:—Your note about the little paragraph in the Republican was received yesterday, since which time I have been too unwell to notice it. I had not supposed you wrote or approved it. The whole originated in mistake. You know by the conversation with me that I thought the establishment of the paper unfortunate, but I always expected to throw no obstacle in its way, and to patronize it to the extent of taking and paying for one copy. When the paper was brought to my house, my wife said to me, "Now are you going to take another worthless little paper?" I said to her evasively, "I have not directed the paper to be left." From this, in my absence, she sent the message to the carrier. This is the whole story.

Yours truly,

A. LINCOLN.

# **RESPONSE TO A DOUGLAS SPEECH**

**SPEECH IN SPRINGFIELD, ILLINOIS, JUNE 26, 1857.**

FELLOW-CITIZENS:—I am here to-night partly by the invitation of some of you, and partly by my own inclination. Two weeks ago Judge Douglas spoke here on the several subjects of Kansas, the Dred Scott decision, and Utah. I listened to the speech at the time, and have the report of it since. It was intended to controvert opinions which I think just, and to assail (politically, not personally) those men who, in common with me, entertain those opinions. For this reason I wished then, and still wish, to make some answer to it, which I now take the opportunity of doing.

I begin with Utah. If it prove to be true, as is probable, that the people of Utah are in open rebellion to the United States, then Judge Douglas is in favor of repealing their territorial organization, and attaching them to the adjoining States for judicial purposes. I say, too, if they are in rebellion, they ought to be somehow coerced to obedience; and I am not now prepared to admit or deny that the Judge's mode of coercing them is not as good as any. The Republicans can fall in with it without taking back anything they have ever said. To be sure, it would be a considerable backing down by Judge Douglas from his much-vaunted doctrine of self-government for the Territories; but this is only additional proof of what was very plain from the beginning, that that doctrine was a mere deceitful pretense for the benefit of slavery. Those who could not see that much in the Nebraska act itself, which forced governors, and secretaries, and judges on the people of the Territories without their choice or consent, could not be made to see, though one should rise from the dead.

But in all this it is very plain the Judge evades the only question the Republicans have ever pressed upon the Democracy in regard to Utah. That question the Judge well knew to be this: "If the people of Utah peacefully form a State constitution tolerating polygamy, will the Democracy admit them into the Union?" There is nothing in the United States Constitution or law against polygamy; and why is it not a part of the Judge's "sacred right of self-government" for the people to have it, or rather to keep it, if they

choose? These questions, so far as I know, the Judge never answers. It might involve the Democracy to answer them either way, and they go unanswered.

As to Kansas. The substance of the Judge's speech on Kansas is an effort to put the free-State men in the wrong for not voting at the election of delegates to the constitutional convention. He says:

"There is every reason to hope and believe that the law will be fairly interpreted and impartially executed, so as to insure to every bona fide inhabitant the free and quiet exercise of the elective franchise."

*It appears extraordinary that Judge Douglas should make such a statement. He knows that, by the law, no one can vote who has not been registered; and he knows that the free-State men place their refusal to vote on the ground that but few of them have been registered. It is possible that this is not true, but Judge Douglas knows it is asserted to be true in letters, newspapers, and public speeches, and borne by every mail and blown by every breeze to the eyes and ears of the world. He knows it is boldly declared that the people of many whole counties, and many whole neighborhoods in others, are left unregistered; yet he does not venture to contradict the declaration, or to point out how they can vote without being registered; but he just slips along, not seeming to know there is any such question of fact, and complacently declares:*

*"There is every reason to hope and believe that the law will be fairly and impartially executed, so as to insure to every bona fide inhabitant the free and quiet exercise of the elective franchise."*

I readily agree that if all had a chance to vote they ought to have voted. If, on the contrary, as they allege, and Judge Douglas ventures not to particularly contradict, few only of the free-State men had a chance to vote, they were perfectly right in staying from the polls in a body.

By the way, since the Judge spoke, the Kansas election has come off. The Judge expressed his confidence that all the Democrats in Kansas would do their duty—including "free-State Democrats," of course. The returns received here as yet are very incomplete; but so far as they go, they indicate that only about one sixth of the registered voters have really voted; and this, too, when not more, perhaps, than one half of the rightful voters have been registered, thus showing the thing to have been altogether the most exquisite farce ever enacted. I am watching with considerable interest to ascertain what figure "the free-State Democrats" cut in the concern. Of course they voted,—all Democrats do their duty,—and of course they did not vote for slave-State candidates. We soon shall know how many



delegates they elected, how many candidates they had pledged to a free State, and how many votes were cast for them.

Allow me to barely whisper my suspicion that there were no such things in Kansas as "free-State Democrats"—that they were altogether mythical, good only to figure in newspapers and speeches in the free States. If there should prove to be one real living free-State Democrat in Kansas, I suggest that it might be well to catch him, and stuff and preserve his skin as an interesting specimen of that soon-to-be extinct variety of the genus Democrat.

And now as to the Dred Scott decision. That decision declares two propositions—first, that a negro cannot sue in the United States courts; and secondly, that Congress cannot prohibit slavery in the Territories. It was made by a divided court dividing differently on the different points. Judge Douglas does not discuss the merits of the decision, and in that respect I shall follow his example, believing I could no more improve on McLean and Curtis than he could on Taney.

He denounces all who question the correctness of that decision, as offering violent resistance to it. But who resists it? Who has, in spite of the decision, declared Dred Scott free, and resisted the authority of his master over him?

Judicial decisions have two uses—first, to absolutely determine the case decided, and secondly, to indicate to the public how other similar cases will be decided when they arise. For the latter use, they are called "precedents" and "authorities."

We believe as much as Judge Douglas (perhaps more) in obedience to, and respect for, the judicial department of government. We think its decisions on constitutional questions, when fully settled, should control not only the particular cases decided, but the general policy of the country, subject to be disturbed only by amendments of the Constitution as provided in that instrument itself. More than this would be revolution. But we think the Dred Scott decision is erroneous. We know the court that made it has often overruled its own decisions, and we shall do what we can to have it to overrule this. We offer no resistance to it.

Judicial decisions are of greater or less authority as precedents according to circumstances. That this should be so accords both with common sense and the customary understanding of the legal profession.

If this important decision had been made by the unanimous concurrence of the judges, and without any apparent partisan bias, and in accordance with legal public expectation and with the steady practice of the departments throughout our history, and had been in no part based on assumed historical facts which are not really true; or, if wanting in some of these, it had been before the court more than once, and had there been affirmed and reaffirmed through a course of years, it then might be, perhaps would be, factious, nay, even revolutionary, not to acquiesce in it as a precedent.

But when, as is true, we find it wanting in all these claims to the public confidence, it is not resistance, it is not factious, it is not even disrespectful, to treat it as not having yet quite established a settled doctrine for the country. But Judge Douglas considers this view awful. Hear him:

"The courts are the tribunals prescribed by the Constitution and created by the authority of the people to determine, expound, and enforce the law. Hence, whoever resists the final decision of the highest judicial tribunal aims a deadly blow at our whole republican system of government—a blow which, if successful, would place all our rights and liberties at the mercy of passion, anarchy, and violence. I repeat, therefore, that if resistance to the decisions of the Supreme Court of the United States, in a matter like the points decided in the Dred Scott case, clearly within their jurisdiction as defined by the Constitution, shall be forced upon the country as a political issue, it will become a distinct and naked issue between the friends and enemies of the Constitution—the friends and the enemies of the supremacy of the laws."

Why, this same Supreme Court once decided a national bank to be constitutional; but General Jackson, as President of the United States, disregarded the decision, and vetoed a bill for a recharter, partly on constitutional ground, declaring that each public functionary must support the Constitution "as he understands it." But hear the General's own words. Here they are, taken from his veto message:

"It is maintained by the advocates of the bank that its constitutionality, in all its features, ought to be considered as settled by precedent, and by the decision of the Supreme Court. To this conclusion I cannot assent. Mere precedent is a dangerous source of authority, and should not be regarded as deciding questions of constitutional power, except where the acquiescence

of the people and the States can be considered as well settled. So far from this being the case on this subject, an argument against the bank might be based on precedent. One Congress, in 1791, decided in favor of a bank; another, in 1811, decided against it. One Congress, in 1815, decided against a bank; another, in 1816, decided in its favor. Prior to the present Congress, therefore, the precedents drawn from that course were equal. If we resort to the States, the expressions of legislative, judicial, and executive opinions against the bank have been probably to those in its favor as four to one. There is nothing in precedent, therefore, which, if its authority were admitted, ought to weigh in favor of the act before me."

I drop the quotations merely to remark that all there ever was in the way of precedent up to the Dred Scott decision, on the points therein decided, had been against that decision. But hear General Jackson further:

"If the opinion of the Supreme Court covered the whole ground of this act, it ought not to control the coordinate authorities of this government. The Congress, the executive, and the courts must, each for itself, be guided by its own opinion of the Constitution. Each public officer who takes an oath to support the Constitution swears that he will support it as he understands it, and not as it is understood by others."

Again and again have I heard Judge Douglas denounce that bank decision and applaud General Jackson for disregarding it. It would be interesting for him to look over his recent speech, and see how exactly his fierce philippics against us for resisting Supreme Court decisions fall upon his own head. It will call to mind a long and fierce political war in this country, upon an issue which, in his own language, and, of course, in his own changeless estimation, "was a distinct issue between the friends and the enemies of the Constitution," and in which war he fought in the ranks of the enemies of the Constitution.

I have said, in substance, that the Dred Scott decision was in part based on assumed historical facts which were not really true, and I ought not to leave the subject without giving some reasons for saying this; I therefore give an instance or two, which I think fully sustain me. Chief Justice Taney, in delivering the opinion of the majority of the court, insists at great length that negroes were no part of the people who made, or for whom was made, the Declaration of Independence, or the Constitution of the United States.

On the contrary, Judge Curtis, in his dissenting opinion, shows that in five of the then thirteen States—to wit, New Hampshire, Massachusetts, New York, New Jersey, and North Carolina—free negroes were voters, and in proportion to their numbers had the same part in making the Constitution that the white people had. He shows this with so much particularity as to leave no doubt of its truth; and as a sort of conclusion on that point, holds the following language:

"The Constitution was ordained and established by the people of the United States, through the action, in each State, of those persons who were qualified by its laws to act thereon in behalf of themselves and all other citizens of the State. In some of the States, as we have seen, colored persons were among those qualified by law to act on the subject. These colored persons were not only included in the body of 'the people of the United States' by whom the Constitution was ordained and established; but in at least five of the States they had the power to act, and doubtless did act, by their suffrages, upon the question of its adoption."

Again, Chief Justice Taney says:

"It is difficult at this day to realize the state of public opinion, in relation to that unfortunate race, which prevailed in the civilized and enlightened portions of the world at the time of the Declaration of Independence, and when the Constitution of the United States was framed and adopted."

And again, after quoting from the Declaration, he says:

"The general words above quoted would seem to include the whole human family, and if they were used in a similar instrument at this day, would be so understood."

In these the Chief Justice does not directly assert, but plainly assumes as a fact, that the public estimate of the black man is more favorable now than it was in the days of the Revolution. This assumption is a mistake. In some trifling particulars the condition of that race has been ameliorated; but as a whole, in this country, the change between then and now is decidedly the other way, and their ultimate destiny has never appeared so hopeless as in the last three or four years. In two of the five States—New Jersey and North Carolina—that then gave the free negro the right of voting, the right has since been taken away, and in a third—New York—it has been greatly abridged; while it has not been extended, so far as I know, to a single additional State, though the number of the States has more than doubled. In

those days, as I understand, masters could, at their own pleasure, emancipate their slaves; but since then such legal restraints have been made upon emancipation as to amount almost to prohibition. In those days Legislatures held the unquestioned power to abolish slavery in their respective States, but now it is becoming quite fashionable for State constitutions to withhold that power from the Legislatures. In those days, by common consent, the spread of the black man's bondage to the new countries was prohibited, but now Congress decides that it will not continue the prohibition, and the Supreme Court decides that it could not if it would. In those days our Declaration of Independence was held sacred by all, and thought to include all; but now, to aid in making the bondage of the negro universal and eternal, it is assailed and sneered at and construed and hawked at and torn, till, if its framers could rise from their graves, they could not at all recognize it. All the powers of earth seem rapidly combining against him. Mammon is after him, ambition follows, philosophy follows, and the theology of the day fast joining the cry. They have him in his prison house; they have searched his person, and left no prying instrument with him. One after another they have closed the heavy iron doors upon him; and now they have him, as it were, bolted in with a lock of hundred keys, which can never be unlocked without the concurrence of every key—the keys in the hands of a hundred different men, and they scattered to hundred different and distant places; and they stand musing as to what invention, in all the dominions of mind and matter, can be produced to make the impossibility of his escape more complete than it is.

It is grossly incorrect to say or assume that the public estimate of the negro is more favorable now than it was at the origin of the government.

Three years and a half ago, Judge Douglas brought forward his famous Nebraska Bill. The country was at once in a blaze. He scorned all opposition, and carried it through Congress. Since then he has seen himself superseded in a Presidential nomination by one indorsing the general doctrine of his measure, but at the same time standing clear of the odium of its untimely agitation and its gross breach of national faith; and he has seen that successful rival constitutionally elected, not by the strength of friends, but by the division of adversaries, being in a popular minority of nearly four hundred thousand votes. He has seen his chief aids in his own State, Shields and Richardson, politically speaking, successively tried, convicted, and

executed for an offence not their own but his. And now he sees his own case standing next on the docket for trial.

There is a natural disgust in the minds of nearly all white people at the idea of an indiscriminate amalgamation of the white and black races; and Judge Douglas evidently is basing his chief hope upon the chances of his being able to appropriate the benefit of this disgust to himself. If he can, by much drumming and repeating, fasten the odium of that idea upon his adversaries, he thinks he can struggle through the storm. He therefore clings to this hope, as a drowning man to the last plank. He makes an occasion for lugging it in from the opposition to the Dred Scott decision. He finds the Republicans insisting that the Declaration of Independence includes all men, black as well as white, and forthwith he boldly denies that it includes negroes at all, and proceeds to argue gravely that all who contend it does, do so only because they want to vote, and eat, and sleep, and marry with negroes. He will have it that they cannot be consistent else. Now I protest against the counterfeit logic which concludes that, because I do not want a black woman for a slave I must necessarily want her for a wife. I need not have her for either. I can just leave her alone. In some respects she certainly is not my equal; but in her natural right to eat the bread she earns with her own hands, without asking leave of any one else, she is my equal and the equal of all others.

Chief Justice Taney, in his opinion in the Dred Scott case, admits that the language of the Declaration is broad enough to include the whole human family, but he and Judge Douglas argue that the authors of that instrument did not intend to include negroes, by the fact that they did not at once actually place them on an equality with the whites. Now this grave argument comes to just nothing at all, by the other fact that they did not at once, or ever afterward, actually place all white people on an equality with one another. And this is the staple argument of both the Chief Justice and the Senator for doing this obvious violence to the plain, unmistakable language of the Declaration.

I think the authors of that notable instrument intended to include all men, but they did not intend to declare all men equal in all respects. They did not mean to say all were equal in color, size, intellect, moral developments, or social capacity. They defined with tolerable distinctness in what respects they did consider all men created equal—equal with "certain inalienable

rights, among which are life, liberty, and the pursuit of happiness." This they said, and this they meant. They did not mean to assert the obvious untruth that all were then actually enjoying that equality, nor yet that they were about to confer it immediately upon them. In fact, they had no power to confer such a boon. They meant simply to declare the right, so that enforcement of it might follow as fast as circumstances should permit.

They meant to set up a standard maxim for free society, which should be familiar to all, and revered by all; constantly looked to, constantly labored for, and, even though never perfectly attained, constantly approximated, and thereby constantly spreading and deepening its influence and augmenting the happiness and value of life to all people of all colors everywhere. The assertion that "all men are created equal" was of no practical use in effecting our separation from Great Britain; and it was placed in the Declaration not for that, but for future use. Its authors meant it to be—as thank God, it is now proving itself—stumbling-block to all those who in after times might seek to turn a free people back into the hateful paths of despotism. They knew the proneness of prosperity to breed tyrants, and they meant when such should reappear in this fair land and commence their vocation, they should find left for them at least one hard nut to crack.

I have now briefly expressed my view of the meaning and object of that part of the Declaration of Independence which declares that "all men are created equal."

Now let us hear Judge Douglas's view of the same subject, as I find it in the printed report of his late speech. Here it is:

"No man can vindicate the character, motives, and conduct of the signers of the Declaration of Independence, except upon the hypothesis that they referred to the white race alone, and not to the African, when they declared all men to have been created equal; that they were speaking of British subjects on this continent being equal to British subjects born and residing in Great Britain; that they were entitled to the same inalienable rights, and among them were enumerated life, liberty, and the pursuit of happiness. The Declaration was adopted for the purpose of justifying the colonists in the eyes of the civilized world in withdrawing their allegiance from the British crown, and dissolving their connection with the mother country."

My good friends, read that carefully over some leisure hour, and ponder well upon it; see what a mere wreck—mangled ruin—it makes of our once

glorious Declaration.

"They were speaking of British subjects on this continent being equal to British subjects born and residing in Great Britain"! Why, according to this, not only negroes but white people outside of Great Britain and America were not spoken of in that instrument. The English, Irish, and Scotch, along with white Americans, were included, to be sure, but the French, Germans, and other white people of the world are all gone to pot along with the Judge's inferior races!

I had thought the Declaration promised something better than the condition of British subjects; but no, it only meant that we should be equal to them in their own oppressed and unequal condition. According to that, it gave no promise that, having kicked off the king and lords of Great Britain, we should not at once be saddled with a king and lords of our own.

I had thought the Declaration contemplated the progressive improvement in the condition of all men everywhere; but no, it merely "was adopted for the purpose of justifying the colonists in the eyes of the civilized world in withdrawing their allegiance from the British crown, and dissolving their connection with the mother country." Why, that object having been effected some eighty years ago, the Declaration is of no practical use now—mere rubbish—old wadding left to rot on the battlefield after the victory is won.

I understand you are preparing to celebrate the "Fourth," to-morrow week. What for? The doings of that day had no reference to the present; and quite half of you are not even descendants of those who were referred to at that day. But I suppose you will celebrate, and will even go so far as to read the Declaration. Suppose, after you read it once in the old-fashioned way, you read it once more with Judge Douglas's version. It will then run thus:

"We hold these truths to be self-evident, that all British subjects who were on this continent eighty-one years ago were created equal to all British subjects born and then residing in Great Britain."

And now I appeal to all—to Democrats as well as others—are you really willing that the Declaration shall thus be frittered away?—thus left no more, at most, than an interesting memorial of the dead past?—thus shorn of its vitality and practical value, and left without the germ or even the suggestion of the individual rights of man in it?

But Judge Douglas is especially horrified at the thought of the mixing of blood by the white and black races. Agreed for once—a thousand times



agreed. There are white men enough to marry all the white women and black men enough to marry all the black women; and so let them be married. On this point we fully agree with the Judge, and when he shall show that his policy is better adapted to prevent amalgamation than ours, we shall drop ours and adopt his. Let us see. In 1850 there were in the United States 405,751 mulattoes. Very few of these are the offspring of whites and free blacks; nearly all have sprung from black slaves and white masters. A separation of the races is the only perfect preventive of amalgamation; but as an immediate separation is impossible, the next best thing is to keep them apart where they are not already together. If white and black people never get together in Kansas, they will never mix blood in Kansas. That is at least one self-evident truth. A few free colored persons may get into the free States, in any event; but their number is too insignificant to amount to much in the way of mixing blood. In 1850 there were in the free States 56,649 mulattoes; but for the most part they were not born there—they came from the slave States, ready made up. In the same year the slave States had 348,874 mulattoes, all of home production. The proportion of free mulattoes to free blacks—the only colored classes in the free States is much greater in the slave than in the free States. It is worthy of note, too, that among the free States those which make the colored man the nearest equal to the white have proportionably the fewest mulattoes, the least of amalgamation. In New Hampshire, the State which goes farthest toward equality between the races, there are just 184 mulattoes, while there are in Virginia—how many do you think?—79,775, being 23,126 more than in all the free States together.

These statistics show that slavery is the greatest source of amalgamation, and next to it, not the elevation, but the degradation of the free blacks. Yet Judge Douglas dreads the slightest restraints on the spread of slavery, and the slightest human recognition of the negro, as tending horribly to amalgamation!

The very Dred Scott case affords a strong test as to which party most favors amalgamation, the Republicans or the dear Union-saving Democracy. Dred Scott, his wife, and two daughters were all involved in the suit. We desired the court to have held that they were citizens so far at least as to entitle them to a hearing as to whether they were free or not; and then, also, that they were in fact and in law really free. Could we have had our way, the chances of these black girls ever mixing their blood with that

of white people would have been diminished at least to the extent that it could not have been without their consent. But Judge Douglas is delighted to have them decided to be slaves, and not human enough to have a hearing, even if they were free, and thus left subject to the forced concubinage of their masters, and liable to become the mothers of mulattoes in spite of themselves: the very state of case that produces nine tenths of all the mulattoes all the mixing of blood in the nation.

Of course, I state this case as an illustration only, not meaning to say or intimate that the master of Dred Scott and his family, or any more than a percentage of masters generally, are inclined to exercise this particular power which they hold over their female slaves.

I have said that the separation of the races is the only perfect preventive of amalgamation. I have no right to say all the members of the Republican party are in favor of this, nor to say that as a party they are in favor of it. There is nothing in their platform directly on the subject. But I can say a very large proportion of its members are for it, and that the chief plank in their platform—opposition to the spread of slavery—is most favorable to that separation.

Such separation, if ever effected at all, must be effected by colonization; and no political party, as such, is now doing anything directly for colonization. Party operations at present only favor or retard colonization incidentally. The enterprise is a difficult one; but "where there is a will there is a way," and what colonization needs most is a hearty will. Will springs from the two elements of moral sense and self-interest. Let us be brought to believe it is morally right, and at the same time favorable to, or at least not against, our interest to transfer the African to his native clime, and we shall find a way to do it, however great the task may be. The children of Israel, to such numbers as to include four hundred thousand fighting men, went out of Egyptian bondage in a body.

How differently the respective courses of the Democratic and Republican parties incidentally, bear on the question of forming a will—a public sentiment—for colonization, is easy to see. The Republicans inculcate, with whatever of ability they can, that the negro is a man, that his bondage is cruelly wrong, and that the field of his oppression ought not to be enlarged. The Democrats deny his manhood; deny, or dwarf to insignificance, the wrong of his bondage; so far as possible crush all sympathy for him, and

cultivate and excite hatred and disgust against him; compliment themselves as Union-savers for doing so; and call the indefinite outspreading of his bondage "a sacred right of self-government."

The plainest print cannot be read through a gold eagle; and it will be ever hard to find many men who will send a slave to Liberia, and pay his passage, while they can send him to a new country—Kansas, for instance—and sell him for fifteen hundred dollars, and the rise.

## **TO WILLIAM GRIMES.**

**SPRINGFIELD, ILLINOIS, August, 1857**

DEAR SIR:—Yours of the 14th is received, and I am much obliged for the legal information you give.

You can scarcely be more anxious than I that the next election in Iowa should result in favor of the Republicans. I lost nearly all the working part of last year, giving my time to the canvass; and I am altogether too poor to lose two years together. I am engaged in a suit in the United States Court at Chicago, in which the Rock Island Bridge Company is a party. The trial is to commence on the 8th of September, and probably will last two or three weeks. During the trial it is not improbable that all hands may come over and take a look at the bridge, and, if it were possible to make it hit right, I could then speak at Davenport. My courts go right on without cessation till late in November. Write me again, pointing out the more striking points of difference between your old and new constitutions, and also whether Democratic and Republican party lines were drawn in the adoption of it, and which were for and which were against it. If, by possibility, I could get over among you it might be of some advantage to know these things in advance.

Yours very truly,

A. LINCOLN.

# **ARGUMENT IN THE ROCK ISLAND BRIDGE CASE.**

**(From the Daily Press of Chicago, Sept. 24, 1857.)**

Hurd et al. vs Railroad Bridge Co.

United States Circuit Court, Hon. John McLean, Presiding Judge.

13th day, Tuesday, Sept. 22, 1857.

Mr. A. Lincoln addressed the jury. He said he did not purpose to assail anybody, that he expected to grow earnest as he proceeded but not ill-natured. "There is some conflict of testimony in the case," he said, "but one quarter of such a number of witnesses seldom agree, and even if all were on one side some discrepancy might be expected. We are to try and reconcile them, and to believe that they are not intentionally erroneous as long as we can." He had no prejudice, he said, against steamboats or steamboat men nor any against St. Louis, for he supposed they went about this matter as other people would do in their situation. "St. Louis," he continued, "as a commercial place may desire that this bridge should not stand, as it is adverse to her commerce, diverting a portion of it from the river; and it may be that she supposes that the additional cost of railroad transportation upon the productions of Iowa will force them to go to St. Louis if this bridge is removed. The meetings in St. Louis are connected with this case only as some witnesses are in it, and thus has some prejudice added color to their testimony." The last thing that would be pleasing to him, Mr. Lincoln said, would be to have one of these great channels, extending almost from where it never freezes to where it never thaws, blocked up, but there is a travel from east to west whose demands are not less important than those of the river. It is growing larger and larger, building up new countries with a rapidity never before seen in the history of the world. He alluded to the astonishing growth of Illinois, having grown within his memory to a population of a million and a half; to Iowa and the other young rising communities of the Northwest.

"This current of travel," said he, "has its rights as well as that of north and south. If the river had not the advantage in priority and legislation we could enter into free competition with it and we could surpass it. This particular railroad line has a great importance and the statement of its business during a little less than a year shows this importance. It is in evidence that from September 8, 1856, to August 8, 1857, 12,586 freight cars and 74,179 passengers passed over this bridge. Navigation was closed four days short of four months last year, and during this time while the river was of no use this road and bridge were valuable. There is, too, a considerable portion of time when floating or thin ice makes the river useless while the bridge is as useful as ever. This shows that this bridge must be treated with respect in this court and is not to be kicked about with contempt. The other day Judge Wead alluded to the strike of the contending interest and even a dissolution of the Union. The proper mode for all parties in this affair is to 'live and let live,' and then we will find a cessation of this trouble about the bridge. What mood were the steamboat men in when this bridge was burned? Why, there was a shouting and ringing of bells and whistling on all the boats as it fell. It was a jubilee, a greater celebration than follows an excited election. The first thing I will proceed to is the record of Mr. Gurney and the complaint of Judge Wead that the record did not extend back over all the time from the completion of the bridge. The principal part of the navigation after the bridge was burned passed through the span. When the bridge was repaired and the boats were a second time confined to the draw it was provided that this record should be kept. That is the simple history of that book.

"From April 19th, 1856, to May 6th—seventeen days—there were twenty accidents and all the time since then there have been but twenty hits, including seven accidents, so that the dangers of this place are tapering off and as the boatmen get cool the accidents get less. We may soon expect if this ratio is kept up that there will be no accidents at all.

"Judge Wead said, while admitting that the floats went straight through, there was a difference between a float and a boat, but I do not remember that he indulged us with an argument in support of this statement. Is it because there is a difference in size? Will not a small body and a large one float the same way under the same influence? True a flatboat will float faster than an egg shell and the egg shell might be blown away by the wind, but if under the same influence they would go the same way. Logs, floats,

boards, various things the witnesses say all show the same current. Then is not this test reliable? At all depths too the direction of the current is the same. A series of these floats would make a line as long as a boat and would show any influence upon any part and all parts of the boat.

"I will now speak of the angular position of the piers. What is the amount of the angle? The course of the river is a curve and the pier is straight. If a line is produced from the upper end of the long pier straight with the pier to a distance of 350 feet, and a line is drawn from a point in the channel opposite this point to the head of the pier, Colonel Nason says they will form an angle of twenty degrees. But the angle if measured at the pier is seven degrees; that is, we would have to move the pier seven degrees to make it exactly straight with the current. Would that make the navigation better or worse? The witnesses of the plaintiff seem to think it was only necessary to say that the pier formed an angle with the current and that settled the matter. Our more careful and accurate witnesses say that, though they had been accustomed to seeing the piers placed straight with the current, yet they could see that here the current had been made straight by us in having made this slight angle; that the water now runs just right, that it is straight and cannot be improved. They think that if the pier was changed the eddy would be divided and the navigation improved.

"I am not now going to discuss the question what is a material obstruction. We do not greatly differ about the law. The cases produced here are, I suppose, proper to be taken into consideration by the court in instructing a jury. Some of them I think are not exactly in point, but I am still willing to trust his honor, Judge McLean, and take his instructions as law. What is reasonable skill and care? This is a thing of which the jury are to judge. I differ from the other side when it says that they are bound to exercise no more care than was taken before the building of the bridge. If we are allowed by the Legislature to build the bridge which will require them to do more than before, when a pilot comes along, it is unreasonable for him to dash on heedless of this structure which has been legally put there. The Afton came there on the 5th and lay at Rock Island until next morning. When a boat lies up the pilot has a holiday, and would not any of these jurors have then gone around to the bridge and gotten acquainted with the place? Pilot Parker has shown here that he does not understand the draw. I heard him say that the fall from the head to the foot of the pier was four feet; he needs information. He could have gone there that day and seen

there was no such fall. He should have discarded passion and the chances are that he would have had no disaster at all. He was bound to make himself acquainted with the place.

"McCammon says that the current and the swell coming from the long pier drove her against the long pier. In other words drove her toward the very pier from which the current came! It is an absurdity, an impossibility. The only recollection I can find for this contradiction is in a current which White says strikes out from the long pier and then like a ram's horn turns back, and this might have acted somehow in this manner.

"It is agreed by all that the plaintiff's boat was destroyed and that it was destroyed upon the head of the short pier; that she moved from the channel where she was with her bow above the head of the long pier, till she struck the short one, swung around under the bridge and there was crowded and destroyed.

"I shall try to prove that the average velocity of the current through the draw with the boat in it should be five and a half miles an hour; that it is slowest at the head of the pier and swiftest at the foot of the pier. Their lowest estimate in evidence is six miles an hour, their highest twelve miles. This was the testimony of men who had made no experiment, only conjecture. We have adopted the most exact means. The water runs swiftest in high water and we have taken the point of nine feet above low water. The water when the Afton was lost was seven feet above low water, or at least a foot lower than our time. Brayton and his assistants timed the instruments, the best instruments known in measuring currents. They timed them under various circumstances and they found the current five miles an hour and no more. They found that the water at the upper end ran slower than five miles; that below it was swifter than five miles, but that the average was five miles. Shall men who have taken no care, who conjecture, some of whom speak of twenty miles an hour, be believed against those who have had such a favorable and well improved opportunity? They should not even qualify the result. Several men have given their opinion as to the distance of the steamboat Carson, and I suppose if one should go and measure that distance you would believe him in preference to all of them.

"These measurements were made when the boat was not in the draw. It has been ascertained what is the area of the cross section of this stream and the area of the face of the piers, and the engineers say that the piers being



put there will increase the current proportionally as the space is decreased. So with the boat in the draw. The depth of the channel was twenty-two feet, the width one hundred and sixteen feet; multiply these and you have the square-feet across the water of the draw, viz.: 2552 feet. The Afton was 35 feet wide and drew 5 feet, making a fourteenth of the sum. Now, one-fourteenth of five miles is five-fourteenths of one mile—about one third of a mile—the increase of the current. We will call the current five and a half miles per hour. The next thing I will try to prove is that the plaintiff's (?) boat had power to run six miles an hour in that current. It had been testified that she was a strong, swift boat, able to run eight miles an hour up stream in a current of four miles an hour, and fifteen miles down stream. Strike the average and you will find what is her average—about eleven and a half miles. Take the five and a half miles which is the speed of the current in the draw and it leaves the power of that boat in that draw at six miles an hour, 528 feet per minute and  $8\frac{4}{5}$  feet to the second.

"Next I propose to show that there are no cross currents. I know their witnesses say that there are cross currents—that, as one witness says, there were three cross currents and two eddies; so far as mere statement, without experiment, and mingled with mistakes, can go, they have proved. But can these men's testimony be compared with the nice, exact, thorough experiments of our witnesses? Can you believe that these floats go across the currents? It is inconceivable that they could not have discovered every possible current. How do boats find currents that floats cannot discover? We assume the position then that those cross currents are not there. My next proposition is that the Afton passed between the S. B. Carson and the Iowa shore. That is undisputed.

"Next I shall show that she struck first the short pier, then the long pier, then the short one again and there she stopped." Mr. Lincoln then cited the testimony of eighteen witnesses on this point.

"How did the boat strike when she went in? Here is an endless variety of opinion. But ten of them say what pier she struck; three of them testify that she struck first the short, then the long and then the short for the last time. None of the rest substantially contradict this. I assume that these men have got the truth because I believe it an established fact. My next proposition is that after she struck the short and long pier and before she got back to the short pier the boat got right with her bow up. So says the pilot Parker—that

he got her through until her starboard wheel passed the short pier. This would make her head about even with the head of the long pier. He says her head was as high or higher than the head of the long pier. Other witnesses confirmed this one. The final stroke was in the splash door aft the wheel. Witnesses differ, but the majority say that she struck thus."

Court adjourned.

14th day, Wednesday, Sept. 23, 1857.

Mr. A. LINCOLN resumed. He said he should conclude as soon as possible. He said the colored map of the plaintiff which was brought in during one stage of the trial showed itself that the cross currents alleged did not exist. That the current as represented would drive an ascending boat to the long pier but not to the short pier, as they urge. He explained from a model of a boat where the splash door is, just behind the wheel. The boat struck on the lower shoulder of the short pier as she swung around in the splash door; then as she went on around she struck the point or end of the pier, where she rested. "Her engineers," said Mr. Lincoln, "say the starboard wheel then was rushing around rapidly. Then the boat must have struck the upper point of the pier so far back as not to disturb the wheel. It is forty feet from the stern of the Afton to the splash door, and thus it appears that she had but forty feet to go to clear the pier. How was it that the Afton with all her power flanked over from the channel to the short pier without moving one foot ahead? Suppose she was in the middle of the draw, her wheel would have been 31 feet from the short pier. The reason she went over thus is her starboard wheel was not working. I shall try to establish the fact that the wheel was not running and that after she struck she went ahead strong on this same wheel. Upon the last point the witnesses agree, that the starboard wheel was running after she struck, and no witnesses say that it was running while she was out in the draw flanking over."

Mr. Lincoln read from the testimonies of various witnesses to prove that the starboard wheel was not working while the Afton was out in the stream.

"Other witnesses show that the captain said something of the machinery of the wheel, and the inference is that he knew the wheel was not working. The fact is undisputed that she did not move one inch ahead while she was moving this 31 feet sideways. There is evidence proving that the current there is only five miles an hour, and the only explanation is that her power was not all used—that only one wheel was working. The pilot says he

ordered the engineers to back her up. The engineers differ from him and said they kept on going ahead. The bow was so swung that the current pressed it over; the pilot pressed the stern over with the rudder, though not so fast but that the bow gained on it, and only one wheel being in motion the boat nearly stood still so far as motion up and down is concerned, and thus she was thrown upon this pier. The Afton came into the draw after she had just passed the Carson, and as the Carson no doubt kept the true course the Afton going around her got out of the proper way, got across the current into the eddy which is west of a straight line drawn down from the long pier, was compelled to resort to these changes of wheels, which she did not do with sufficient adroitness to save her. Was it not her own fault that she entered wrong, so far wrong that she never got right? Is the defence to blame for that?

"For several days we were entertained with depositions about boats 'smelling a bar.' Why did the Afton then, after she had come up smelling so close to the long pier sheer off so strangely. When she got to the centre of the very nose she was smelling she seemed suddenly to have lost her sense of smell and to have flanked over to the short pier."

Mr. Lincoln said there was no practicability in the project of building a tunnel under the river, for there "is not a tunnel that is a successful project in this world. A suspension bridge cannot be built so high but that the chimneys of the boats will grow up till they cannot pass. The steamboat men will take pains to make them grow. The cars of a railroad cannot without immense expense rise high enough to get even with a suspension bridge or go low enough to get through a tunnel; such expense is unreasonable.

"The plaintiffs have to establish that the bridge is a material obstruction and that they have managed their boat with reasonable care and skill. As to the last point high winds have nothing to do with it, for it was not a windy day. They must show due skill and care. Difficulties going down stream will not do, for they were going up stream. Difficulties with barges in tow have nothing to do with the accident, for they had no barge." Mr. Lincoln said he had much more to say, many things he could suggest to the jury, but he wished to close to save time.



**TO JESSE K. DUBOIS.**

**DEAR DUBOIS:**

BLOOMINGTON, Dec. 19, 1857.

J. M. Douglas of the I. C. R. R. Co. is here and will carry this letter. He says they have a large sum (near \$90,000) which they will pay into the treasury now, if they have an assurance that they shall not be sued before Jan., 1859—otherwise not. I really wish you could consent to this. Douglas says they cannot pay more, and I believe him.

I do not write this as a lawyer seeking an advantage for a client; but only as a friend, only urging you to do what I think I would do if I were in your situation. I mean this as private and confidential only, but I feel a good deal of anxiety about it.

Yours as ever,

A. LINCOLN.

## **TO JOSEPH GILLESPIE.**

**SPRINGFIELD, Jan. 19, 1858.**

MY DEAR SIR: This morning Col. McClelland showed me a petition for a mandamus against the Secretary of State to compel him to certify the apportionment act of last session; and he says it will be presented to the court to-morrow morning. We shall be allowed three or four days to get up a return, and I, for one, want the benefit of consultation with you.

Please come right up.

Yours as ever,

A. LINCOLN.

**TO J. GILLESPIE.**

**SPRINGFIELD, Feb 7, 1858**

MY DEAR SIR: Yesterday morning the court overruled the demurrer to Hatches return in the mandamus case. McClermand was present; said nothing about pleading over; and so I suppose the matter is ended.

The court gave no reason for the decision; but Peck tells me confidentially that they were unanimous in the opinion that even if the Gov'r had signed the bill purposely, he had the right to scratch his name off so long as the bill remained in his custody and control.

Yours as ever,

A. LINCOLN.

## **TO H. C. WHITNEY.**

**SPRINGFIELD, December 18, 1857.**

HENRY C. WHITNEY, ESQ.

MY DEAR SIR:—Coming home from Bloomington last night I found your letter of the 15th.

I know of no express statute or decisions as to what a J. P. upon the expiration of his term shall do with his docket books, papers, unfinished business, etc., but so far as I know, the practice has been to hand over to the successor, and to cease to do anything further whatever, in perfect analogy to Sections 110 and 112, and I have supposed and do suppose this is the law. I think the successor may forthwith do whatever the retiring J. P. might have done. As to the proviso to Section 114 I think it was put in to cover possible cases, by way of caution, and not to authorize the J. P. to go forward and finish up whatever might have been begun by him.

The view I take, I believe, is the Common law principle, as to retiring officers and their successors, to which I remember but one exception, which is the case of Sheriff and ministerial officers of that class.

I have not had time to examine this subject fully, but I have great confidence I am right. You must not think of offering me pay for this.

Mr. John O. Johnson is my friend; I gave your name to him. He is doing the work of trying to get up a Republican organization. I do not suppose "Long John" ever saw or heard of him. Let me say to you confidentially, that I do not entirely appreciate what the Republican papers of Chicago are so constantly saying against "Long John." I consider those papers truly devoted to the Republican cause, and not unfriendly to me; but I do think that more of what they say against "Long John" is dictated by personal malice than themselves are conscious of. We can not afford to lose the services of "Long John" and I do believe the unrelenting warfare made upon him is injuring our cause. I mean this to be confidential.

If you quietly co-operate with Mr. J. O. Johnson on getting up an organization, I think it will be right.



Your friend as ever,  
A. LINCOLN.

**1858**

# **ANOTHER POLITICAL PATRONAGE REFERENCE**

**TO EDWARD G. MINER.**

SPRINGFIELD, Feb.19, 1858.

MY DEAR SIR:

Mr. G. A. Sutton is an applicant for superintendent of the addition of the Insane Asylum, and I understand it partly depends on you whether he gets it.

Sutton is my fellow-townsmen and friend, and I therefore wish to say for him that he is a man of sterling integrity and as a master mechanic and builder not surpassed by any in our city, or any I have known anywhere, as far as I can judge. I hope you will consider me as being really interested for Mr. Sutton and not as writing merely to relieve myself of importunity. Please show this to Col. William Ross and let him consider it as much intended for him as for yourself.

Your friend as ever,

A. LINCOLN.

# **POLITICAL COMMUNICATION**

**TO W. H. LAMON, ESQ.**

SPRINGFIELD, JUNE 11, 1858

DEAR SIR:—Yours of the 9th written at Joliet is just received. Two or three days ago I learned that McLean had appointed delegates in favor of Lovejoy, and thenceforward I have considered his renomination a fixed fact. My opinion—if my opinion is of any consequence in this case, in which it is no business of mine to interfere—remains unchanged, that running an independent candidate against Lovejoy will not do; that it will result in nothing but disaster all round. In the first place, whosoever so runs will be beaten and will be spotted for life; in the second place, while the race is in progress, he will be under the strongest temptation to trade with the Democrats, and to favor the election of certain of their friends to the Legislature; thirdly, I shall be held responsible for it, and Republican members of the Legislature who are partial to Lovejoy will for that purpose oppose us; and lastly, it will in the end lose us the district altogether. There is no safe way but a convention; and if in that convention, upon a common platform which all are willing to stand upon, one who has been known as an abolitionist, but who is now occupying none but common ground, can get the majority of the votes to which all look for an election, there is no safe way but to submit.

As to the inclination of some Republicans to favor Douglas, that is one of the chances I have to run, and which I intend to run with patience.

I write in the court room. Court has opened, and I must close.

Yours as ever,

A. LINCOLN.

# BRIEF AUTOBIOGRAPHY,

JUNE 15, 1858.

The compiler of the Dictionary of Congress states that while preparing that work for publication, in 1858, he sent to Mr. Lincoln the usual request for a sketch of his life, and received the following reply:

*Born February 12, 1809, in Hardin County, Kentucky.*

*Education, defective.*

*Profession, a lawyer.*

*Have been a captain of volunteers in Black Hawk war.*

*Postmaster at a very small office.*

*Four times a member of the Illinois Legislature and was a member of the lower house of Congress.*

Yours, etc.,

A. LINCOLN.

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WRITINGS OF ABRAHAM LINCOLN — VOLUME 2: 1843-1858 \*\*\*

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